COGS OF AUSTRALIA FOUNDATION

COG$ — Community Owned Gold and Silver / Community Operated Governance Structure

HYBRID TRUST DECLARATION

COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust

In-Ground Mineral Value Doctrine · Indigenous Heritage Framework · Members Dividend Structure · Approved Ledger and RWA Infrastructure

CARETAKER TRUSTEE	Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW, in his capacity as Caretaker Trustee unless and until he retires, is removed, or a later trustee structure is validly constituted under this Declaration.
DECLARANT	Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW. As Declarant and Caretaker Trustee, he declares that the specifically identified parcel of 1,545 ASX:LGM shares recorded in account CRVGS is henceforth held on the trusts of this Declaration as the Initial Trust Property. The Declarant has no beneficial interest by reason only of making that declaration.
GOVERNING LAW	South Australia, Australia.
PRINCIPAL LEGISLATION	Corporations Act 2001 (Cth); Trustee Act 1936 (SA); Law of Property Act 1936 (SA); Charities Act 2013 (Cth); Native Title Act 1993 (Cth); Aboriginal Land Rights Act 1983 (NSW); AML/CTF Act 2006 (Cth); Privacy Act 1988 (Cth); Income Tax Assessment Act 1997 (Cth); Electronic Transactions Act 1999 (Cth); Electronic Transactions Act 2000 (NSW).
FOUNDING AND PREVAILING INSTRUMENT	This Declaration prevails over any CLG constitution or other constituent document adopted for a body corporate appointed under this Declaration as corporate trustee, in all matters relating to the CJVM Hybrid Trust and Beneficiary Holders, subject to the Corporations Act to the extent of any inconsistency. This Declaration is the legal trust administration instrument of a Joint Venture constituted by the Joint Venture Participation Agreement, which is the supreme governing instrument of the Joint Venture. The founding Member of the Joint Venture is the first person to complete the electronic acceptance procedure under clause 8.1A of that Agreement. The founding Member enters that Agreement on the same terms as every subsequent Member and holds no special rights or privileges by virtue of being first. The Declarant and Caretaker Trustee is Thomas Boyd Cunliffe, acting in that capacity alone and not as a Member. This Declaration is administered by the Trustee at the direction of the Members under the Joint Venture Participation Agreement; in the event of any inconsistency between this Declaration and that Agreement, that Agreement prevails.
PERPETUAL DURATION	This Declaration is perpetual. The amendment is governed exclusively by clause 40. Entrenched provisions (clause 35) cannot be amended by any resolution.

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DECLARANT

Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW

EXECUTED AS A DEED by Thomas Boyd Cunliffe as Declarant and Caretaker Trustee on 21 April 2026 at 6:00 pm AEST at Drake Village Resource Centre, Drake Village NSW 2469, by electronic means in accordance with the Electronic Transactions Act 1999 (Cth) and section 14G of the Electronic Transactions Act 2000 (NSW). No wet ink signature or paper counterpart is required or produced. The witnessing requirement for this deed is satisfied by the electronic attestation of Alexander Stefan Gorshenin via audio-visual link under section 14G of the Electronic Transactions Act 2000 (NSW).

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CLASS RIGHTS OVERVIEW

Interpretive note: unless a class is expressly identified as participating in Sub-Trust B, it carries no Sub-Trust B beneficiary distribution right. Donation rights arise through the D Class structure and pass to Sub-Trust C accordingly. Records maintained through the Approved Ledger Infrastructure supplement, and do not displace, the governing legal record unless this Declaration expressly provides otherwise. Sub-Trust A is the sole registry and issuing authority for all Unit Classes and the record of their corresponding COG$ Tokens.

COGS CLASS STRUCTURE SCHEDULE

The authoritative table of Unit Classes and corresponding COG$ Tokens, together with lawful issue conditions and corresponding COG$ Token-recording conditions, is set out in Schedule 9, Part A of this Declaration.

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PART 1 — PRELIMINARY

1. Name and Operative Status

1.1 This instrument is the declaration of trust constituting the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust (this Declaration, and the trust constituted by it, the CJVM Hybrid Trust). From the date of execution, the Members exercise this operational control through the Foundation's online cryptographic database system, which constitutes the first implementation of the Members' proprietary cryptographic governance, resource management, distribution, communications, and record keeping systems. The subsequent deployment of blockchain technology is a technology evolution within the Members' existing operational control framework, not the commencement of that control.

1.1A The CJVM Hybrid Trust is constituted and operates as a Joint Venture Cryptographic Governance, Resource Management and Distribution System. The Joint Venture Members exercise day-to-day control over the operations of the trust through their proprietary cryptographic resource management, distribution, communications, governance, and record keeping systems as set out in the Joint Venture Participation Agreement. The Trustee performs only the limited Trustee Functions defined in this Declaration. The CJVM Hybrid Trust is not intended to be, and does not operate as, a managed investment scheme within the meaning of section 9 of the Corporations Act 2001 (Cth). This Declaration is the legal trust administration instrument of the Joint Venture, subordinate to the Joint Venture Participation Agreement.

1.2 Caretaker Trustee Model is the Default. From execution of this Declaration, Thomas Boyd Cunliffe is the Caretaker Trustee of the CJVM Hybrid Trust. The CJVM Hybrid Trust is held and administered under the Caretaker-Trustee model unless and until Thomas Boyd Cunliffe retires, is removed, dies, loses legal capacity, or the trustee structure is validly reconstituted under this Declaration. The default trustee structure is a Board of individual trustees constituted under clause 1.8 by the appointment of one or more additional trustees alongside or in succession to the Caretaker Trustee. A Company Limited by Guarantee (CLG) or other corporate trustee is not required, and shall be adopted only if (a) the Members so resolve at or following the Inaugural Meeting, or (b) applicable law independently requires a corporate trustee structure. The corporate trustee model is therefore conditional and regulatory, not the default constitutive form of the trust.

1.3 This Declaration is the principal legal trust administration instrument of the CJVM Hybrid Trust, maintained by the Trustee at the direction of the Members under the Joint Venture Participation Agreement, and gives legal effect to the Members' Joint Venture in Australian trust law regardless of the trustee structure in place at any time. No corporate constituent document of any CLG or other entity appointed as corporate trustee may override, limit, or modify any provision of this Declaration, including any entrenched principle incorporated by reference under clause 35.

1.4 This Declaration is perpetual and may only be amended in accordance with Part 13 and the special procedures applicable to entrenched provisions set out in clause 35.

1.4A Declaration Version Anchor. This Declaration is version 15.1, executed on the date set out in the Execution page. The SHA-256 hash of this Declaration at the moment of execution is the canonical version anchor for the purposes of clause 10.5 of the Joint Venture Participation Agreement, and forms part of the founding cryptographic record of the Joint Venture preserved under clause 8.1A of that Agreement. Where this Declaration is subsequently amended, the amending deed must (a) assign a new version number in the form 15.X (where X is a sequential revision indicator), (b) record the new SHA-256 hash upon execution, and (c) be notified in writing to all Members and lodged in the Joint Venture's governance record. References elsewhere in the Joint Venture instrument suite to "the Declaration" are references to the version current at the time of the relevant reference, unless the text expressly refers to a specified anchored version.

1.5 This Declaration is executed as a deed by Thomas Boyd Cunliffe as Declarant and Caretaker Trustee and takes effect from execution. This Declaration is executed by electronic means in accordance with the Electronic Transactions Act 1999 (Cth) and section 14G of the Electronic Transactions Act 2000 (NSW). No wet ink signature

or paper counterpart is required or produced. The witnessing requirement for a deed is satisfied by the electronic attestation of Alexander Stefan Gorshenin via audio-visual link under section 14G of the Electronic Transactions Act 2000 (NSW), embedded in the Declaration Execution Record under clause 1.5A. It binds the Declarant and Caretaker Trustee immediately and, upon execution of any deed of accession, deed of retirement, deed of appointment, board consent, or corporate trustee instrument made under this Declaration, binds each additional trustee, successor trustee, corporate trustee, trustee, Beneficiary Holder, Board member, and the FNAC to the extent applicable.

1.5A This Declaration is executed electronically. The electronically authenticated instrument is the original Declaration. No physical original, paper counterpart, or physical certified copy is required or produced. The Declaration Execution Record — comprising the Declarant Execution Record and the Caretaker Trustee Execution Record, each with the electronic witness attestation of Alexander Stefan Gorshenin embedded under section 14G of the Electronic Transactions Act 2000 (NSW) — is stored in the Foundation's secure systems. A SHA-256 hash of the Declaration Execution Record is committed to the System's public ledger with state-root anchoring and constitutes the canonical integrity reference for this Declaration. An electronically authenticated PDF of this Declaration, produced from the Foundation's secure systems and bearing the SHA-256 cryptographic hash of the Declaration Execution Record committed to the System's public ledger, is a legal copy of this instrument for all purposes — including production to a court, a regulator, the FNAC, Trustees, or any other party. Such an authenticated PDF, together with the Foundation's platform audit certificate, constitutes conclusive evidence of the contents of this Declaration. "Certified copy" in this Declaration means an electronically authenticated PDF produced under this clause, or a printed copy of such a PDF certified as a true copy by a legal practitioner holding an unrestricted practising certificate in any Australian jurisdiction, a notary public, or a Justice of the Peace. The Foundation must preserve the Declaration Execution Record and the electronically executed instrument for the operational life of the CJVM Hybrid Trust and for not less than seven (7) years following dissolution, whichever is the longer period. The FNAC has the right to access the Declaration Execution Record and the electronically executed instrument through the Foundation's secure systems at any time on written request. If the integrity of the Declaration Execution Record is disputed, resolution is by SHA-256 hash verification against the public ledger commitment. If hash verification is technically impossible or inconclusive, the Trustee must apply to the Supreme Court of South Australia for directions.

1.6 The Foundation trades as COG$ (Community Owned Gold and Silver / Community Operated Governance Structure) and may use that abbreviated name in any public-facing materials.

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1.6A. Constitution of the Trust — Declarant and Initial Trust Property

1.6A.1 The CJVM Hybrid Trust is constituted by declaration. On execution of this Declaration, Thomas Boyd Cunliffe as legal and beneficial owner of the Initial Trust Property declares that he henceforth holds that property, and all accretions and substitutions to it, on the trusts set out in this Declaration. No transfer to another person is required to constitute the trust because the Declarant and the Caretaker Trustee are the same person at the time of constitution.

1.6A.1A The Initial Trust Property is the specifically identified parcel of 1,545 ASX:LGM shares recorded in account CRVGS and described in Schedule 1, being the parcel referred to in the settlement evidence note. Constitution of the trust may be evidenced by one or more of the following: (a) the account statement or holding statement identifying that parcel; (b) a written appropriation or asset identification signed by the Declarant; (c) the execution page to this Declaration; and (d) any subsequent minute, register entry, or trustee acknowledgement recording that the parcel is held on the trusts of this Declaration.

1.6A.2 The Declarant is Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW. The role of Declarant is exhausted upon the constitution of the trust by this Declaration. Thereafter Thomas Boyd Cunliffe continues only in his separate capacity as Caretaker Trustee under this Declaration unless and until he retires, is removed, dies, loses capacity, or a different trustee structure is validly constituted in accordance with this Declaration. He does not retain any beneficial interest in the Initial Trust Property by reason only of having made the declaration.

1.6A.3 The three certainties required to constitute a valid express trust under Australian equity law are intended to be satisfied as follows: (a) certainty of intention — this instrument expressly declares a trust; (b) certainty of subject matter — the initial trust property is the specifically identified parcel described in clause 1.6A.1A and Schedule 1, together with all property later received or acquired on the trusts of this Declaration; and (c) certainty of objects — the beneficiaries are the Beneficiary Holders described in Part 3 and the charitable beneficiaries of Sub-Trust C described in clause 8.3.

1.6A.4 This Declaration is governed by the law of South Australia. Where trust property includes land or an interest in land, the declaration of trust must be manifested and proved by signed writing in accordance with section 29(b) of the Law of Property Act 1936 (SA). This instrument is executed in writing as a deed for certainty, evidentiary sufficiency, and regulatory use.

1.6A.5 This Trust has no vesting date and is of perpetual duration. The Declarant and Caretaker Trustee relies on the abolition of the rule against perpetuities for trusts created after the commencement of the Law of Property (Perpetuities and Accumulations) Amendment Act 2022 (SA), which amended the Law of Property Act 1936 (SA) in respect of South Australian trusts, and on the absence of any statutory vesting period imposed by the Trustee Act 1936 (SA) on express trusts such as this Trust. The Foundation is established as a perpetual Joint Venture vehicle and this Declaration must be construed accordingly. No provision of this Declaration shall be read as imposing or implying a vesting date, trust period, or expiry of any beneficial interest. If at any time a court of competent jurisdiction determines that the statutory framework in force in South Australia requires a vesting date or trust period to be specified, the Trustee must promptly seek directions from the Supreme Court of South Australia.

1.7.1 From execution of this Declaration, Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW (the Caretaker Trustee) holds office as the first trustee of the CJVM Hybrid Trust in his personal capacity. He remains trustee unless and until he retires, is removed, dies, loses legal capacity, or a later trustee structure is validly constituted in accordance with this Declaration. The appointment of one or more additional trustees does not of itself terminate his office.

1.7.2 The Caretaker Trustee holds the trust property on the trusts of this Declaration with the duties, powers, and obligations conferred by this Declaration, the Trustee Act 1936 (SA), and applicable equitable principles. Before any additional trustee is appointed, references in this Declaration to ’the Trustee’ and ’the Board’ are to be read as referring to the Caretaker Trustee acting alone to the extent necessary to give effect to this Declaration. After one

or more additional trustees are appointed, references to 'the Trustee' mean the trustees collectively or the corporate trustee then in office, as the context requires, and references to 'the Board' mean the board or governing body then constituted under this Declaration.

1.7.3 During the period before the full governance structure required by this Declaration and applicable law has been constituted, the following functions and restrictions apply. Lawful issue conditions and corresponding COG$ Token-recording conditions for all Unit Classes are governed by Schedule 9, Part A (the Issue-and-Record Matrix).

(a) Personal S-NFT COG$ / Class S Units and Business B-NFT COG$ / Class B Units are the only Unit Classes that may be issued following execution of this Declaration, subject to this Declaration, applicable law, and Schedule 9, Part A.

(b) No other Unit Class may be lawfully issued or allocated, as applicable, except in accordance with the applicable issuance gate and conditions in Schedule 9, Part A.

(c) A corresponding COG$ Token of any class may be minted or recorded only in accordance with Schedule 9, Part A and after completion of the required administrative verification and approval process. Once those steps are complete, the corresponding Token must be minted or recorded at the earliest practicable time thereafter.

(d) During this period, the Caretaker Trustee may execute this Declaration, maintain or redesignate a trust account, brokerage account, custody arrangement, or register entry in the capacity of 'Thomas Boyd Cunliffe as trustee of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust', appropriate and earmark the Initial Trust Property as trust property, convene the Inaugural Meeting, appoint or facilitate the appointment of additional trustees where validly authorised, take all preparatory and constitutive steps necessary to satisfy the Governance Foundation Day conditions in Part 12A and the Expansion Day pre-conditions in Part 12B of this Declaration, and conduct or facilitate the Foundation's first online cryptographic Members Poll (Governance Foundation Day) at any time prior to or following Expansion Day.

(e) The Caretaker Trustee may receive fiat payment for Personal S-NFT COG$ / Class S Units and Business B-NFT COG$ / Class B Units in connection with lawful issue, but may not enter into contracts binding the trust beyond preparatory steps and performs only Trustee Functions as defined in this Declaration and the Joint Venture Participation Agreement. All other operational execution is coordinated by the Members through their proprietary systems from Expansion Day.

(f) The Caretaker Trustee has a right of indemnity from trust property for all liabilities properly incurred in carrying out this clause. This right of indemnity survives any later appointment of additional trustees, any retirement, and any valid reconstitution of the trustee structure.

1.7.4 The Caretaker Trustee has personal liability for trust obligations while serving as trustee, subject to the right of indemnity in clause 1.7.3 and subject to the ordinary incidents of trusteeship under Australian law. The constitution of the Board, the appointment of additional trustees, and any later appointment of a corporate trustee are intended to broaden the governance structure and regulatory capacity of the trust, not to invalidate the continuing office of the Caretaker Trustee unless the relevant instrument expressly provides otherwise.

1.7.5 The governance structure contemplated by this Declaration must be actively progressed. The Caretaker Trustee must convene the Inaugural Meeting as soon as practicable and in any event within two (2) years of execution. The primary purpose of the Inaugural Meeting is to constitute the Board with not fewer than three Directors capable of satisfying the 3-of-Board cryptographic authorisation requirement for the [Gundoo Ngiri] Proprietary Node before Expansion Day. The Caretaker Trustee must use reasonable endeavours to achieve this within twelve (12) months of execution. If substantial uncertainty or impracticability arises in constituting that governance body, the Trustee may seek directions from the Supreme Court of South Australia. If at the expiry of the two (2) year period fewer than twenty (20) Members have been admitted, the Caretaker Trustee must either (a) apply to the Supreme Court of South Australia for directions on the manner in which the Inaugural Meeting should

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be held or postponed, producing for the Court the current Member register, membership-growth plan, and any evidence of impediment; or (b) by deed executed by the Caretaker Trustee and endorsed by the FNAC (once constituted), extend the Inaugural Meeting deadline by a further period not exceeding twelve (12) months. The combined extension under option (b) may not exceed twelve (12) months without leave of the Supreme Court of South Australia.

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1.8. Inaugural Meeting, Constitution of Board, and Appointment of Additional or Successor Trustees

1.8.1 At the Inaugural Meeting, the first resolution of the Members shall be a resolution to confirm Thomas Boyd Cunliffe in office as Caretaker Trustee. The resolution requires a simple majority of the Members present and voting. If the resolution does not pass, a further vote shall be scheduled within 28 days at which the Members may resolve to confirm Thomas Boyd Cunliffe or appoint a new Trustee or Trustees in his place. Thomas Boyd Cunliffe shall continue as Caretaker Trustee with full powers until that further vote is determined. Following that resolution, the Trustee shall proceed to the formation of the full Board of Trustees required for Expansion Day, including the nomination of such additional Trustees as are necessary under this Declaration. Unless and until that Board is duly constituted, Thomas Boyd Cunliffe shall remain the Caretaker Trustee and may exercise all Trustee Functions as defined in this Declaration and the Joint Venture Participation Agreement for the long-term benefit of the Trust and its Members, subject to the express terms of this Declaration.

1.8.2 Following the Inaugural Meeting, the trustee structure may be implemented by one or more of the following instruments as applicable:

– a Deed of Accession or Appointment of Additional Trustee, under which one or more additional trustees are appointed to hold office jointly with the Caretaker Trustee;

– a Deed of Appointment of Corporate Trustee, under which an eligible body corporate is appointed to act as corporate trustee and, where required by applicable law, as trustee, with or without the Caretaker Trustee remaining in office for a transitional period; and

– a Deed of Retirement and Appointment of Trustee, but only where a trustee in fact retires, is removed, dies, loses capacity, or is otherwise replaced in accordance with this Declaration or applicable law.

1.8.3 On and from the execution of the relevant instrument under clause 1.8.2:

– if one or more additional trustees are appointed, those trustees hold office jointly with the Caretaker Trustee and the trust property is to be vested or held accordingly;

– if a corporate trustee is appointed, that appointment takes effect according to its terms and applicable law, and the Caretaker Trustee remains in office unless the instrument expressly provides for retirement or replacement;

– a retiring trustee is discharged only if and when a deed of retirement or replacement expressly provides for that result; and

– all references in this Declaration to ’the Trustee’ and ’the Board’ thereafter take effect according to the trustee structure then in office, applying to the Caretaker Trustee, the additional trustees, the Board of Trustees, or the corporate trustee and its board, as the context requires.

1.8.4 Eligibility for appointment under this clause is as follows: (a) an additional individual trustee is eligible if the person is over 18 years of age, is not disqualified by law from acting in the relevant office, has consented in writing, and is capable of performing trustee duties; (b) a CLG or other corporate trustee is eligible if it has been or will promptly be incorporated under the Corporations Act 2001 (Cth), has adopted constituent documents consistent with this Declaration, and, where required by applicable law at the time of appointment, has adopted internal governance consistent with this Declaration; and (c) the board or collective trustee structure must be capable of satisfying the minimum governance and trustee requirements applicable to the CJVM Hybrid Trust, capable of satisfying the trustee duties under the Trustee Act 1936 (SA) and the Trustee Functions defined in this Declaration.

1.8.5 The electronically executed record of each instrument executed under clause 1.8.2, together with its SHA-256 hash, must be retained in the Foundation’s secure systems, entered in the trust records, made accessible to the FNAC upon written request, and provided to ASIC or any other regulator to the extent required by applicable law.

1.9. Managing Director and Caretaker Trustee Lock Period

1.9.1 The Caretaker Trustee, Thomas Boyd Cunliffe, and any person first appointed as Managing Director of a CLG adopted as corporate trustee of the CJVM Hybrid Trust, is subject to a twelve (12) month lock period commencing on the date of their respective appointment (the MD Lock Period). During the MD Lock Period, that person may not be removed from office except for cause. This is an entrenched provision (Declaration clause 35).

1.9.2 Removal for cause during the MD Lock Period is permitted only on one or more of the following grounds: (a) material breach of fiduciary duty that has not been remedied within 30 days of written notice by the Board; (b) conviction of a criminal offence involving dishonesty, fraud, or a penalty of imprisonment; (c) loss of legal capacity under applicable law; (d) unanimous resolution of the remaining Board members, supported by independent legal advice from qualified South Australian counsel, on the grounds of material and persistent failure to comply with an entrenched provision; or (e) a court order made by the Supreme Court of South Australia or a court of competent jurisdiction.

1.9.3 No resolution of Members may remove the Caretaker Trustee or first appointed Managing Director during the MD Lock Period except on the grounds set out in clause 1.9.2 and only following the procedure in clause 1.9.4.

1.9.4 Before any removal for cause during the MD Lock Period may take effect: (a) written notice specifying the grounds must be given to the person proposed for removal not fewer than 14 days before any meeting at which removal is to be considered; (b) the person proposed for removal must be given a reasonable opportunity to address the Board or Members in person or in writing; and (c) the removal must be approved by Special Resolution (75% majority) of the Members, unless the ground is a court order under clause 1.9.2(e).

1.9.5 The MD Lock Period applies once only to the Caretaker Trustee in respect of the initial 12 months from execution of this Declaration, and once only to the first appointed Managing Director of any CLG in respect of the first 12 months from that person's appointment. Successive holders are not subject to this clause.

1.9.6 This clause is an entrenched founding governance protection and may not be amended, removed, or circumvented by any resolution during the MD Lock Period. After the MD Lock Period expires, this clause may be amended by Special Resolution (75% majority) in accordance with the amendment provisions of this Declaration.

1.10. Evidentiary Recitals

This Declaration is made against the following background facts, which form the evidentiary and philosophical foundation for the objects and principles in Part 2:

R1 — Scale of Overlap	**A peer-reviewed study (Burton, Kemp et al., University of Queensland, 2024) found that 57.8% of Australia's critical mineral projects lie within formally recognised Indigenous lands — rising to 79.2% when unresolved Native Title claims are included. The Foundation's Members Asset Pool will intersect with Traditional Owner Country in virtually every significant acquisition it makes.**
R2 — ESG Value Premium	BCG research documents that mining companies in the highest ESG performance quintile carry average valuations approximately 20% greater than the lowest quintile. EY has ranked social licence to operate as the number one business risk in the global mining sector for multiple consecutive years.
R3 — Juukan Gorge	In May 2020, Rio Tinto legally destroyed two 46,000-year-old sacred Aboriginal rock shelters at Juukan Gorge, WA, despite explicit objections from

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	the PKKP People. Global institutional investors coordinated reform demands. Juukan Gorge proved that ignoring Indigenous rights is a material financial and governance risk.
R4 — Consent Creates Value	Projects that obtain genuine FPIC from Traditional Owners demonstrate reduced permitting timelines, lower rates of community litigation, greater operational continuity, and stronger access to ESG-screened institutional capital. Indigenous consent is a value-creating asset.
R5 — In-Ground Assets in Relationship	Aboriginal and Torres Strait Islander peoples have maintained custodial knowledge of Australia's mineral landscapes for tens of thousands of years. Under the Native Title Act 1993 (Cth) and Mabo v Queensland (No 2) [1992] HCA 23, Traditional Owners hold legally recognised rights to negotiate over resource activities on their Country.
R6 — Social Licence Not Enough	The 'social licence to operate' provides no legal protection to communities and no enforceable governance rights. COGS of Australia Foundation replaces it with enforceable shareholding, voting rights, a constitutionally embedded FNAC, and FPIC obligations entrenched in this Declaration. This is governance, not goodwill.

These recitals constitute interpretive background, not operative provisions. They inform the construction of all operative provisions, particularly objects 4.9–4.15 and principles 5.9–5.14.

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1.11. Key Operative Provisions — Cross-Reference

The three most fundamental operative rules of this Declaration are set out in the following clauses and are each entrenched under clause 35:

Token classification	The governance token characterisation of the Personal S-NFT COG$ Token and Business B-NFT COG$ Token as digital representations of the underlying Class S Unit and Class B Unit maintained through the Members Vault on the Approved Ledger Infrastructure — clauses 21.2 and 26A.1. Operative effect: neither the token representation nor the underlying governance/membership unit is intended to be a financial product, investment, or managed investment scheme interest in its own right.
Prohibition on fiat sale	No COG$ Token of any class, and no corresponding Unit, may be sold in secondary dealings for fiat currency, listed on any exchange, redeemed for cash, or converted to cash — clause 22.0.2. This does not prohibit the initial payment of fiat consideration to the Trust for lawful Unit issuance. Entrenched: clause 35(w).
Multisignature security	All Members Vault operations require the cryptographic authorisation of not fewer than three (3) Board Directors — clause 15.1(i). Entrenched: clause 35(t).

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2. Definitions

Beneficiary Holders in this Declaration are the Members of the Joint Venture as defined in the Joint Venture Participation Agreement. The two terms refer to the same persons exercising different capacities — Members in the Joint Venture, and Beneficiary Holders in this trust law instrument.

In this Declaration, unless the context otherwise requires:

Active Member	**A Member who is not a Dormant Member as that term is defined in clause 4.11 of the Joint Venture Participation Agreement — that is, a Member who has accessed the System at least once in any rolling 12-month period. A Member who fails to access the System for a continuous period of 12 months is classified as a Dormant Member. Dormant status is cured when the Member next accesses the System and participates in at least one Members Poll by casting a valid vote, consistently with clause 4.11 of the Joint Venture Participation Agreement.**
Affected Zone	A defined geographic area declared by the Board under clause 12A, within which residents and landholders have a material connection to a proposed Foundation action affecting land, waterways, environment, or Cultural Heritage.
Affected Zone Member	A Member whose registered and verified residential address falls within a currently declared Affected Zone and who satisfies the residency requirement under clause 12A.5.
Appointer	The Members collectively, exercising the power to appoint, remove, or replace the Trustee or any trustee structure by Special Resolution under clause 5.3 and clause 6.5A of the Joint Venture Participation Agreement. During the pre-Governance-Foundation-Day period, Thomas Boyd Cunliffe acts as Caretaker Appointer under clause 38.4. See clause 38.4.
ATO	Australian Taxation Office.
ASIC	Australian Securities and Investments Commission.
Approved Ledger Infrastructure	Approved Ledger Infrastructure has the meaning given in clause 1.7(a) of the Joint Venture Participation Agreement.
BNFT / Business B-NFT COG$	The Business B-NFT COG$ / Class B Unit described in clause 26A - the organisational membership Unit issued to incorporated entities linked via ABN (not natural persons), carrying one limited governance vote only on the appointment, removal, or replacement of the Trustee or any trustee structure, and one corresponding Sub-Trust B income unit.

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Beneficiary Holder	A person or entity admitted under Part 3 to a class that carries Beneficiary Holder status or a Sub-Trust B income unit under this Declaration. Holding only Donation COG$, Pay It Forward COG$ before allocation, or Resident COG$ does not of itself make a person a Beneficiary Holder.
Board	Before any additional trustee is appointed, the Board means Thomas Boyd Cunliffe acting as sole trustee to the extent necessary to give effect to this Declaration. Where the trusteeship is held by two or more individual trustees, the Board means those trustees collectively as the governing body of the trust. Where a corporate trustee is appointed, the Board means the board of directors of that corporate trustee. References to 'the Board' apply to whichever governing body holds the trustee function at the relevant time.
CHESS Register	The Clearing House Electronic Sub-register System on which Sub-Trust A's ASX shareholdings are directly registered in the Foundation's name as Trustee. The CHESS Register is the primary legal record of ownership of Shares relevant to Class A Units.
Members Asset Pool	The portfolio of ASX-listed resource company shares, financial assets and RWA held in Sub-Trust A.
Corporations Act	Corporations Act 2001 (Cth), as amended or replaced from time to time.
Country	The lands, waters, sky, and associated cultural landscapes to which a group of Aboriginal or Torres Strait Islander peoples are traditionally connected, encompassing their spiritual, ecological, cultural, and custodial relationships to that place.
Cultural Heritage	The cultural, spiritual, historical, and archaeological significance of Country and cultural heritage sites, within the meaning of applicable cultural heritage legislation including the Aboriginal and Torres Strait Islander Heritage Protection Act 1984 (Cth) and applicable state heritage Acts.
ESG	Environmental, Social, and Governance standards and criteria.
FNAC	The First Nations Advisory Council established under clause 33A.
ESG Floor	The minimum acceptable ESG conduct standards that a portfolio company must not fundamentally breach, as assessed by the Board in consultation with the

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	FNAC and set out in the Foundation's ESG Engagement Policy.
Members Consensus Network	Members Consensus Network has the meaning given in clause 1.7(c) of the Joint Venture Participation Agreement.
Members Vault	Members Vault means the central Hybrid Trust Vault, being the Foundation-operated multi-party cryptographic authorisation and registry system through which the Trustee administers the minting, registry, geofencing, eligibility verification, and transfer controls for all COG$ Token classes. The Members Vault holds all trust assets and is the sole authority for token minting and registry operations. It is implemented on and operated through the Approved Ledger Infrastructure. Every operation of the Members Vault requires the cryptographic authorisation of not fewer than three (3) Board Directors, implemented through whatever technical mechanism the Approved Ledger Infrastructure supports, consistently with the entrenched 3-of-Board requirement recorded in clause 1.5(j) of the Joint Venture Participation Agreement. The Members Vault is distinct from the Independence Vault Wallets, which are each Member's individual wallet, autonomously operated by the Member without requiring Board authorisation. Pending operational deployment of the Approved Ledger Infrastructure and the 3-of-Board cryptographic mechanism, the Caretaker Trustee may perform the functions of the Members Vault in the most practicable and fiduciary manner available, documented, auditable, and undertaken in compliance with this Declaration and applicable law.
Governance Foundation Day	Governance Foundation Day has the meaning given in clause 1.7(e) of the Joint Venture Participation Agreement. It occurs on the date on which the Foundation conducts its first online cryptographic Members Poll. Governance Foundation Day is a governance milestone separate from, and not conditional upon, Expansion Day.
Expansion Day	Expansion Day has the meaning given in clause 1.7(b) of the Joint Venture Participation Agreement. It occurs on the date on which the [Gundoo Ngiri] Proprietary Node processes its first live cryptographic operation, as certified by the Board and endorsed by the FNAC.
[Gundoo Ngiri] Proprietary Node	[Gundoo Ngiri] Proprietary Node (placeholder name pending FNAC endorsement under clause 33D.3 and

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	the entrenched ICIP provisions of this Declaration) means the first Proprietary Node forming part of the Members Consensus Network, hosted on Traditional Owner Country or LALC land as endorsed by the FNAC, equipped with Foundation-approved cryptographic key management hardware meeting the minimum security standards in the Key Management Policy, and whose first live cryptographic operation constitutes the trigger event for Expansion Day. Location details to be confirmed with the FNAC as part of the endorsement process.
Donation Dividend Stream	The dividends and income received by Sub-Trust A attributable to the invested component of Donation COG$ / Class D Unit consideration, being $2.00 per Class D Unit applied to Sub-Trust A at the time of issue, as identified by the Donation Ledger. The Donation Dividend Stream is allocated 50% to Sub-Trust B for proportional distribution, including to Sub-Trust C as D Class Beneficial Unit Holder, 25% to mandatory reinvestment in Sub-Trust A, and 25% to Trustee administration costs.
FPIC	Free, Prior and Informed Consent — the right of Indigenous peoples to give or withhold consent to projects affecting their lands, territories, and resources, in accordance with UNDRIP and applicable Australian law.
ICIP	Indigenous Cultural and Intellectual Property — the rights of Aboriginal and Torres Strait Islander peoples to maintain, control, protect, and develop their cultural heritage and traditional knowledge.
Deed of Appointment	Any deed or instrument executed under clause 1.8 to implement the trustee structure contemplated by this Declaration, including a Deed of Accession or Appointment of Additional Trustee, a Deed of Appointment of Corporate Trustee, or, where applicable, a Deed of Retirement and Appointment of Trustee.
Trustee	The person or persons for the time being holding office as trustee of the CJVM Hybrid Trust under this Declaration. From execution, the Trustee is Thomas Boyd Cunliffe as Initial Caretaker Trustee. Thereafter the Trustee may comprise: (a) Thomas Boyd Cunliffe alone; (b) Thomas Boyd Cunliffe together with one or more additional individual trustees; (c) a Board of Trustees constituted under this Declaration; or (d) a corporate trustee duly appointed under this Declaration, and, where required by law, a trustee appointed in compliance with the Corporations Act. A reference to the Trustee does not by itself require

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	that Thomas Boyd Cunliffe retire merely because additional trustees are appointed.
Inaugural Meeting	The first general meeting of the Members convened by the Caretaker Trustee under clause 1.8, at which Members confirm the ongoing trustee structure, appoint additional trustees or directors, and approve any corporate trustee structure to the extent applicable.
Trustee Company	A separately incorporated body corporate appointed under clause 1.8 to act as corporate trustee and, where required by applicable law, as trustee. A Trustee Company is not mandatory unless and until the Members so resolve or applicable law requires that structure.
Independence Vault Wallet	The Board-approved digital wallet through which Members hold, exercise, and record their token rights, governance votes, and Sub-Trust B class unit entitlements through the Approved Ledger Infrastructure approved by the Board from time to time. Each Independence Vault Wallet is autonomously operated by the individual Member. No Board authorisation or 3-of-Board multisignature is required for a Member to access, view, interact with, cast votes through, or initiate transactions from their own Independence Vault Wallet. The 3-of-Board cryptographic authorisation requirement in clause 35(t) applies exclusively to the Members Vault (the central Hybrid Trust Vault), not to individual Independence Vault Wallets.
Joint Venture Participation Agreement	Joint Venture Participation Agreement or JVPA means the COGS of Australia Foundation Joint Venture Participation Agreement dated [date of execution], as amended from time to time by Special Resolution of the Members in accordance with JVPA clause 10.1. The JVPA is the supreme governing instrument of the Joint Venture. This Declaration is subordinate to the JVPA. In the event of any inconsistency between the JVPA and this Declaration, the JVPA prevails and the Trustee must amend this Declaration to resolve the inconsistency.
Caretaker Trustee	Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW, acting as the first and Caretaker Trustee of the CJVM Hybrid Trust from the date of execution unless and until he retires, is removed, dies, loses legal capacity, or a different trustee structure is validly constituted under this Declaration.
Initial Trust Property	The specifically identified parcel of 1,545 ASX:LGM shares recorded in account CRVGS and appropriated by declaration on the date of execution of this

	Declaration. The Initial Trust Property constitutes the initial trust fund.
Declarant	Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW, who as legal owner of the Initial Trust Property declares that he holds it on the trusts of this Declaration. The role of Declarant is exhausted on constitution of the trust and carries no beneficial interest by reason only of making the declaration.
Kids S-NFT COG$	The minor member governance token described in clause 25, issued to a parent or guardian on behalf of a child, carrying one Sub-Trust B income unit held in trust until age 18 and a proxy governance vote until that age. On the child's 18th birthday the Class kS Unit automatically converts to a full Personal S-NFT COG$ / Class S Unit with all adult governance rights fully activated. No additional unit consideration is payable on conversion. The conversion is irrevocable. Any update to the corresponding Token record must be made only in accordance with Schedule 9, Part A.
ASX COG$	The Class A Unit described in clause 22.
Key Management Policy	Key Management Policy means the Board-approved policy governing: (a) the generation, custody, storage, and recovery of cryptographic keys used in connection with the Members Vault and Approved Ledger Infrastructure; (b) the use of hardware security modules and equivalent key protection technology; (c) the governance arrangements for keys held on Proprietary Nodes; and (d) key succession procedures on the death, incapacity, or removal of any Board Director. The Key Management Policy is an operational governance document adopted by the Board and is not required to be incorporated in this Declaration. It must be consistent with the 3-of-Board requirement entrenched in clause 35(t) at all times.
Landholder COG$	The Class Lh Unit described in clause 23, issued subject to applicable landholding conditions for eligible rural and residential landholders — and, under clause 23.4, automatically issued at no cost to eligible LALCs and PBCs in respect of land held under the Aboriginal Land Rights Act 1983 (NSW) or the Native Title Act 1993 (Cth) — carrying weighted affected-zone governance rights and one corresponding Sub-Trust B income unit per validly issued Unit where this Declaration so provides.
Lock Period	The twelve (12) month period commencing on Expansion Day during which ASX COG$ and other Class A tokens

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	may not be transferred between Members (the 'Stewardship Season').
Member	A person or entity admitted to Beneficiary Holder status under Part 3. Unless otherwise specified, references to Member mean a Beneficiary Holder of Sub-Trust B.
Token / COG$ Token	Token or COG$ Token means a COGS Coin Token — the blockchain smart-contract record or other on-chain record minted or recorded by the Members Vault that digitally represents the rights attaching to a Unit. A Token is evidence of those Unit rights on the Foundation's blockchain infrastructure and is not a separate asset from the Unit it represents. Lawful issue conditions and corresponding COG$ Token-recording conditions are governed by Schedule 9, Part A.
Tier 1 Unit Class	Tier 1 Unit Class means any of the following Unit classes: Personal S-NFT / Class S, Kids S-NFT / Class kS, Business B-NFT / Class B, Pay It Forward / Class P, Donation / Class D, Resident / Class Lr, and Community / Class C. Lawful issue conditions for each Tier 1 Unit Class are governed by Schedule 9, Part A.
Tier 2 Unit Class	Tier 2 Unit Class means any of the following Unit classes: ASX / Class A, Landholder / Class Lh, Business Property / Class BP, and RWA / Class R. Community COG$ / Class C is a Tier 1 Unit Class. Class-by-class lawful issue conditions and corresponding COG$ Token-recording conditions are set out in Schedule 9, Part A.
MIS	The CJVM Hybrid Trust is not a managed investment scheme. The third limb of the section 9 definition is not satisfied because Members exercise day-to-day control over operations of the trust.
Unit	Unit means the legal beneficial interest, membership right, governance right, or class entitlement issued by the Trustee under this Declaration and applicable Australian law. A Unit is the primary legal instrument. Units are the things issued, transferred, cancelled, and held by Members or other entitled holders under this Declaration.
Pay It Forward COG$	The charitable donation Class P Unit described in clause 26, contributed to fund the set-up and initial asset-side allocation of free Personal S-NFT COG$ / Class S Units or Kids S-NFT COG$ / Class kS Units for eligible recipients.
Personal S-NFT COG$	The personal governance membership Class S Unit described in clause 21.

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Member	Member means a person who holds a Beneficial Unit and the corresponding COG$ Token and has thereby accepted the entrenched foundation of the Joint Venture under Part 1 of the Joint Venture Participation Agreement. A person becomes a Member by the act of acquiring a Beneficial Unit and corresponding COG$ Token. No separate signature or joinder is required.
Poor ESG Target	An ASX-listed resource company identified by the Board and FNAC as having a materially poor ESG record that the Foundation specifically targets for unitholder-backed activist engagement as a registered holder of that company's shares.
RWA / Real World Asset	A blockchain-verified digital representation of a real-world financial asset — in this context, ASX-listed shares held on the CHESS Register whose ownership and provenance are recorded and verifiable on the Foundation's blockchain infrastructure, providing Members with an independently auditable on-chain record of the Foundation's Members Asset Pool holdings.
Seat of Country	The parcel of land held in perpetual stewardship under Part 8.
Residential Weighted Vote	The additional weighted vote entitlement of 1,000 weighted vote units, represented by 1,000 Class Lr Units, conferred on an Affected Zone Member for Local Decision Votes, which when added to the Member's standard one-Member-one-vote entitlement gives an effective total of 1,001 votes to 1 vote.
Proprietary Node	Proprietary Node means a physical compute node forming part of the Members Consensus Network or Approved Ledger Infrastructure that is: (a) hosted on land owned by or under the control of the Foundation, a Local Aboriginal Land Council, a Prescribed Body Corporate, or another Traditional Owner entity endorsed by the FNAC; (b) operated under governance arrangements approved by the Board and, where hosted on Traditional Owner Country, endorsed by the FNAC; and (c) equipped with Foundation-approved cryptographic key management hardware meeting the minimum security standards published by the Board from time to time. A Proprietary Node may host Board Director signing keys subject to the Key Management Policy in clause 15A.4.

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SNFT Holder Beneficiary	A natural person holding a Personal S-NFT COG$ or Kids S-NFT COG$ and thereby a beneficiary of Sub-Trust B. See also B-NFT Holder Beneficiary.
BNFT Holder Beneficiary	An incorporated entity or legal person holding a Business B-NFT COG$ (BNFT) and thereby a beneficiary of Sub-Trust B. B-NFT Holder Beneficiaries participate only in the limited governance matters expressly conferred by this Declaration.
Sub-Trust A	The Asset holding / Reinvestment and minting Sub-Trust.
Sub-Trust B	The fiat Dividend Distribution Sub-Trust.
Sub-Trust C	The fiat Community Projects Fund Sub-Trust.
Traditional Owners	The Aboriginal and Torres Strait Islander peoples who, under their traditional laws and customs, have a primary spiritual, cultural, and custodial responsibility for particular Country, including any group with Native Title rights recognised under the Native Title Act 1993 (Cth).
Trustee Act	Trustee Act 1936 (SA), as amended or replaced from time to time.
Trustee Functions	Trustee Functions has the meaning given in clause 5.1 of the Joint Venture Participation Agreement. Those Functions are incorporated into this Declaration by reference and include, without limitation, the International Sister Foundation Execution under clause 5.1(i) of that Agreement, by which the Trustee executes Sister Foundation Protocols with sister foundations in Commonwealth and approved common-law jurisdictions at Member direction under Part 12 of that Agreement. The Trustee has no function or authority outside Trustee Functions.
UNDRIP	United Nations Declaration on the Rights of Indigenous Peoples (2007).
Weighted Vote	The additional voting entitlements for Traditional Owner Custodians, Landholder Members and Affected Zone Members in Local Decision Votes.
Beneficial Class Units	The aggregate number of class units validly issued by Sub-Trust A that participate in beneficial entitlement under this Declaration, excluding Resident COG$ / Class Lr and excluding any unallocated Pay It Forward COG$ / Class P pending final recipient allocation.
Beneficiary Distribution Classes	The class units that participate in the Beneficiary Distribution Stream under this Declaration, being S,

	kS, B, Lh, BP, A, R, C, and any other class expressly designated by this Declaration as participating in Sub-Trust B.
Business Property COG$	The Class BP Unit described in clause 23C, issued subject to applicable propertyholding conditions for eligible commercial property holders and carrying weighted affected-zone governance rights and one corresponding Sub-Trust B income unit per validly issued Unit where this Declaration so provides.
Community COG$	The Class C Unit described in clause 23D, allocated by the Trustee as consideration for approved contributed efforts. Class C functions as an immutable record of barter transactions for goods and services between Members, confers no Sub-Trust B income unit, and confers no national governance vote.
Voting Weight Rules	The rules governing the weighting, calculation, and exercise of Weighted Votes in Local Decision Votes, developed in co-design with the FNAC under clause 12.3.
Resident COG$	The Class Lr governance-only Unit described in clause 23B, issued or allocated by reason of verified residency in a declared Affected Zone, carrying no beneficial interest, no yield, and no Sub-Trust B income unit, and excluded from the beneficial class-unit count.

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3. Interpretation

3.1 Words in singular include plural and vice versa.

3.2 A reference to a person includes a corporation, trust, partnership, joint venture, association, or other legal entity.

3.3 A reference to legislation includes any amendment, re-enactment, or subordinate instrument made under it.

3.4 Headings are for convenience only and do not affect interpretation.

3.5 The Schedules form part of this Declaration.

3.6 In the event of any inconsistency between this Declaration and any CLG constitution or other constituent document adopted for a body corporate appointed under this Declaration as corporate trustee , this Declaration prevails in all matters relating to the CJVM Hybrid Trust and Beneficiary Holder rights, subject always to the Corporations Act to the extent of any inconsistency. In the event of any inconsistency between this Declaration and the Joint Venture Participation Agreement, the Joint Venture Participation Agreement prevails and the Trustee must amend this Declaration to resolve the inconsistency at the earliest practicable opportunity.

3.7 In the event of any inconsistency between this Declaration and the Corporations Act or the Trustee Act, those statutes prevail to the extent of the inconsistency.

3.8 A reference to the Foundation acting 'as Trustee' includes, where the context requires and where applicable law so requires, acting through a corporate trustee if one is appointed under this Declaration. If and when a CLG or other eligible entity is appointed, that entity acts as corporate trustee under the Trustee Act 1936 (SA). Until such an appointment takes effect, the Caretaker Trustee or the trustees then in office continue to act as trustee in accordance with this Declaration. Ordinary appointment of an additional trustee under trust law is distinct from any later appointment, retirement, or replacement of a trustee under the Corporations Act.

3.8B Conditional CLG provisions. Every provision of this Declaration that refers to, assumes, or operates by reference to a Company Limited by Guarantee (CLG) or other corporate trustee — including references to "the directors of the corporate trustee", a CLG constitution, ASIC incorporation, or similar — takes effect only if and when a corporate trustee has been validly appointed under clause 1.8 and only for so long as that corporate trustee remains in office. Until such an appointment takes effect, no CLG-conditional provision operates, and references to the "Board" in any such provision are to be read as references to the trustees then in office under the Caretaker Trustee model.

3.9 No schedule, policy, protocol, software logic, smart-contract implementation, board resolution, side arrangement, or administrative practice may amend, dilute, delay, circumvent, or achieve indirectly what this Declaration or any entrenched provision prohibits directly, except by a valid amendment made in accordance with Part 13.3.9A All references in this Declaration to operational powers, procedures, governance, communications, polls, and record-keeping of the trust are to be read consistently with the Members' operational authority under the Joint Venture Participation Agreement. The Trustee's powers are limited to Trustee Functions. Nothing in this Declaration confers on the Trustee authority over the Members' proprietary cryptographic systems, day-to-day operational execution, or any function reserved to Members under the Joint Venture Participation Agreement.

3.10 Any purported issue, minting, recording, transfer, redemption, exchange, cancellation, or other disposition of a Unit or corresponding COG$ Token made in breach of an entrenched provision, any applicable condition in Schedule 9, Part A, or the fiat-sale prohibition in clause 22.0.2 is ineffective to the extent permitted by law, confers no beneficial entitlement, and must be corrected in the relevant register and governance records as soon as practicable.

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PART 2 — FOUNDATION OBJECTS AND COMMUNITY PRINCIPLES

4. Foundation Objects

The objects of the Foundation as carried out through the CJVM Hybrid Trust are:

4.1 To enable Australians to collectively accumulate direct ownership, stewardship, and governance of ASX-listed Australian resource companies through Member-pooled shareholding held on the CHESS Register and cryptographically verified Real World Assets (RWAs) maintained through Approved Ledger Infrastructure via the CJVM Hybrid Trust — combining traditional securities infrastructure with auditable digital provenance and transparency.

4.2 To collectively exercise the Foundation's rights as a registered CHESS holder of ASX resource company shares — including voting rights at AGMs and board-level ESG engagement — on behalf of the Members.

4.2A To leverage cryptographically verified Real World Asset (RWA) infrastructure maintained through Approved Ledger Infrastructure to provide transparent, auditable, and tamper-resistant records of the Foundation's shareholdings, Unit issuances, corresponding Token records, governance votes, and dividend distributions — ensuring that every Member can independently verify the Foundation's holdings and their own entitlements at any time.

4.3 To administer the dividend structure through Sub-Trusts A, B and C as follows: (a) in respect of the Beneficiary Distribution Classes, 50% of dividends and other income attributable to assets funded through those classes is distributed through Sub-Trust B to eligible Beneficiary Holders and 50% is retained in Sub-Trust A for reinvestment in the Members Asset Pool; (b) in respect of each Donation COG$ / Class D Unit, $2.00 of the Unit consideration is paid directly to Sub-Trust C and $2.00 is invested through Sub-Trust A in approved ASX shares, RWA, or other approved Members Asset Pool assets; and (c) dividends and other income attributable to the invested Donation component form the Donation Dividend Stream, which is split: 50% to Sub-Trust B for distribution to all income unit holders, with Sub-Trust C receiving its proportional entitlement as D Class Beneficial Unit Holder; 25% retained in Sub-Trust A for reinvestment; and 25% applied to Trustee administration costs.

4.4 To provide all Australians with an equal, accessible, and permanent means of participating in the governance and benefits of the nation's resource sector, regardless of wealth.

4.5 To fund community benefit projects, environmental stewardship, and local initiatives through Sub-Trust C.

4.6 To hold a Seat of Country in perpetual stewardship, anchoring the Foundation's mission in the Australian landscape.

4.7 To ensure communities above or adjacent to resource tenements have a legally recognised, weighted voice in decisions affecting their land.

4.8 To apply all income and assets of the CJVM Hybrid Trust solely towards the objects of the Foundation as set out in this Part, in accordance with the Joint Venture Participation Agreement.

4.9 To recognise, protect, and advocate for the intrinsic and growing value of minerals and natural resources held in the ground, and to advance the principle that in-ground mineral wealth is not diminished — and is often substantially enhanced — by remaining unmined where community consent, environmental conditions, or ESG considerations make extraction untimely, harmful, or contrary to the long-term interests of the communities above those resources.

4.10 To demonstrate and promote the principle that in-ground mineral assets held under the stewardship of organised, ESG-engaged Member unitholders carry materially greater governance and commercial value than equivalent assets facing unresolved community opposition — supported by BCG ESG valuation research, EY's consistent finding that social licence is the number one global mining risk, the Juukan Gorge precedent, and

demonstrated evidence that Indigenous consent reduces country risk, permitting timelines, financing costs, and community litigation rates.

4.11 To explore, and where commercially and legally viable implement or advocate for, in-ground monetisation models — including royalty structures, conservation finance, green bonds, carbon and biodiversity credits, and digital asset-backed in-situ reserve recognition — as alternatives or complements to physical extraction.

4.12 To recognise, respect, and give effect to the prior and continuing custodianship of Aboriginal and Torres Strait Islander peoples over the lands, waters, and natural resources of Australia, including: (a) that 57.8% of Australia's critical mineral projects lie within formally recognised Indigenous lands (rising to 79.2% including unresolved Native Title claims); (b) that Traditional Owners hold legally recognised rights to negotiate over resource activities under the Native Title Act 1993 (Cth) and Mabo v Queensland (No 2) [1992] HCA 23; and (c) that the cultural, spiritual, and custodial relationship of Traditional Owners to Country is inseparable from the value of the resources beneath that Country.

4.13 To provide every Australian — regardless of financial means — with a minimum guaranteed economic participation in the returns from the nation's resource sector through the social justice mechanism under which the Personal S-NFT COG$ and Kids S-NFT COG$ each confer one Sub-Trust B income unit, with the applicable class consideration allocated in accordance with this Declaration, including the ASX / RWA investment component attached to those classes where expressly stated.

4.14 To identify, target, and engage as an activist investor any ASX-listed resource company whose ESG record the Board and FNAC determine to be materially poor, with the specific objective of acquiring a minimum 5% registered holding in such companies to exercise material unitholder-backed influence and drive genuine, measurable ESG improvement from within.

4.15 To recognise and protect Aboriginal and Torres Strait Islander custodianship of Country as an intrinsic right — not merely because it creates ESG value or reduces commercial risk, but because it is a right that exists independently of any commercial benefit.

5. Community Principles

The Foundation shall at all times be operated in accordance with:

5.1 Accessibility and Social Justice: A fixed one-time Unit consideration applies to each adult and child S Class membership as stated in Part 6 and the class pricing provisions. Every Australian should be able to participate in the governance of the nation's resource sector on equal terms with every other income unit holder.

5.2 Equal Voice: Every Member holds one equal governance vote on all Foundation-wide decisions, regardless of Unit holdings, corresponding Token quantities, or financial contribution. In Local Decision Votes, Landholder Members and Affected Zone Members receive additional weighted votes reflecting their direct material connection to that land and community.

5.3 Anti-Capture: No individual, institution, or government shall acquire disproportionate influence. No single person or entity may hold more than 1,000,000 Units across all classes combined, together with their representative COG$ Tokens, excluding Resident COG$ / Class Lr Units and their corresponding Tokens, which are auto-allocated governance instruments and do not count toward the anti-capture cap. This cap applies to the underlying Units and the corresponding Tokens that represent them. It is not a dollar or financial value cap and is therefore not affected by any change in the market value of the Foundation's assets. This cap is permanent and entrenched under clause 35(f).

5.4 Transparency: All ASX shares held directly on the CHESS Register in the Foundation's name as Trustee of Sub-Trust A. No intermediaries. All corresponding COG$ Token records are maintained through the Approved Ledger Infrastructure.

5.5 Permanence: The Foundation cannot be privately owned, sold, or captured.

5.6 Intergenerational Equity: Membership interests are inheritable, enabling Member wealth to compound across generations.

5.7 Land Self-Determination: Communities above and adjacent to resource tenements have weighted governance rights in decisions affecting their land and lives.

5.8 Environmental Stewardship: The Foundation's response to poor environmental, ESG, or governance conduct by a portfolio company is engagement — not divestment. Because the Members Asset Pool cannot be sold (clause 8.1C — entrenched), the Trustee must use its rights as a registered CHESS holder to advocate, through voting and direct engagement, for binding environmental standards, rehabilitation obligations, and FPIC compliance. The Foundation's permanent holding gives it a perpetual platform for engagement. The FNAC may escalate any environmental or Cultural Heritage concern to a binding Aggregate Unitholder Direction under clause 13A.

5.9 In-Ground Mineral Value: The Foundation affirms that minerals and natural resources held in the ground are assets of enduring and often appreciating value. The decision to extract, defer, or permanently protect those resources is a Member governance decision — not solely a commercial one.

5.10 The ESG Value Premium: The Foundation affirms, on the basis of documented commercial evidence, that Member support and ESG-engaged governance materially increases the value of in-ground mineral assets.

5.11 Regulatory Integrity: The Members collectively know and are responsible for compliance with all applicable legislation and regulations governing the CJVM Hybrid Trust and their activities within it. The Trustee is responsible for compliance within Trustee Functions. Compliance is an ongoing operational obligation of the Members and the Trustee within their respective roles. It is not a pre-condition to Expansion Day or any other milestone under this Declaration. No Tier 2 Unit Class shall be issued before Expansion Day. No Tier 1 Unit Class shall be issued except in accordance with Schedule 9, Part A and applicable law.

5.12 First Nations Recognition and Collaboration: The Foundation acknowledges that Aboriginal and Torres Strait Islander peoples are the First Nations of Australia and the original custodians of the lands from which the Foundation's Members Asset Pool resources are drawn.

5.13 Acknowledged Tension: The Foundation acknowledges an inherent tension between its distribution structure (Sub-Trust B distributions to Members depending on resource dividends) and its mission (Member governance of extraction decisions). The Foundation's position is that Member governance is more likely to be achieved by organised, engaged unitholders inside the decision-making process than by exclusion from it.

5.14 Equal Governance, Graduated Economics — by Design: In governance, every SNFT Holder Beneficiary holds one equal beneficiary direction right on all Foundation-wide decisions. In economics, holders of ASX Class A Units represented by ASX COG$ Tokens receive proportionally greater Sub-Trust B distributions, subject always to the anti-capture cap of 1,000,000 Units across all classes combined together with their representative COG$ Tokens, excluding Resident COG$ / Class Lr Units and their corresponding Tokens, which are auto-allocated governance instruments and do not count toward the anti-capture cap. These asymmetries are deliberate.

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PART 2A — THE HYBRID TRUST STRUCTURE

7. Establishment of the CJVM Hybrid Trust

7.1 The CJVM Hybrid Trust is established by this Declaration on the date of execution. The trust property is constituted initially by the Initial Trust Property described in clause 1.6A.1A and Schedule 1. From execution, the Caretaker Trustee holds that property and all subsequently acquired trust property on the trusts and subject to the powers and provisions of this Declaration.

7.2 The CJVM Hybrid Trust comprises Sub-Trust A, Sub-Trust B, and Sub-Trust C as described in clause 8.

7.3 The trust property of the CJVM Hybrid Trust is constituted by: (a) all property initially appropriated to the trust under this Declaration; (b) all sums and property paid, transferred, issued, or allocated to Sub-Trust A, Sub-Trust B, or Sub-Trust C under the class rules in this Declaration; (c) all dividends, income, distributions, accretions, substitutions, and reinvestments arising from the Members Asset Pool and other trust assets; and (d) any other property transferred to or acquired by the Trustee for the purposes of the CJVM Hybrid Trust.

7.3A Without limiting clause 7.3: (a) consideration received for Personal S-NFT / Class S Units and Business B-NFT / Class B Units may be allocated following execution of this Declaration where lawful and in accordance with the specific class rules in this Declaration. Consideration received for all other Tier 1 Unit Classes may be allocated only after the applicable Governance Foundation Day pre-conditions and the relevant class-specific pre-conditions have been satisfied. Consideration received for Tier 2 Unit Classes may be allocated only after the applicable Expansion Day pre-conditions and all other class-specific and legal requirements for the relevant class have been satisfied. (b) Donation COG$ / Class D Unit consideration is split on issue as specified in clause 24; (c) Pay It Forward / Class P Unit consideration is held and applied pending allocation as specified in clause 26; and (d) Resident / Class Lr is an allocated governance class only and does not form part of the beneficial class-unit count. The Foundation shall maintain cryptographically verified records of its Members Asset Pool holdings through the Approved Ledger Infrastructure, providing Members with an independently auditable digital governance record that mirrors the Foundation's CHESS Register holdings. The Approved Ledger Infrastructure RWA record is a supplementary transparency layer that does not affect the legal title of the Foundation's shareholdings but provides real-time, tamper-resistant verification of the Foundation's Members Asset Pool to all Members through their Independence Vault Wallets. The Board is responsible for ensuring that those records are kept current and consistent with CHESS Register holdings, with any discrepancy resolved in favour of the CHESS Register.

7.4 In its capacity as Trustee of the CJVM Hybrid Trust, the Trustee owes the following duties to all Beneficiary Holders as required by the Trustee Act 1936 (SA) and applicable equitable principles:

– to act in the best interests of and/or as voted by Beneficiary Holders as a whole in exercising trustee powers and discretions;

– to keep trust property strictly separate from the trustees own property and to maintain separate accounts for each sub-trust;

– to act impartially between classes of Beneficiary Holders, having regard to their respective entitlements;

– to exercise reasonable care, skill, and diligence in managing the trust property;

– not to profit from the trust or permit any conflict of interest to affect its duties as Trustee, except as expressly permitted by this Declaration or with the informed consent of Beneficiary Holders;

– to account to Beneficiary Holders for the trust property and to provide information reasonably requested about the trust; and

– to comply with all obligations imposed by this Declaration, the Corporations Act, the Trustee Act 1936 (SA), and applicable trust law.

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7.4A A trustee may hold Units in the CJVM Hybrid Trust only on the same terms as any other eligible natural person, legal person, or entity under this Declaration. Any trustee who holds Units remains at all times subject to fiduciary duties, disclosure of conflicts, recusal where required by law or this Declaration, and the related-party and conflict protections in this Declaration. No trustee's holding of Units confers any preferential entitlement, governance advantage, or relaxation of any duty, restriction, or remedy applicable under this Declaration or applicable law.

8. The Three Sub-Trusts

– Unit 1 (Sub-Trust B Unit): held by Sub-Trust B, conferring entitlement to the Beneficiary Distribution Stream — being 50% of dividends and income attributable to assets funded by the Beneficiary Distribution Classes held in Sub-Trust A, plus 50% of the Donation Dividend Stream attributable to the invested component of Donation COG$ proceeds.

– Unit 2 (Sub-Trust C Unit): held by Sub-Trust C as D Class Beneficial Unit Holder, conferring entitlement to Sub-Trust C's proportional share of Sub-Trust B distributions from the Donation Dividend Stream, plus the direct $2.00 allocation received on issue of each Donation COG$ / Class D Unit.

8.1A Beneficial Class Unit Count: For the purposes of this Declaration, the total Beneficial Class Units on issue in Sub-Trust A is the aggregate sum of all class units issued by Sub-Trust A, excluding: (a) Resident COG$ / Class Lr units; and (b) any Pay It Forward COG$ / Class P units that have not yet been allocated to a final recipient in accordance with clause 26. Donation COG$ / Class D units are included in the Beneficial Class Unit count. The income unit attached to each D Class unit is held for the benefit of Sub-Trust C as D Class Beneficial Unit Holder, not for the personal benefit of any donor.

– Mandatory reinvestment: dividends reinvested within Sub-Trust A in accordance with clause 31.1 are not a disposal.

– Corporate actions: where a portfolio company undertakes a mandatory corporate action (including a compulsory acquisition, scheme of arrangement under Part 5.1 of the Corporations Act, or delisting that triggers a mandatory buyback) that results in the involuntary disposition of shares, the proceeds must be reinvested in Sub-Trust A as soon as practicable.

– Winding up: assets may be transferred from Sub-Trust A only in the circumstances described in clause 41.2 upon dissolution of the CJVM Hybrid Trust.

8.1B Class Entitlement Mapping: Unless this Declaration expressly provides otherwise, each validly issued Unit in S Class, kS Class, B Class, Lh Class, BP Class, A Class, and R Class carries one corresponding Sub-Trust B income unit. Class D confers one Sub-Trust B income unit per validly issued Donation COG$ / Class D Unit, but that income unit is held for the benefit of Sub-Trust C as D Class Beneficial Unit Holder and not for the personal benefit of the donor. Class C confers no Sub-Trust B income unit. Class P confers no Sub-Trust B income unit and no governance right before allocation. Class Lr confers no beneficial interest and no Sub-Trust B income unit.

8.1C Permanence of Members Asset Pool: The Members Asset Pool is a permanent collective holding. Shares and other assets acquired and held in Sub-Trust A cannot be sold, transferred, or otherwise disposed of, except as follows: (a) mandatory reinvestment within Sub-Trust A in accordance with this Declaration is not a disposal; (b) where a portfolio company undertakes a mandatory corporate action, including compulsory acquisition, scheme of arrangement, delisting-triggered buyback, or other involuntary event, the proceeds must be reinvested in Sub-Trust A as soon as practicable; and (c) assets may be transferred from Sub-Trust A only in the winding-up circumstances described in clause 41.2.

8.1D No Divestment Power: For the avoidance of doubt, the Trustee has no power to sell, divest, or otherwise dispose of any share or asset held in Sub-Trust A by reason only of poor ESG performance. The Foundation's response to poor ESG conduct is engagement through holder rights, not divestment. This remains an entrenched provision.

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8.1E Application of Class Consideration and Income Streams: Sub-Trust A receives and applies class proceeds and class-attributable income as follows: (a) Beneficiary Distribution Classes — proceeds attributable to S Class, kS Class, B Class, Lh Class, BP Class, A Class, and R Class, and any other class expressly designated under this Declaration as a Beneficiary Distribution Class, are applied to or for Sub-Trust A and the Members Asset Pool in accordance with the relevant class rules. Income attributable to assets funded by those classes forms the Beneficiary Distribution Stream and must be allocated: (i) 50% to Sub-Trust B within 5 business days of receipt; and (ii) 50% retained in Sub-Trust A for reinvestment. (b) Donation Class — for each Donation COG$ / Class D Unit issued: (i) $2.00 of the Unit consideration must be paid directly to Sub-Trust C at the time of issue; and (ii) $2.00 of the Unit consideration must be applied to Sub-Trust A for approved ASX share acquisition, RWA acquisition, or other approved Members Asset Pool acquisition. Income attributable to the invested D Class component forms the Donation Dividend Stream and must be allocated as follows: (iii) 50% transferred to Sub-Trust B within 5 business days of receipt for proportional distribution to all Sub-Trust B income unit holders, with Sub-Trust C receiving its proportional entitlement as D Class Beneficial Unit Holder; (iv) 25% retained in Sub-Trust A for mandatory reinvestment in the Members Asset Pool; and (v) 25% applied to Trustee administration costs. One Sub-Trust B income unit is activated in the name of Sub-Trust C for each D Class Unit validly issued. (c) Pay It Forward Class — Class P Unit proceeds must be applied only in accordance with clause 26 to fund the set-up and initial asset-side allocation of the final recipient membership. Until allocation occurs, P Class confers no governance right, no beneficial interest, and no Sub-Trust B income unit. On allocation, the funded membership must be issued as the relevant final recipient class and the corresponding P Class entry cancelled, exhausted, or otherwise closed in the registry.

8.2 Sub-Trust B — Distribution Trust (Fixed Unit Trust): Sub-Trust B receives 50% of the Beneficiary Distribution Stream from Sub-Trust A and must distribute 100% of what it receives directly and proportionally to all holders of Sub-Trust B income units within 60 days of receipt. The Trustee has no discretion to vary or withhold those distributions. Failure to distribute within 60 days constitutes a breach of trust.

8.2A Eligible Distribution Classes: For clarity, the Sub-Trust B distribution pool is calculated by reference to all issued income units, including income units attached to S Class, kS Class, B Class, Lh Class, BP Class, A Class, R Class, and D Class, the latter held by Sub-Trust C as D Class Beneficial Unit Holder. Class C, unallocated Class P, and Class Lr do not participate in Sub-Trust B.

8.3 Sub-Trust C — Community Projects Fund (Discretionary Charitable Trust): Sub-Trust C is the charitable and Community Projects Fund of the CJVM Hybrid Trust. It is funded from two sources, both arising exclusively from Donation COG$ activity: (a) the direct $2.00 component of each Donation COG$ issued at the time of issue; and (b) the proportional Sub-Trust B income distributions received by Sub-Trust C in its capacity as D Class Beneficial Unit Holder. Sub-Trust C holds the beneficial interest associated with D Class and distributes or applies its funds only for community benefit projects, environmental stewardship, educational initiatives, and Indigenous custodianship and cultural heritage purposes in accordance with this Declaration and any ACNC / DGR settings.

8.4 Ring-Fencing: The three sub-trusts remain ring-fenced. Assets and income of one sub-trust shall not be commingled with or transferred to another except as expressly provided in this Declaration.

8.5 Operative Effect: This CJVM Hybrid Trust Declaration is operative on and from execution by the Declarant and Caretaker Trustee.

8.6 Hierarchy: In the event of any inconsistency between this Declaration and any supplementary trust instrument, this Declaration prevails to the extent of the inconsistency. No supplementary instrument may modify or override any entrenched provision or any obligation imposed by applicable law.

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PART 3 — PARTICIPATION AND BENEFICIARY STATUS

9. Unit Classes, COG$ Token Representation, and Beneficiary Status

The following Unit classes are established by this Declaration and may be issued by the Trustee only in accordance with the applicable Australian law and the issuance gates set out in this Declaration. On issue of a Unit in a class for which the Members Vault is then lawfully operational, the Members Vault shall complete the required administrative verification and approval process for the corresponding COG$ Token and shall mint or record that Token at the earliest practicable time thereafter as the digital representation of the rights attaching to that Unit, maintained through the Members Vault on the Approved Ledger Infrastructure. Fiat money paid to the Foundation is consideration for the issue of Units, not consideration for the separate sale of Tokens.

See Schedule 9, Part A for the authoritative Issue-and-Record Matrix of Unit Classes and corresponding COG$ Tokens.

10. Admission and Cessation of Beneficiary Holder Status

10.1 A natural person seeking to become an SNFT Holder Beneficiary, and an incorporated entity or legal person seeking to become a BNFT Holder Beneficiary, must complete the Beneficiary Holder onboarding process approved by the Board, including all KYC and AML/CTF verification required under the Anti-Money Laundering and Counter-Terrorism Financing Act 2006 (Cth). An incorporated entity or legal person seeking to become a BNFT Holder Beneficiary must additionally provide evidence of its legal registration (ABN, ACN, or equivalent) and nominate an authorised representative who is individually KYC-verified.

10.2 Beneficiary Holder status is confirmed upon verified payment of the applicable Unit consideration and lawful issue of the relevant Unit in accordance with the applicable issuance gate and conditions in Schedule 9, Part A of this Declaration.

10.3 The Board may decline an application for Beneficiary Holder status on reasonable, non-discriminatory grounds consistent with this Declaration and applicable law, including where an applicant has failed to satisfy KYC/AML/CTF requirements.

10.4 The Foundation shall maintain a Register of Beneficiary Holders. In the event of any discrepancy between a digital governance record maintained through the Approved Ledger Infrastructure and any off-ledger register or other governing legal record, the governing legal record shall prevail.

10.5 SNFT Holder Beneficiary status ceases upon: (a) death (subject to inheritance rights under clause 21.4); (b) written surrender by the Member; (c) cancellation by two-thirds Board majority following due process for material breach of this Declaration; or (d) dissolution of the Foundation. BNFT Holder Beneficiary status ceases upon: (a) dissolution or deregistration of the entity; (b) written surrender; (c) cancellation by two-thirds Board majority for material breach; or (d) dissolution of the Foundation. Cessation does not affect Sub-Trust B income unit entitlements accrued before the date of cessation.

10.6 The Foundation shall take positive steps to ensure that Members from marginalised communities — including First Nations peoples, people experiencing homelessness, people under state care, and concession card holders — can access membership and participate fully in the Foundation's governance. The Pay It Forward Class P Unit and corresponding Token mechanism is the primary instrument for achieving this object.

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PART 4 — GOVERNANCE AND VOTING

11. National Governance — One Member, One Vote

11.1 On Foundation-wide governance matters, each SNFT Holder Beneficiary holding a Personal S-NFT COG$ / Class S Unit has one (1) equal vote, including each Kids S-NFT COG$ / Class kS Unit that carries a proxy vote exercised by the parent or guardian until the child turns 18. BNFT Holder Beneficiaries do not participate in general national governance. A BNFT Holder Beneficiary may vote only on the appointment, removal, or replacement of the Trustee within the Trustee structure in accordance with clause 26A.2. Other COG$ Tokens representing Units do not confer national governance votes.

11.2 The one-Member-one-vote principle is an entrenched provision under clause 35(e) and cannot be reduced, qualified, or overridden by any resolution of the Members or the Board.

11.3 All national governance votes shall be conducted electronically through the Foundation's approved digital voting mechanism, whether implemented through the Approved Ledger Infrastructure or another approved digital means, using each SNFT Holder Beneficiary's Independence Vault Wallet. The digital governance record is the authoritative and final record of voting entitlements.

12. Weighted Local Votes — Land and Member Governance

The Foundation recognises that the depth of a person's connection to Country varies materially between a recent freehold purchaser and a Traditional Owner with tens of thousands of years of custodial relationship to that Country. Voting Weight Rules must reflect that difference and must therefore be co-designed with the FNAC and Traditional Owners, not set by the Board alone.

12.1 When a proposed Foundation action materially affects a defined Affected Zone, the Board shall call a Local Decision Vote. In a Local Decision Vote, the following Members receive weighted votes in addition to their standard one-Member-one-vote entitlement: (a) Landholder Members holding eligible rural or residential Landholder COG$ (Class Lh); (b) Business Property Members holding eligible commercial Business Property COG$ (Class BP); and (c) Affected Zone Members whose verified residential address falls within a declared Affected Zone (Class Lr).

12.2 The Foundation recognises four categories of participant in weighted Local Decision Votes: (a) Rural and Residential Landholders (Lh); (b) Business Property Holders (BP); (c) Traditional Owner Custodians — LALCs, PBCs, Native Title Holder groups, and other Aboriginal and Torres Strait Islander peoples whose Traditional Owner relationship to Country is recognised under applicable law; and (d) Affected Zone Residents — Members whose verified residential address falls within a declared Affected Zone (Lr).

12.3 The Voting Weight Rules shall be: (a) developed by the Board in co-design with the FNAC and Traditional Owner groups before Expansion Day; (b) structured to give effect to higher relative weighting per holder for Traditional Owner Custodians compared with Commercial and Residential Landholders; (c) capable of prescribing different weighting thresholds and processes for votes affecting Traditional Owner Country; (d) published on the Foundation's website before Expansion Day; and (e) not adopted, amended, or replaced without the prior written endorsement of the FNAC. This is an entrenched provision under clause 35(o).

12.4 The formula of up to 1,000 Landholder (Class Lh) Units and corresponding Landholder COG$ Tokens, Business Property (Class BP) Units and corresponding Business Property COG$ Tokens, and Resident (Class Lr) Units and corresponding Resident COG$ Tokens per hectare or part thereof sets the maximum quantitative basis for weighted vote calculation where applicable under the Voting Weight Rules. Where the FNAC advises that the formula alone does not adequately reflect the depth of a Traditional Owner group's custodial relationship to affected Country, the Board shall — with FNAC endorsement — apply a supplementary custodial weighting.

12.5 The Voting Weight Rules shall be reviewed by the Board and the FNAC at least every three (3) years.

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12.6 Weighted Votes do not apply to Foundation-wide decisions such as Board elections, Deed amendments, or acquisitions not meeting the geographic materiality threshold.

12.7 FNAC-Initiated Local Decision Vote: Where the FNAC advises the Board that a proposed Foundation action materially affects Traditional Owner Country, the Board shall call a Local Decision Vote regardless of whether the Board considers the geographic materiality threshold to be met. If the Board fails to call a vote within 10 business days of a FNAC request, the FNAC Chair may notify Members directly and the vote shall be triggered automatically. This is an entrenched provision.

12A. Affected Zones and Residential Weighted Votes

12A.1 An Affected Zone is a defined geographic area within which Members' residential communities have a material connection to a proposed or ongoing Foundation action.

12A.2 The Board shall declare an Affected Zone when a proposed Foundation action involves: resource extraction, exploration, or significant operational activity within or adjacent to a residential community; infrastructure materially affecting a residential area; environmental impacts extending beyond the tenement boundary; or any impact on Cultural Heritage that the FNAC advises is significant to communities in the area.

12A.3 The declaration process requires: (a) preparation of a preliminary zone map in consultation with the FNAC; (b) publication of the preliminary map and a 28-day public submission period; and (c) publication of the final Affected Zone map with FNAC endorsement for any zone that includes Traditional Owner Country.

12A.4 Subject to clause 12A.5, each Affected Zone Member is entitled to a Residential Weighted Vote of 1,000 weighted vote units (Lr), represented by 1,000 Class Lr Units, for each Local Decision Vote relating to a zone in which their registered residential address falls, in addition to their standard one-Member-one-vote entitlement, giving an effective total of 1,001 votes to 1 vote in that Local Decision Vote. This entitlement is based on residential presence, not financial contribution. The Foundation records that the 1,001-to-1 ratio in a Local Decision Vote is a deliberate expression of the principle that persons whose communities will live with the daily, physical, environmental, and cultural consequences of a Foundation action should not be outvoted on that local decision by non-resident Members, however numerous or well-capitalised. The ratio is confined to Local Decision Votes (as defined in clause 12.1) affecting a declared Affected Zone, and does not apply to Foundation-wide decisions, which remain governed by the one-Member-one-vote principle in clause 11. The Trustee's duty to act impartially as between classes of Beneficiary Holders (clause 7.4) is to be construed consistently with this principle: impartiality in respect of Local Decision Votes means respecting the residential weighting, not displacing it. This is an entrenched provision under clause 35(s).

12A.5 To qualify as an Affected Zone Member, a Member must: (a) provide verified evidence of their residential address; and (b) have had that address registered with the Foundation for at least 12 months immediately before the date of the relevant Local Decision Vote. The 12-month requirement does not apply during the Foundation's first 12 months of operation.

12A.6 A Kids S-NFT COG$ held on behalf of a child whose registered residential address falls within a declared Affected Zone carries a Residential Weighted Vote exercised by the parent or guardian proxy.

12A.7 Members are responsible for keeping their registered residential address current and verified. The Board shall send an annual reminder to all Members to verify their registered address.

12A.8 Any Member who believes their address has been incorrectly included in or excluded from an Affected Zone may submit a written challenge to the Board within 14 days of the zone's publication.

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PART 5 — FOUNDATION BOARD

13. Portfolio Company Voting and ESG Engagement Policy

13.1 The Trustee, as registered CHESS holder of Sub-Trust A shares, shall exercise its voting rights as registered CHESS holder of portfolio company shares at the AGMs of each portfolio company in accordance with Member governance preferences, the ESG Engagement Policy, and the direction of the FNAC on matters affecting Traditional Owner Country. The Foundation shall not abstain from material ESG resolutions.

13.2 The Board shall develop, adopt, and publish an ESG Engagement Policy before Expansion Day setting out the minimum ESG standards the Foundation will actively advocate for, including as a minimum: (a) Cultural Heritage surveys before any ground disturbance on or near Traditional Owner Country; (b) genuine FPIC engagement before commencing or expanding any resource extraction activity; (c) binding emissions reduction commitments aligned with the Paris Agreement 1.5°C pathway; (d) rehabilitation and repair obligations for environmental damage; and (e) transparent community benefit agreements. The Policy shall define the ESG Floor and be reviewed annually with the FNAC.

13.3 The ESG Engagement Policy and all annual ESG performance assessments shall be published on the Foundation's website. The FNAC shall have standing to publish its own assessment alongside the Board's assessment.

13A. Unitholder-Directed Proxy Voting at Portfolio Company Meetings

13A.1 The Trustee acts as proxy for the beneficial interest of all Beneficiary Holders collectively when voting at the general meetings of portfolio companies. The Trustee does not vote according to its own judgment or the Board's preference; it votes in accordance with the calculated aggregate vote of the Beneficiary Holders as determined under this clause.

13A.2 Before any material vote at a portfolio company general meeting, the Trustee shall open a voting period of not less than 10 business days during which SNFT Holder Beneficiaries may cast their preferences on the relevant resolution through their Independence Vault Wallet. Votes are recorded electronically through the Foundation's approved governance infrastructure and weighted on the basis of one preference per eligible voting beneficiary regardless of Unit holdings or corresponding Token quantities, applying the one-member-one-vote principle in clause 11.1.

13A.3 At the close of the voting period the Trustee calculates the Aggregate Unitholder Direction as follows:

– Count the total number of preference votes cast for each option (For, Against, or Abstain).

– The option receiving the simple majority of preferences cast is the Aggregate Unitholder Direction.

– If no majority is achieved (equal votes), the Trustee's tiebreaker is to follow the recommendation of the FNAC where the resolution relates to Traditional Owner Country, ESG standards, or Cultural Heritage; and to Abstain on all other resolutions.

13A.4 The Trustee must exercise its registered CHESS holder voting rights in accordance with the Aggregate Unitholder Direction. The Trustee has no power to override or substitute its own judgment for the Aggregate Unitholder Direction, except where compliance with the Direction would constitute a breach of the Corporations Act, the Trustee Act 1936 (SA), or a court order.

13A.5 Where the timeframe for a portfolio company vote does not permit a full 10-business-day voting period, the Trustee may conduct an expedited voting period of not less than 48 hours and shall use reasonable endeavours to notify all Members of the expedited period.

13A.6 Where no Beneficiary Holder votes during the voting period, the Trustee shall Abstain on the resolution, except where the resolution concerns Cultural Heritage, FPIC, or ESG matters affecting Traditional Owner Country, in which case the Trustee shall seek the FNAC's direction.

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13A.7 The Trustee must publish the outcome of each portfolio company vote on the Foundation's website within 5 business days of the meeting, including: the resolution voted on, the Aggregate Unitholder Direction, and how the Trustee voted.

13A.8 All proxy appointments by the Trustee to exercise voting rights at portfolio company meetings must be executed in accordance with section 250BC of the Corporations Act. The Trustee, acting as holder of record on the CHESS Register, may appoint a proxy to attend and vote on its behalf, but must instruct that proxy to vote in accordance with the Aggregate Unitholder Direction.

14. Board Composition

14.1 The Foundation Board shall comprise not fewer than three (3) and not more than nine (9) Directors, acting in their capacity as officers of the Trustee.

14.2 The founding Board is the governance body first constituted under clause 1.8. It may initially comprise Thomas Boyd Cunliffe alone acting as sole trustee, and it may thereafter be expanded by the appointment or election of additional trustees or directors in accordance with this Declaration. Where the trustee structure remains a board of individual trustees, the founding Board consists of the trustees then in office. Where a corporate trustee is adopted, the founding Board consists of the directors of that corporate trustee as approved under clause 1.8. All Board positions remain subject to the appointment, review, and re-election machinery stated in this Declaration.

14.3 Board Directors shall serve a two (2) year term, renewable for no more than three (3) consecutive terms.

14.4 The Board shall at all times include: (a) at least one Director from a community adjacent to a resource tenement in the Foundation's portfolio; (b) at least one Director with relevant expertise in trust law, governance, or financial services; and (c) at least one Director who is an Aboriginal or Torres Strait Islander person nominated by the FNAC under clause 33A.4. Requirement (c) is an entrenched provision under clause 35(l). It is recommended, but not required, that the Board include at least one Director who is ordinarily resident in South Australia or that the Foundation maintain a registered office or operational presence in South Australia, given that this Declaration is governed by the law of South Australia.

14.5 A person nominated by the FNAC under clause 33A.4 shall be appointed within 30 days of the nomination being received by the Board. Failure to appoint within 30 days results in the nominee being deemed appointed by operation of this clause.

14.6 A Director who is a FNAC nominee may only be removed on the written agreement of the FNAC, or by 75% special resolution of SNFT Holder Beneficiaries on grounds of material breach of duty.

15. Board Powers and Duties as Trustee

15.1 The Board shall in its capacity as Trustee: (a) manage Sub-Trust A; (b) administer the dividend structure; (c) administer Sub-Trust C; (d) maintain the Register of Beneficiary Holders; (e) issue and cancel Units in accordance with this Declaration and applicable Australian law; (f) cause the Members Vault to complete the required administrative verification and approval process and to make the necessary corresponding COG$ Token entries and updates at the earliest practicable time following the relevant lawful Unit event; (g) engage all necessary professional advisers, custodians, and service providers; (h) determine operational procedures, policies, and controls necessary for the administration of the Foundation; and (i) operate the Members Vault on the Approved Ledger Infrastructure, including any equivalent cryptographic enforcement mechanism operating on the Members Consensus Network, subject at all times to the three-of-Board authorisation security requirement entrenched under clause 35(t).

15.2 The Board shall meet not less than six (6) times per year. A quorum for any Board meeting is a majority of Directors then in office. Board meetings may be held electronically.

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15.3 Each Director owes duties to the Foundation under applicable trust law and fiduciary duties, including the duties described in sections 180–184 of the Corporations Act. A Director must act in good faith in the best interests of Beneficiary Holders and for a proper purpose.

15.4 A Director who has a material personal interest in a matter being considered by the Board must disclose that interest in accordance with applicable fiduciary duties and must not vote on or be present during deliberation on that matter.

15.5 The Board shall maintain a register of Directors' material interests, which shall be published in the Foundation's annual report.

15A. Foundation Ledger Administration, Continuity, and Control

15A.1 Foundation custody and control of ledger infrastructure
The Foundation may develop, adopt, maintain, and operate Approved Ledger Infrastructure, including the Members Consensus Network, where the Board considers it necessary or desirable for the proper administration of the Trust and the protection of Beneficiary Holders' interests. The Foundation is not required to rely on third-party infrastructure, commercial ledger services, or external consensus networks. The Board may resolve to migrate the Members Vault from one Approved Ledger Infrastructure to another, including the Members Consensus Network, by Board resolution without requiring a Special Resolution of the Members, subject to clause 15A.3.

15A.2 Development of Foundation ledger infrastructure
The Board may develop or commission the development of consensus protocols, distributed ledger systems, and related infrastructure for use as the Members Consensus Network where the Board considers such development necessary or desirable for the administration of the Trust, the maintenance of governance records, or the protection of Beneficiary Holders' interests. Development may be undertaken: (a) directly by the Foundation; (b) through arrangements with Local Aboriginal Land Councils, Prescribed Bodies Corporate, universities, or other community-aligned entities; (c) through contracted technology developers subject to intellectual property terms that vest ownership of the resulting infrastructure in the Foundation or its nominated community trust; or (d) through any combination of the foregoing. The intellectual property rights in any Members Consensus Network developed under this clause vest in the Foundation as trustee of Sub-Trust A, or in such community entity as the Board determines, and shall not be transferred to any for-profit third party.

15A.3 Record continuity on migration
Any migration of Members Vault operations from one Approved Ledger Infrastructure to another must satisfy all of the following conditions before migration is executed: (a) the continuity of all governance records, Token registries, vote snapshots, Donation Ledger entries, and attestations is verified by independent technical review; (b) the FNAC is notified not less than 30 days before migration, and its endorsement is obtained where any aspect of the migration affects infrastructure on Traditional Owner Country; (c) the 3-of-Board multisig or equivalent cryptographic authorisation requirement is demonstrated to be operative on the destination infrastructure before cutover; (d) a restoration procedure capable of reinstating the prior infrastructure state within 48 hours is documented and tested; and (e) ASIC is notified where the migration constitutes a material change to the Approved Ledger Infrastructure described in any current regulatory filing.

15A.4 Key Management Policy
The Board must adopt and maintain a Key Management Policy before Governance Foundation Day. The Key Management Policy must address: (a) the physical location of hardware security modules used to protect Board Director signing keys; (b) the governance arrangements for Proprietary Nodes hosting key material, including any LALC or Traditional Owner community hosting arrangements endorsed by the FNAC; (c) the minimum hardware security standard for any device holding a Board Director signing key, being not less than FIPS 140-3 Level 3 or equivalent post-quantum validated standard as the Board determines from time to time; (d) the procedure for key generation ceremonies, including whether any ceremony must be witnessed by FNAC representatives; (e) key succession procedures applicable on the death, incapacity, resignation, or removal of any Board Director; and (f)

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annual key management audit requirements. The Key Management Policy may be updated by Board resolution without requiring a Special Resolution of the Members, provided it continues to comply with clause 35(t).

15A.5 Infrastructure expenditure as trust administration expenditure

The Board may authorise expenditure on physical and digital infrastructure required for the administration of the Trust through the Members Consensus Network or any other Approved Ledger Infrastructure as a legitimate operational expense of Sub-Trust A, to be recovered from the 25% Trustee administration allocation within the Donation Dividend Stream and from the administration components of Tier 1 token membership fees, in each case after satisfaction of all direct membership costs. Where the Board proposes to fund Proprietary Node infrastructure on Traditional Owner Country through Sub-Trust C as a community benefit project, the Social Benefit Test in clause 9 of the Sub-Trust C Deed applies and FNAC consultation is mandatory. Any acquisition, development, maintenance, migration, testing, hosting, or continuity measure undertaken under this clause or clauses 15A.1 to 15A.4 may be undertaken only for Foundation administration, governance record integrity, Member-controlled infrastructure, regulatory compliance, or protection of Beneficiary Holders' interests, and does not authorise any variation of Beneficiary rights.

15A.6 Temporary inability to satisfy the three-of-Board threshold

If at any time fewer than three authorised Board Directors are available to satisfy the cryptographic authorisation requirement for Members Vault operations because of death, incapacity, resignation, vacancy, conflict, or other operational failure, the Trustee must treat the Members Vault as unavailable for any discretionary operation requiring that authorisation. No minting, transfer, cancellation, zone update, smart-contract or equivalent ledger operation, or other Members Vault operation requiring that authorisation may be carried out until the Board is reconstituted or directions are obtained from the Supreme Court of South Australia or another court of competent jurisdiction.

15A.7 Preservation and notice during temporary threshold failure

During any period described in clause 15A.6, the Trustee may take only those steps reasonably necessary to preserve trust property, protect records and key material, comply with law, maintain custody and records continuity, notify regulators and affected governance bodies, and seek directions from the Court. The Trustee must promptly give written notice of the threshold failure to the FNAC and to the Caretaker Trustee body or trust records custodian. Any migration testing, continuity measures, or infrastructure steps undertaken during that period are preservation steps only and do not authorise any variation of Beneficiary rights or any bypass of the three-of-Board requirement.

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PART 5A — TRUSTEE POWERS, FEES, EXPENSES AND INDEMNITIES

This Part sets out the Trustee's powers, fees, and indemnities in respect of the CJVM Hybrid Trust. These provisions apply from execution and are grounded in the Trustee Act 1936 (SA) and applicable equitable principles. The CJVM Hybrid Trust is a Joint Venture and is not a managed investment scheme. This Part satisfies the Corporations Act 2001 (Cth) with respect to the powers of the Trustee and the Trustee's fees and indemnities.

16. Powers of the Trustee

16.1 In addition to all powers conferred on the Trustee by this Declaration, the Corporations Act, and applicable trust law, the Trustee has the following powers in respect of the trust property:

– to invest in, acquire, hold, and dispose of ASX-listed shares and other financial products in accordance with the investment mandate set out in clause 30 and the ESG Engagement Policy;

– to hold shares directly on the CHESS Register in the Trustee's name as Trustee, and to exercise all rights attaching to those shares including voting rights, dividend entitlements, rights issues, and corporate action elections;

– to receive, hold, and distribute dividends, distributions, and other income from trust property in accordance with the distribution provisions in Part 7;

– to borrow money and grant security over trust property for the purposes of the Joint Venture, subject to the limitation in clause 16.2;

– to enter into contracts, agreements, and arrangements necessary or incidental to the administration of the CJVM Hybrid Trust;

– to engage agents, custodians, advisers, auditors, and other service providers and to pay their fees and expenses from trust property in accordance with clause 18;

– to open and operate bank accounts and digital asset wallets in the Trustee's capacity as Trustee;

– to operate and maintain the Members Vault, subject to the three-of-Board multisignature requirement;

– to issue and cancel Units in accordance with this Declaration, Schedule 9, and all applicable law;

– to cause the Members Vault to complete the required administrative verification and approval process and to make the necessary corresponding COG$ Token entries and updates at the earliest practicable time following the relevant lawful Unit event;

– generally, to do all things necessary or incidental to carrying out the objects of the CJVM Hybrid Trust as set out in Part 2.

16.2 Limitation on borrowing: The Trustee must not borrow money or grant security over trust property except: (a) to meet a shortfall in funds required to satisfy a distribution obligation under clause 31.2 where trust property is temporarily illiquid; (b) to meet trust administration costs where distributions are pending; or (c) where the borrowing is approved by Special Resolution of the Members. The Trustee must not borrow in order to leverage the investment portfolio or to acquire additional ASX shares beyond what can be funded from Unit consideration proceeds and reinvested dividends.

16.3 The Trustee must exercise its powers in the best interests of Beneficiary Holders as a whole and in accordance with the fiduciary duties imposed by the Trustee Act 1936 (SA) under applicable trust law and the Trustee Act 1936 (SA).

16.4 The Trustee may delegate its powers to employees, officers, or agents of the Trustee, but remains responsible for the exercise of delegated powers. No delegation may override an entrenched provision of this Declaration.

17. Valuation of Trust Property

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17.1 The Trustee shall value trust property and calculate the unit value of each Sub-Trust B income unit in accordance with this clause. Valuations must be conducted at least quarterly and within 5 business days of any of the following: (a) Expansion Day; (b) the end of each financial year; (c) a scheduled Sub-Trust B distribution; or (d) a material acquisition or disposal of trust property.

17.2 Valuation of Sub-Trust A: The value of each parcel of ASX-listed shares held in Sub-Trust A is the last available closing market price on ASX, multiplied by the number of shares held, as at the valuation date. The value of each other asset as at the valuation date.

17.3 Unit Value formula: The value of each Sub-Trust B income unit (Unit Value) is calculated as follows:

– Total value of Sub-Trust A distribution amount divided by the total number of beneficial class units issued.

– Distributable amount = 50% of dividends received into Sub-Trust A from the Beneficiary distribution stream and not yet distributed to Sub-Trust B.

– Unit Value per income unit = Distributable amount ÷ Total number of Sub-Trust B income units on issue.

17.4 The consideration to acquire a COG$ fungible Unit is the then-current Unit consideration for the relevant class as determined under clause 28A, not the Unit Value. The Unit consideration and the Class Unit Value are distinct. A Member's economic interest in the CJVM Hybrid Trust is measured by the number of Sub-Trust B income units they hold, not by the market value of any corresponding Token record.

17.5 Valuation of Real World Assets: Where the Trustee acquires or considers acquiring any asset that is not an ASX-listed security (including any real property, unlisted security, or digital Real World Asset), the Trustee must obtain an independent valuation from a qualified independent valuer before acquisition and at least annually thereafter. The Trustee must publish the valuation in the annual report.

17.6 All valuations shall be conducted by the Trustee acting in good faith and in accordance with Australian Accounting Standards. The Trustee may engage an independent certified valuer for any valuation. The methodology and assumptions used in each valuation shall be disclosed in the Foundation's annual report.

18. Trustee Fees, Expenses and Right of Indemnity

The Trustee may only be paid fees or reimbursed expenses from trust property to the extent expressly authorised by this clause.

18.1 The Trustee is entitled to be paid the following fees from trust property:

– Administration Fee - Personal and Kids S-NFT COG$ (non-fungible token): The $4.00 AUD / $1.00 AUD one-time Unit consideration paid on issue of each Personal S-NFT COG$ / Class S Unit and Kids S-NFT COG$ / Class kS Unit is first applied by the Trustee to that Member's account setup, KYC verification, and ongoing administration. This amount is fixed and entrenched under clause 35. At the end of each reporting period, the Trustee must apply any unused administrative and infrastructure funds to purchase assets on behalf of the Members through Sub-Trust A. The Trustee must not redistribute surplus funds back to the Members. This is a mandatory obligation, not a discretionary power. The application of surplus funds to Sub-Trust A is an operational infrastructure reinvestment, not a passive pooling of member contributions. The Members Asset Pool is the operational resource base of the Joint Venture, collectively directed and controlled by the Members through their proprietary systems.

– Administration Fee - BNFT: The $40.00 AUD one-time Business BNFT / Class B Unit membership consideration (or such higher amount as may be approved under clause 28A) is first applied by the Trustee to entity onboarding, authorised representative verification, and ongoing administration. At the end of each reporting period, the Trustee must apply any unused administrative and infrastructure funds to purchase assets on behalf of the Members through Sub-Trust A. The Trustee must not redistribute surplus funds back to the Members. This is a mandatory obligation, not a discretionary power. The application of surplus funds to Sub-Trust A is an operational

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infrastructure reinvestment, not a passive pooling of member contributions. The Members Asset Pool is the operational resource base of the Joint Venture, collectively directed and controlled by the Members through their proprietary systems.

– Donation Administration Fee: 25% of dividends attributable to Class D Donation COG$ distribution is paid to the Trustee as an ongoing administration fee in accordance with clause 24.2(c). This fee is fixed and entrenched under clause 35(g).

– No management fee, performance fee, or other recurring fee may be charged by the Trustee to trust property beyond the fees expressly specified in this clause 18.1.

18.2 The Trustee is entitled to be reimbursed from trust property for the following properly incurred expenses:

– direct costs of operating the CHESS Register and ASX broking account;

– audit, legal, and compliance costs directly attributable to the CJVM Hybrid Trust;

– costs of operating the Members Vault, including Approved Ledger Infrastructure costs;

– FNAC remuneration and expenses as required by clause 33A.5; and

– other costs directly and necessarily incurred in the administration of the CJVM Hybrid Trust.

18.3 The Trustee's right of indemnity: The Trustee has a right to be indemnified out of trust property for all liabilities reasonably and properly incurred in performing its duties as Trustee, except where the liability arises from: (a) the Trustee's fraud, negligence, or wilful misconduct; (b) breach of the Trustee's duties under Equity Law or where applicable trust law requires; or (c) breach of any entrenched provision of this Declaration.

18.4 The Trustee's right of indemnity takes priority over the interests of Beneficiary Holders. The Trustee may retain and pay out of trust property the amounts to which it is entitled under this clause before distributing trust property to Beneficiary Holders, provided that exercise of this priority right must not prevent a mandatory Sub-Trust B distribution from being made.

18.5 The Trustee must not pay fees or expenses to a related party of the Trustee except on arm's length commercial terms and with prior Class S approval by ordinary resolution.

18.6 All fees and expenses charged or reimbursed by the Trustee must be disclosed in the Foundation's annual report with sufficient particularity to enable Beneficiary Holders to assess their reasonableness.

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PART 5B — COMPLAINTS HANDLING AND INTERNAL DISPUTE RESOLUTION

This Part establishes the complaint mechanism for Trustee conduct. Members may bring complaints about any aspect of the Trustee's exercise of Trustee Functions. Disputes between Members that do not involve Trustee conduct are governed by Part 9 of the Joint Venture Participation Agreement.

19. Member Complaints — Internal Dispute Resolution

19.1 The Trustee shall establish and maintain a complaint and internal dispute resolution process for Trustee conduct. The process must be free to Members, accessible to all Beneficiary Holders, and must provide written responses within the timeframes in clause 19.3. The process must be published on the Foundation's website.

19.2 A Member may make a complaint about any aspect of the CJVM Hybrid Trust's operation, the Trustee's conduct, a distribution, a Unit issuance, a corresponding Token transaction or record, a governance outcome, an Affected Zone declaration, or any other matter affecting the Member's rights under this Declaration.

19.3 Complaints process:

– A complaint may be submitted in writing (including by email) to the Trustee's designated complaints officer, whose contact details must be published on the Foundation's website and updated within 5 business days of any change.

– The Trustee must acknowledge receipt of a complaint within 24 hours of receipt.

– The Trustee must provide a substantive written response to the complaint within 30 calendar days of receipt. Where the complaint is complex or requires FNAC input, the Trustee may extend this period to 45 calendar days, provided it notifies the complainant in writing of the extension before the initial 30-day period expires.

– The written response must state: (a) the Trustee's decision on the complaint and the reasons for it; (b) whether the complaint is upheld, partially upheld, or rejected; (c) any remedial action taken or proposed; and (d) the Member's right to escalate the complaint to the EDR scheme if the Member is not satisfied with the response.

19.4 Complaints involving the FNAC: Where a complaint relates to a matter within the FNAC's functions — including FPIC compliance, Cultural Heritage obligations, ICIP, Affected Zone declarations, or Sub-Trust C grant-making — the Trustee must refer the complaint to the FNAC for review before issuing its substantive response. The FNAC's written view must be included in or attached to the Trustee's response.

19.5 The Trustee shall maintain a complaints register recording all complaints received, the date of receipt, the date of response, the outcome, and any remedial action taken. The complaints register shall be published in summary form in the Foundation's annual report.

19.5A Disputes between Members that do not involve the Trustee's conduct are governed by Part 9 of the Joint Venture Participation Agreement, which establishes the Members' proprietary dispute resolution process through the System. This Part 5B governs complaints to and about the Trustee in respect of Trustee Functions only.

20. External Dispute Resolution

20.1 Where a Member is not satisfied with the Trustee's response to a complaint under clause 19.3, or where the Trustee has not responded within 30 days, the Member may refer the dispute to resolution under Part 9 of the Joint Venture Participation Agreement.

20.2 Nothing in this Part limits any Member's right to bring proceedings in the Supreme Court of South Australia for breach of trust or breach of this Declaration.

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PART 5C — TRUSTEE FUNCTIONS AND MEMBER OPERATIONAL AUTHORITY

5C.1 The CJVM Hybrid Trust is a Joint Venture Cryptographic Governance, Resource Management and Distribution System. The Members are the operators of the trust. They implement and run the trust's day-to-day operations through their proprietary cryptographic systems. The Trustee is the key-holder of the trust safe, not the operator.

5C.2 The Trustee's functions are limited exclusively to Trustee Functions as defined in this Declaration. The Trustee has no power, authority, or discretion beyond Trustee Functions. The Trustee's multisignature role is a security authentication function, not an operational control function. The multisignature mechanism verifies the integrity and validity of Member-initiated transactions. It does not confer decision-making authority. The analogy is to a bank's security protocol — the bank does not control your money because it requires authentication before processing your instruction. If the Trustee fails to apply its cryptographic authorisation within 5 business days to a Routine Authentication Request (being a request to authenticate an operation that does not require the exercise of fiduciary discretion, and that comprises — without limitation — the minting or registry recording of a COG$ Token following lawful issue of the corresponding Unit, the processing of a P2P transfer that complies with the applicable class rules, or the execution of a distribution calculated under clause 31), and has not within that period provided written reasons to the Members identifying the specific legal provision that would be breached by authentication or invoked the Fiduciary Duty Conflict procedure in clause 5C.6, then the Routine Authentication Request is deemed approved and the System must execute the operation automatically. The deemed-approval mechanism does not apply to any operation that engages the Trustee's fiduciary discretion, any operation that is the subject of a Fiduciary Duty Conflict notice under clause 5C.6, or any operation that would require the Trustee to breach applicable law. Nothing in this clause limits the Trustee's duty, or its right, to invoke clause 5C.6 where a genuine fiduciary conflict exists.

5C.3 The Trustee must not: (a) make investment or operational decisions independently of Member direction; (b) convene, control, or interfere with Member governance proceedings; (c) exercise independent discretion over the System, smart contract logic, token operations, or resource management; (d) withhold or delay execution of a valid Members Poll result except where compliance would breach applicable law, in which case the Trustee must notify Members immediately with written reasons within 5 business days; (e) represent to any third party that the CJVM Hybrid Trust is a managed investment scheme; or (f) refuse or delay multisignature execution of a valid Member request without written reasons provided within 5 business days; or (g) refuse to update this Declaration or any Sub-Trust Deed when directed by a valid Members Poll outcome, except where the amendment would contravene an entrenched founding principle or would require the Trustee to breach applicable law.

(h) exercise any power, discretion, or authority not expressly listed as a Trustee Function in this Declaration;

(i) initiate, propose, or implement any operational change to the System, smart contract logic, or governance infrastructure without a valid Members Poll direction;

(j) unilaterally suspend, restrict, or modify any Member's access to their Independence Vault Wallet or the System; or

(k) represent to any person that the Trustee has operational control over the Joint Venture or any function reserved to Members under this Declaration or the Joint Venture Participation Agreement.

5C.4 Subject to the entrenched founding principles of the Joint Venture Participation Agreement and applicable law, the Members have full operational authority over the trust. The Members collectively decide how the trust is run, how its Systems are designed, how its resources are managed, how its governance is conducted, and how its records are kept.

5C.5 Members propose, hold, govern, and conclude their own meetings, polls, proposals, and communications through the System. The Trustee does not convene, chair, or control these proceedings.

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5C.6 Fiduciary Duty Conflict. Where the Trustee considers that executing a valid Members Poll direction or a multisignature request would require the Trustee to breach its fiduciary duty, the Trustee must: (a) identify the conflict in writing to the Members within 5 business days; (b) engage in good faith consultation; (c) if unresolved within 14 days, seek directions from the Supreme Court of South Australia; and (d) pending resolution, preserve the status quo. The Trustee must not use fiduciary duty as a pretext to delay or obstruct valid Member directions where no genuine conflict exists.

5C.7 The Joint Venture Participation Agreement is the supreme governing instrument of the Joint Venture. This Declaration is the legal trust administration instrument, maintained by the Trustee at the direction of the Members. In the event of any inconsistency, the Joint Venture Participation Agreement prevails and the Trustee must amend this Declaration accordingly.

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PART 6 — UNIT STRUCTURE, COG$ TOKEN REPRESENTATION, AND REGULATORY CLASSIFICATION

The lawful issue conditions and corresponding COG$ Token-recording conditions for all Unit Classes are governed by Schedule 9, Part A. The Unit classes, rights, transfer rules, and regulatory classification set out in this Part remain subject to applicable Australian law and, where relevant, final ASIC determination.

21. Personal S-NFT COG$ / Class S Unit — Membership and Governance

21.1 A Personal S-NFT COG$ / Class S Unit is issued to each eligible individual Member on payment of the $4.00 AUD one-time unit consideration when lawful under Schedule 9, Part A and applicable law. Limited to one per natural person. Of the $4.00, $3.00 is applied to Foundation administration and member set-up and $1.00 is applied through Sub-Trust A toward the Class A / ASX COG$ investment component attached to S Class.

21.1A Each holder of a Personal S-NFT COG$ / Class S Unit is entitled to one (1) Sub-Trust B income unit, conferring a proportional share of dividends generated by the Members Asset Pool on equal terms with all other income unit holders, in accordance with the class-unit architecture and distribution rules in this Declaration.

21.2 From Governance Foundation Day, a Personal S-NFT COG$ Token is intended to operate only as the digital representation of the governance and membership rights attaching to the Personal S-NFT COG$ / Class S Unit, maintained through the Members Vault on the Approved Ledger Infrastructure. The Class S Unit and its corresponding Token are not intended by the Foundation to constitute a financial product, investment, or MIS interest in their own right. Any Sub-Trust B distribution received by its holder is characterised by the Foundation as a members bonus arising from membership and trust participation, not as a return on investment, dividend on a financial product, or withdrawal from the CJVM Hybrid Trust.

21.3 The Personal S-NFT COG$ Token representing a Class S Unit is soulbound — it cannot be sold, transferred, assigned, pledged, or otherwise dealt with during the Member's lifetime under any circumstances. On death, it passes to the Member's nominated heir only, or is permanently cancelled if no heir exists or no nomination has been made. This is an entrenched provision under clause 35(i).

21.4 Inheritance: A Member may nominate an heir for their Personal S-NFT COG$ Token through the Members Vault. The nomination may be updated at any time. On a Member's death, the heir nominee will be invited to accept the Unit rights, undergo KYC verification, and activate full membership rights. The inheritance election must be exercised within 12 months of death; if not exercised, the Token is cancelled.

22. Transfer, Exchange, and Issue Rules — Consolidated Summary

22.0 Permitted dealings in COG$ Tokens and the corresponding underlying Units are governed by the class-specific rules set out in this Part and elsewhere in this Declaration. A transfer, assignment, pledge, encumbrance, exchange, or other dealing in any COG$ Token or corresponding Unit is permitted only where this Declaration expressly allows that dealing for the relevant class and where the Members Vault or other approved registry controls are satisfied. Any purported dealing that is not expressly permitted by this Declaration is void.

22.0.1 Upon receipt of a compliant transfer request, three Board Directors must apply their cryptographic authorisation within 5 business days. The Board has no discretion to refuse a transfer that complies with these rules except where: (a) it would breach a rule in this Declaration; (b) the Foundation has reasonable grounds to suspect money laundering or terrorism financing under the AML/CTF Act 2006 (Cth); or (c) ASIC has directed the Foundation not to execute the transfer.

22.0.2 No COG$ Token of any class, and no corresponding Unit, may be sold for cash or any other fiat currency in any secondary dealing, transferred through a fiat-denominated exchange market, listed on any exchange, redeemed for fiat currency, or converted to cash under any circumstances. This prohibition does not prevent the initial payment of fiat consideration to the Trustee for the lawful issue of a Unit under this Declaration. For the avoidance of doubt, the entrenchment in clause 35(w) applies to secondary fiat dealings only and does not prohibit initial Unit

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issuance for lawful fiat consideration. This prohibition is absolute, entrenched, and cannot be overridden by any resolution.

22.1 ASX Class A Units are available to eligible Members at the current unit consideration approved under this Declaration. The initial unit consideration is $4.00 per Class A Unit for eligible SNFT holders and $40.00 per Class A Unit for eligible BNFT holders, in each case subject to increase only in accordance with clause 28A. The anti-capture cap in clause 35(f) applies to underlying Units and their corresponding COG$ Tokens.

22.3 Subject to a twelve (12) month Lock Period (the Stewardship Season) from Expansion Day, this being an entrenched provision under clause 35(j), ASX COG$ Tokens representing Class A Units may be dealt with as follows:

– Own-token class swap — Investment to Landholder (1:1): A Beneficiary Holder who is an eligible Landholder Beneficiary Holder may convert their own ASX COG$ Tokens and the corresponding Class A Units into Landholder COG$ Tokens and the corresponding Class Lh Units on a one-for-one basis through the Members Vault with three-of-Board multisignature authorisation. The conversion is irrevocable.

– Own-token conversion to Donation (1:1): A Beneficiary Holder may convert their own ASX COG$ Tokens and the corresponding underlying Class A Units into Donation COG$ Tokens and the corresponding D Class Units on a one-for-one basis. Irrevocable.

– P2P transfer between Beneficiary Holders — gift or goods and services only: A Beneficiary Holder may transfer ASX COG$ Tokens and the corresponding Class A Units to another KYC-verified Beneficiary Holder as a gift or in exchange for goods or services at a non-monetary value agreed between the parties. No fiat currency is involved at any stage. Executed through the Members Vault with three-of-Board multisignature authorisation within 5 business days.

23. Landholder COG$ / Class Lh Units

23.1 Landholder COG$ / Class Lh Units are available to eligible landholders whose land overlaps with or is adjacent to a resource tenement in which Sub-Trust A holds or targets shares, at the current unit consideration (initially $4.00 per Class Lh Unit, which may be increased by Special Resolution under clause 28A). Landholder COG$ / Class Lh is a fungible class issued subject to applicable class conditions for rural and residential landholders. One hundred per cent (100%) of all Landholder COG$ / Class Lh Unit consideration shall be applied to Sub-Trust A / SBA.

23.2 Landholder COG$ Tokens and the corresponding Class Lh Units may be dealt with as follows:

– Own-token class swap — Landholder to Investment (1:1) at any time. Irrevocable.

– Own-token conversion to Donation (1:1). Irrevocable.

– P2P transfer to another eligible Landholder Beneficiary Holder — gift or goods and services only. No fiat. Three-of-Board multisig required. 5-business-day processing window.

– Property title transfer election: When a Landholder Member transfers their registered land, they must notify the Foundation and elect within 30 days to either: (i) transfer the relevant Tokens and corresponding Units to the incoming property owner (if KYC-verified and eligible); or (ii) retain and convert to ASX Class A Units represented by ASX COG$ Tokens. Default on no election: conversion to ASX Class A Units represented by ASX COG$ Tokens.

– LALC and PBC land: Tokens and Units held by a LALC or PBC transfer only in accordance with applicable legislation governing those entities (see also clause 23.4 — LALC and PBC eligibility, automatic issuance, and zero-cost entitlement).

23.3 A Landholder Member's Weighted Vote is calculated and enforced automatically by the Members Vault smart contract at the time of each vote.

23.4. LALC and PBC Land — Automatic Eligibility and Zero-Cost Issuance

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23.4.1 For the purposes of Landholder COG$ eligibility under clause 23.1, the following landholdings are treated as eligible land in respect of which the holding entity is the eligible Landholder Member:

(a) land held by a **Local Aboriginal Land Council (LALC)** under the Aboriginal Land Rights Act 1983 (NSW); and

(b) land held by or on behalf of a **Prescribed Body Corporate (PBC)** under the Native Title Act 1993 (Cth) in respect of a determined native title holding.

The applicable LALC or PBC is, by operation of this clause, the eligible Landholder Member in respect of that land. No separate application for eligibility is required, but the verification process in clause 23.4.3 must be completed before issuance.

23.4.2 The Trustee must, upon satisfaction of the conditions in clause 23.4.3, automatically issue to the eligible LALC or PBC the maximum of 1,000 Landholder COG$ / Class Lh Units per hectare or part thereof of eligible land so held, as determined by the gazetted area, registered title, or court-determined boundary of the relevant landholding at the date of issuance.

23.4.3 Before completing the required administrative verification and approval process for Tokens under clause 23.4.2, the Trustee must:

(a) obtain the prior written endorsement of the FNAC in accordance with clause 33A.3(d);

(b) verify the entity's status as a LALC under the Aboriginal Land Rights Act 1983 (NSW) or as a PBC registered under the Native Title Act 1993 (Cth), by reference to NSWALC records or the NNTT register as applicable;

(c) determine the area of the eligible land by reference to the relevant gazetted area, title document, native title determination, or such other official boundary record as the Trustee and FNAC agree is appropriate; and

(d) complete KYC and AML/CTF verification in respect of the LALC or PBC as an entity, including nomination of an authorised representative who is individually KYC-verified.

23.4.4 Tokens issued under clause 23.4.2 represent the same Sub-Trust B income unit entitlement and weighted affected-zone governance rights as all other validly issued Landholder COG$ / Class Lh Units. Each validly issued Class Lh Unit activates one (1) Sub-Trust B income unit in the name of the LALC or PBC as Beneficial Unit Holder.

23.4.5 Token and Unit transfers by a LALC or PBC are subject to clause 23.2 and to applicable legislation governing those entities, including the Aboriginal Land Rights Act 1983 (NSW) and the Native Title Act 1993 (Cth). Nothing in this Declaration limits or overrides those statutory transfer restrictions.

23.4.6 Where a LALC acquires additional land or a PBC's native title determination is extended or confirmed over additional area, the Trustee must issue further Class Lh Units in respect of the additional area upon satisfaction of the verification requirements in clause 23.4.3. Subsequent top-up issuances require FNAC notification within 10 business days.

23.4.7 The zero-cost issuance entitlement under this clause cannot be reduced, removed, or made conditional upon payment by any resolution, Board determination, or amendment, unless this Declaration is itself lawfully amended in accordance with clause 40 with the prior written endorsement of the FNAC. This provision is entrenched under clause 35(ab).

23A. RWA COG$ / Class R Units

23A.1 A RWA COG$ Token is the Token issued or recorded through the Members Vault linked to and representing an underlying Class R Unit associated with an in-ground mineral valuation event or other approved real-world asset brought under the Foundation's governance framework. It is minted or recorded only through the Members Vault following completion of the required administrative verification and approval process with three-of-Board multisignature authorisation.

23A.2 A Class R Unit represented by a RWA COG$ Token may be acquired by an eligible Member at the applicable unit consideration approved under this Declaration. The initial consideration is $4.00 per Class R Unit for eligible SNFT holders and $40.00 per Class R Unit for eligible BNFT holders, unless and until a later increase is approved in accordance with clause 28A.

23A.3 The full proceeds of an activated Class R Unit issue are applied to Sub-Trust A for the relevant approved RWA acquisition, valuation-linked governance framework, or other lawful asset-side allocation approved by the Trustee and, where applicable, the FNAC. Each activated Class R Unit carries one (1) Sub-Trust B income unit from the moment of issue.

23A.4 A RWA COG$ Token confers no national governance vote and no local weighted vote by reason only of the issue of the corresponding Class R Unit. Unless and until class-specific dealing rules are expressly adopted under this Declaration, a RWA COG$ Token and the corresponding Class R Unit are non-transferable. If class-specific dealing rules are later adopted consistently with this Declaration and applicable law, any transfer or reclassification must occur only through the Members Vault in accordance with those rules.

23B. Resident COG$ / Class Lr Units

23B.1 Resident COG$ / Class Lr is a fungible, non-beneficial local governance Unit class.

23B.2 For each declared Affected Zone in respect of which a resident is verified as eligible under clause 12A, that resident is allocated 1,000 Class Lr Units for the duration of that zone declaration. Those 1,000 Class Lr Units confer an automatic additional local voting weight of 1,000 votes which, when added to the resident's standard one-Member-one-vote entitlement, gives an effective total of 1,001 votes to 1 vote in any Local Decision Vote relating to that declared Affected Zone. The corresponding Resident COG$ Tokens represent those local voting rights and weighting supplements only. They confer no Sub-Trust B income unit, no Sub-Trust C beneficial interest, and no national governance vote.

23B.3 Class Lr Unit issuance is triggered automatically by the Members Vault once an Affected Zone is declared and the member's verified residential eligibility is confirmed under the geofencing and location eligibility specification approved by the Board.

23B.4 Resident COG$ Tokens representing Class Lr Units lapse automatically if the relevant Affected Zone declaration expires or is revoked, or if the member ceases to qualify as a verified resident of that zone.

23C. Business Property COG$ / Class BP Units

23C.1 Business Property COG$ / Class BP Units are available to eligible commercial property holders at the current unit consideration (initially $40.00 per Class BP Unit, which may be increased by Special Resolution under clause 28A). Business Property COG$ / Class BP is a fungible Unit class issued subject to applicable class conditions for commercial property holders and carries weighted affected-zone governance rights and one corresponding Sub-Trust B income unit per validly issued Unit where this Declaration so provides.

23C.2 Class BP Units and their corresponding Business Property COG$ Tokens may be dealt with only in accordance with the transfer and exchange rules expressly adopted for that class under this Declaration. No Class BP Unit, and no corresponding Business Property COG$ Token, may be sold for fiat currency in a prohibited secondary dealing.

23D. Community COG$ / Class C Units

23D.1 Community COG$ / Class C is a fungible class that may be allocated by the Trustee as consideration for approved contributed efforts, services, stewardship activities, or other Member-benefit contributions recognised under Board-approved class rules. No purchase fee applies unless this Declaration is later amended.

23D.2 Community COG$ / Class C Units confer no Sub-Trust B income unit, no dividend entitlement, and no national governance vote. Class C functions as an immutable record of barter transactions for goods and services

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between Members, allocated by the Trustee as consideration for approved contributed efforts, services, stewardship activities, and other Member-benefit contributions. Class C Units may be transferred P2P only where expressly permitted by class rules and always subject to the no-fiat-sale rule in clause 22.0.2.

23D.3 Initial Community COG$ allocation on admission. By standing direction of the Members under the Joint Venture Participation Agreement, the Trustee must issue the following initial Community COG$ / Class C Token allocation to each Member at the time their admission is confirmed and their S-NFT or B-NFT Token is issued: (a) 1,000 Community COG$ (Class C) to each Individual Member holding a Personal S-NFT COG$ / Class S Token; and (b) 10,000 Community COG$ (Class C) to each Business Member holding a Business B-NFT COG$ / Class B Token. This initial allocation is a standing Members Poll direction and does not require a separate resolution for each admission. No purchase fee applies to the initial allocation.

23D.4 Additional Community COG$ issuance at Members' direction. Beyond the initial allocation under clause 23D.3, the Trustee may issue additional Community COG$ / Class C Tokens at any time by direction of the Members through a Members Poll. Such additional issuance may include allocation for approved contributed efforts, services, stewardship activities, or other Member-benefit contributions as recognised under Board-approved class rules and confirmed by Members Poll. The Trustee has no independent discretion to issue additional Community COG$ beyond the standing allocation in clause 23D.3 without a valid Members Poll direction.

23D.5 Pre-Expansion Day database records. Prior to Expansion Day, Community COG$ / Class C Token records are maintained in the Foundation's operational database with a SHA-256 cryptographic hash generated for each issuance event at the time of minting. These database records with their cryptographic hashes serve as the authoritative record of Community COG$ holdings during the pre-Expansion Day period and enable Members to test and operate the System's governance and exchange functions. On Expansion Day, all Community COG$ database records are migrated to the Approved Ledger Infrastructure and the on-chain record becomes the primary record of Community COG$ holdings from that date.

24. Donation COG$ / Class D Units

24.1 Donation COG$ / Class D Units are available to any person or entity at the current unit consideration, initially $4.00 per Class D Unit, which may be increased by Special Resolution under clause 28A. Of each $4.00 Class D Unit issue consideration, $2.00 is paid directly to Sub-Trust C and $2.00 is invested through Sub-Trust A for approved ASX share acquisition, RWA acquisition, or other approved Members Asset Pool acquisition. The donor receives no personal Sub-Trust B income unit. Instead, one Sub-Trust B income unit is activated in the name of Sub-Trust C as D Class Beneficial Unit Holder for each validly issued Class D Unit.

24.2 Dividends and other income attributable to the invested Donation COG$ component held through Sub-Trust A, being the Donation Dividend Stream, are split in perpetuity as follows: (a) 50% transferred to Sub-Trust B within 5 business days of receipt, for distribution to all Sub-Trust B income unit holders in accordance with their respective income unit entitlements, with Sub-Trust C receiving its proportional share as D Class Beneficial Unit Holder; (b) 25% retained in Sub-Trust A for mandatory reinvestment, compounding the Members Asset Pool over time; and (c) 25% applied to Trustee administration costs. These splits are entrenched under clause 35(g) and cannot be reduced or altered by any resolution.

24.3 The Board shall maintain a Donation Ledger attributing the invested component of Donation COG$ / Class D Unit proceeds and the resulting Donation Distribution Stream. The Donation Ledger shall be published in the Foundation's annual report and independently auditable through the Foundation's registry and governance record.

25. Kids S-NFT COG$ / Class kS Unit

25.1 A Kids S-NFT COG$ / Class kS Unit is acquired by an existing Member on behalf of their child or grandchild at $1.00 per child as unit consideration. The $1.00 is applied through Sub-Trust A toward the Class A / ASX COG$ investment component attached to kS Class. Each Kids S-NFT COG$ / Class kS Unit confers one (1) Sub-Trust B income unit on the child, held in trust until age 18.

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25.2 The Kids S-NFT COG$ Token is soulbound — it cannot be sold, transferred, or otherwise dealt with under any circumstances.

25.3 Proxy voting: The governance vote attaching to the Class kS Unit is held by proxy by the parent or guardian until the child reaches 18.

25.4 Transition at age 18: On the child's 18th birthday the Class kS Unit automatically converts to a full Personal S-NFT COG$ / Class S Unit with all adult governance rights fully activated. No additional unit consideration is payable on conversion. The conversion is irrevocable. Any update to the corresponding Token record must be made only in accordance with Schedule 9, Part A.

25.5 Any dividend distributions accruing during minority are held on trust for the child by the parent or guardian in accordance with applicable state trust law and shall be accounted for separately.

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26. Pay It Forward COG$ / Class P Unit

26.1 The Pay It Forward COG$ / Class P Unit is available to any existing Member or the Foundation Board at the current unit consideration (initially $4.00 per Class P Unit or multiples thereof, which may be increased by Special Resolution under clause 28A). Each Class P Unit funds one free Personal S-NFT COG$ / Class S Unit or Kids S-NFT COG$ / Class kS Unit for one eligible recipient at the then-current membership consideration. Until allocation, the Class P Unit carries no governance vote, no Sub-Trust B income unit, and no beneficial interest. On allocation to an eligible recipient, the Pay It Forward funding is exhausted and the recipient is issued the relevant S Class or kS Class Unit under clause 21 or clause 25.

26.1A Annual donor cap: No single Member or entity may contribute Pay It Forward COG$ / Class P Unit proceeds exceeding $40,000 AUD in any financial year (or such higher amount as may be approved by Special Resolution).

26.2 Eligible recipients are persons who cannot afford the membership fee, including: persons under state care; persons experiencing homelessness; concession card holders; children in low-income households; First Nations community members; and persons nominated by an existing Member.

26.3 Any existing Member may nominate eligible recipients. Nominations shall be kept confidential.

26.4 A donor may specify a named eligible recipient, a category of recipient, or no direction.

26.5 The Board shall develop, in consultation with the FNAC and AUSTRAC, an alternative identity verification pathway for Pay it Forward recipients and First Nations prospective Members that complies with AML/CTF obligations while removing unnecessary documentary barriers to participation.

26.6 Pay It Forward COG$ / Class P Unit proceeds are applied as follows: (a) $3.00 of each Pay It Forward COG$ / Class P Unit is applied to the administration and set-up cost of issuing the funded recipient membership; (b) $1.00 of each Pay It Forward COG$ / Class P Unit is applied through Sub-Trust A toward the Class A / ASX COG$ investment component of the final recipient's funded membership; (c) until allocation, the Pay It Forward COG$ / Class P Unit carries no governance right, no beneficial interest, and no Sub-Trust B income unit; and (d) on allocation to an eligible recipient, the final recipient is issued the relevant class Unit and corresponding Token and the corresponding Class P entry is exhausted, cancelled, or otherwise closed in the registry.

26.7 The Board shall publish an annual Pay it Forward report detailing the number of free memberships issued, categories of recipients, and geographic distribution. The FNAC shall receive a breakdown of free memberships issued to First Nations community members.

26A. Business B-NFT COG$ / Class B Unit — Organisational Membership

26A.1 A Business B-NFT COG$ / Class B Unit is issued to an eligible incorporated entity, registered organisation, cooperative, association, or other legal person (not a natural person) on payment of the membership unit consideration (initially $40.00 AUD, which may be increased by Special Resolution under clause 28A). Limited to one per legal entity. Of the $40.00, $30.00 is applied to Foundation administration and member set-up and $10.00 is applied through Sub-Trust A toward the Class A / ASX COG$ investment component attached to B Class.

26A.2 Each Class B Unit represented by a BNFT Token confers: (a) one (1) limited governance vote exercisable by the entity's authorised representative only on the appointment, removal, or replacement of the Trustee within the Trustee structure; and (b) one (1) Sub-Trust B income unit, conferring a proportional share of dividends on the same per-unit terms as a Personal S-NFT COG$ / Class S Unit.

26A.3 BNFT eligibility and verification: The entity must provide ABN, ACN, or equivalent registration evidence. The authorised representative exercising any BNFT limited governance vote must be a named officer of the entity and must be KYC-verified. The entity is responsible for notifying the Foundation if the authorised representative changes.

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26A.4 The BNFT Token and its corresponding Class B Unit are entity-bound — they cannot be transferred, sold, pledged, or assigned to any other entity or person. On dissolution or deregistration of the entity, the BNFT Token is cancelled and the associated Sub-Trust B income unit ceases.

26A.5 A Class B Unit represented by a BNFT Token does not confer participation in Local Decision Votes, Affected Zone Votes, or any other general governance process. A Class B Unit represented by a BNFT Token does not confer Landholder COG$ weighted votes unless the entity also holds Landholder COG$ / Class Lh Units in its own name, in which case only the Landholder COG$ rights attach.

26A.6 The initial Class B Unit membership consideration of $40.00 AUD may be increased by Special Resolution. The Class B Unit consideration may not be set below the then-current Personal S-NFT COG$ / Class S Unit consideration ($4.00).

28A. Unit Consideration Governance

28A.1 The following Unit consideration amounts are fixed and cannot be changed by any resolution or Board determination:

– Personal S-NFT COG$ / Class S Unit membership consideration: $4.00 AUD — permanently fixed (entrenched provision under clause 35(x)).

– Kids S-NFT COG$ / Class kS Unit membership consideration: $1.00 AUD — permanently fixed (entrenched provision under clause 35(x)).

28A.2 The following Unit consideration amounts may be increased (but not decreased) by Special Resolution (75% majority) of SNFT Holder Beneficiaries at a general meeting:

– ASX Class A Unit consideration for eligible SNFT holders (initially $4.00 AUD per Class A Unit) and for eligible BNFT holders (initially $40.00 AUD per Class A Unit).

– Landholder COG$ / Class Lh Unit consideration (initially $4.00 AUD per Class Lh Unit).

– Donation COG$ / Class D Unit consideration (initially $4.00 AUD per Class D Unit).

– Pay It Forward COG$ / Class P Unit consideration (initially $4.00 AUD per Class P Unit or multiples thereof).

– Business B-NFT COG$ / Class B Unit membership consideration (initially $40.00 AUD).

28A.3 No Unit consideration amount may be decreased below its current level by any resolution. Increases take effect 90 days after the Special Resolution is passed, to allow Members to plan. Existing Unit holders are not affected by consideration changes — changes apply only to future Unit issuances and the corresponding Token minting or recording process. The Unit consideration for each Unit class is payable in fiat currency to the Trustee at the time of lawful Unit issuance. That initial payment is the only fiat transaction expressly permitted under this Declaration in relation to the issue of Units.

28A.4 When considering a unit consideration increase, the Board shall publish a consideration review report at least 30 days before the Special Resolution meeting, addressing: (a) the rationale for the proposed increase; (b) the impact on accessibility, particularly for low-income Members and First Nations participants; (c) the availability of Pay It Forward COG$ / Class P Unit funding for any persons who would be priced out; and (d) the FNAC's views on the impact on First Nations community participation.

28A.5 The anti-capture cap (entrenched under clause 1.5(e) of the Joint Venture Participation Agreement) is a quantity cap of 1,000,000 Units, expressed in Units not financial value, and is not affected by any Unit consideration change.

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PART 7 — FINANCIAL STRUCTURE: DIVIDEND PROVISIONS

30. Members Asset Pool — Sub-Trust A

30.1 All ASX shares and approved assets are held collectively in Sub-Trust A as the Members Asset Pool, with the Trustee registered as the direct CHESS holder. No fund manager, broker nominee, ETF, or other intermediary shall be interposed. This is an entrenched provision under clause 35(d).

30.2 Assets in the Members Asset Pool cannot be sold, transferred, or disposed of. The Basket grows permanently over time through reinvestment of dividends. The Trustee has no power to dispose of Members Asset Pool assets for any reason, including poor ESG performance. This is an entrenched provision under clause 35(z). The Foundation's only tool in response to portfolio company conduct is engagement through voting rights under clause 13A.

30.3 Poor ESG engagement objective: Where the Board and FNAC jointly identify a company as a Poor ESG Target under object 4.14, the Foundation shall establish an acquisition plan targeting a minimum 5% registered holding as rapidly as is prudent, to maximise the Foundation's unitholder-directed influence at that company's general meetings. Because Members Asset Pool assets cannot be sold, the acquisition of shares in a Poor ESG Target is a permanent commitment. The acquisition plan, target timeline, and specific ESG improvement objectives shall be published to Members and reviewed by the FNAC before the Foundation makes its first acquisition in a Poor ESG Target. This is an entrenched provision under clause 35(r).

31. Dividend Structure — Distribution Provisions

31.1 Upon receipt of dividends into Sub-Trust A, the Trustee shall within five (5) business days apply the following split, determined by the Donation Ledger: (a) Beneficiary Distribution Stream — retain 50% within Sub-Trust A for mandatory reinvestment and transfer 50% to Sub-Trust B for distribution to eligible Beneficiary Holders; and (b) Donation Dividend Stream — transfer 50% to Sub-Trust B within 5 business days for distribution to all Sub-Trust B income unit holders, including Sub-Trust C in its capacity as D Class Beneficial Unit Holder; retain 25% within Sub-Trust A for mandatory reinvestment; and apply 25% to Trustee administration costs.

31.2 The 50% Sub-Trust B transfer and the 60-day distribution obligation are mandatory trust obligations under the Trustee Act 1936 (SA) and this Declaration. Failure to distribute within 60 days constitutes a breach of trust and may be enforced by any Beneficiary Holder in the Supreme Court of South Australia. This is an entrenched provision.

31.3 The dividend splits are entrenched founding principles under clause 35(g) and shall not be reduced or altered by any resolution.

31.4 Sub-Trust B distributes its balance proportionally to Beneficiary Holders according to income unit entitlements as set out in Schedule 4.

31.5 This distribution structure has a compounding effect: reinvested dividends expand the Members Asset Pool, increase future dividends, and perpetuate the growth of Member stewardship over time.

31.6 Members bonus election: Each Member entitled to a Sub-Trust B distribution may elect to receive their entitlement as: (a) a members bonus paid in AUD to their nominated bank account - the default where no election is made; or (b) new ASX COG$ Tokens together with the corresponding newly issued Class A Units at the then-current Class A Unit consideration, subject to the anti-capture cap and all applicable eligibility rules. A members bonus is a distribution from Sub-Trust B and is not a fiat sale, redemption, or conversion of any Token.

31.7 The Foundation shall maintain a tax file number register for all Beneficiary Holders and shall comply with all applicable withholding tax obligations under the Income Tax Assessment Act 1997 (Cth) in respect of Sub-Trust B distributions.

PART 7A — COMMUNITY PROJECTS FUND: SUB-TRUST C

27. Sub-Trust C — Community Projects Fund

27.1 The Trustee shall establish and maintain Sub-Trust C as a discretionary charitable sub-trust for distributing grants to community benefit projects, environmental stewardship initiatives, Indigenous custodianship programs, and local community organisations.

27.2 Sub-Trust C is funded from two sources, both arising exclusively from Donation COG$ / Class D Unit activity: (a) Direct issue allocation — $2.00 of each Donation COG$ / Class D Unit issue consideration is paid directly to Sub-Trust C at the time of issue, providing immediate capital for charitable grant-making; and (b) Sub-Trust B income distributions — Sub-Trust C holds one Sub-Trust B income unit as D Class Beneficial Unit Holder for each Donation COG$ / Class D Unit validly issued, and receives its proportional share of Sub-Trust B distributions in that capacity.

27.3 The class of beneficiaries of Sub-Trust C is limited to organisations and purposes that are charitable or for the public benefit under the Charities Act 2013 (Cth), including: (a) not-for-profit organisations aligned with the Foundation's objects; (b) environmental and conservation organisations; (c) educational initiatives on resource governance and ecological stewardship; (d) Indigenous land custodianship, cultural heritage, and First Nations community wellbeing programs — which are a standing priority class and shall receive not less than 30% of Sub-Trust C distributions in each financial year. This minimum allocation is an entrenched provision under clause 35(a) and cannot be reduced or removed by any resolution, amendment to any supplementary instrument, or Board determination; (e) social welfare programs in communities adjacent to resource tenements; and (f) other charitable purposes consistent with the Foundation's objects.

27.4 Sub-Trust C charitable purposes under the Charities Act 2013 (Cth): (a) advancing social or public welfare; (b) advancing the natural environment; (c) advancing reconciliation, First Nations rights, and cultural heritage protection; and (d) advancing community development.

27.4A The Trustee shall seek ACNC registration for Sub-Trust C as a standalone charitable trust at the earliest practicable opportunity after the governance structure required by this Declaration has been duly constituted and any required corporate trustee is in office.

27.5 Sub-Trust C assets are ring-fenced from Sub-Trust A and Sub-Trust B. This is an entrenched provision under clause 35(c).

27.6 The Board shall publish an annual Sub-Trust C grants report detailing all distributions, beneficiary organisations, funded purposes, and community outcomes. The FNAC shall review the grants report annually and provide a written endorsement or statement of concerns.

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PART 8 — SEAT OF COUNTRY AND INDIGENOUS HERITAGE FRAMEWORK

33. Acknowledgement of Country

33.1 The Foundation acknowledges the Traditional Owners of the lands and waters on which it operates and on which the resource tenements comprising the Members Asset Pool are located, and pays its respects to their Elders past, present, and emerging.

33.2 The Foundation acknowledges that the cultural, spiritual, and custodial connection of Aboriginal and Torres Strait Islander peoples to Country is not separable from the economic value of the resources held beneath that Country.

33.3 This acknowledgement shall be recited at the commencement of every AGM, every Board meeting, every FNAC meeting, and shall appear in the opening pages of every annual report.

33A. First Nations Advisory Council (FNAC)

33A.1 The Foundation shall establish a First Nations Advisory Council (FNAC) comprising not fewer than three (3) and not more than seven (7) representatives nominated by Traditional Owner groups whose Country overlaps with resource tenements in which Sub-Trust A holds or targets shares. Establishment of the FNAC is an entrenched provision under clause 35(l).

33A.1A Transitional FNAC constitution. From the date of execution of this Declaration until the FNAC is constituted in accordance with clause 33A.1, the following transitional arrangements apply. (a) The Caretaker Trustee, acting in consultation with Jubullum Local Aboriginal Land Council (as the Foundation's First Nations governance partner and primary FNAC nominating body) and, once constituted, with any other admitted Member, must use reasonable endeavours to initiate the FNAC nomination process within three (3) months of execution, inviting nominations from Traditional Owner groups whose Country overlaps with resource tenements in which Sub-Trust A holds or targets shares. (b) Until the FNAC is constituted with not fewer than three (3) members, references in this Declaration and the Joint Venture Participation Agreement to FNAC endorsement are deferred obligations: no action that would require FNAC endorsement may be taken in the transitional period, except to the extent strictly necessary for the preservation of trust property or compliance with applicable law. (c) The transitional arrangement in clause 33A.1A(b) does not suspend any entrenched founding principle and does not authorise the Trustee to exercise discretion over matters that, once the FNAC is constituted, would require its endorsement. (d) The transitional period ends automatically when the FNAC is first constituted with three (3) members, and any action subsequently requiring FNAC endorsement must obtain that endorsement in accordance with clause 33A and clause 1.5(k) and Part 7 of the Joint Venture Participation Agreement. (e) Longstop. The transitional period may not exceed 24 months from the date of execution of this Declaration without leave of the Supreme Court of South Australia. If the FNAC has not been constituted with three (3) members within 18 months of execution, the Caretaker Trustee must report the position to Jubullum Local Aboriginal Land Council and to any admitted Members, identify the cause of delay, and propose a remediation plan. (f) Enforcement. Any admitted Member has standing to apply to the Supreme Court of South Australia for directions compelling the Caretaker Trustee to take any specific step reasonably required to progress the FNAC nomination process, including directing the Caretaker Trustee to renew outreach to a named Traditional Owner entity or to seek alternative nominations from NSWALC, the National Native Title Tribunal, or a Traditional Owner organisation identified by the Court. (g) Public record. The Caretaker Trustee must publish on the Foundation's website, not less than every six (6) months during the transitional period, a brief statement of the steps taken to constitute the FNAC and the date by which the Caretaker Trustee expects the FNAC to be constituted.

33A.2 The FNAC shall be constituted before Expansion Day, with initial members appointed in consultation with relevant Local Aboriginal Land Councils and Native Title bodies in areas of the Foundation's first target acquisition (Legacy Minerals LGM tenements, northern NSW), including bodies representing Country in the Clarence River and Timbara River region and Drake, NSW.

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33A.3 The FNAC's functions include: (a) advising the Board on all matters affecting Traditional Owners' Country; (b) reviewing and approving the Foundation's FPIC Protocol; (c) nominating the First Nations Director to the Board; (d) overseeing Sub-Trust C grant-making to Indigenous beneficiaries; (e) advising on Cultural Heritage obligations; (f) reviewing Foundation communications for ICIP compliance; (g) co-designing Voting Weight Rules with the Board; (h) endorsing Affected Zone declarations affecting Traditional Owner Country; and (i) reviewing and providing annual endorsement of the Sub-Trust C grants report.

33A.4 The Board shall at all times include at least one Director who is an Aboriginal or Torres Strait Islander person nominated by the FNAC. The Board shall appoint the FNAC's nominee within 30 days of receiving a nomination. If the Board fails to appoint within 30 days of receiving a nomination, the nominee shall be deemed appointed by operation of this clause. The Board shall not reject a FNAC nomination without the written agreement of the FNAC. This is an entrenched provision under clause 35(l).

33A.5 The Foundation shall resource the FNAC adequately, including meeting fees, travel expenses, administrative support, and an annual operational budget determined in consultation with the FNAC. FNAC members' reasonable expenses must be fully met by the Foundation.

33A.5A FNAC quorum: The quorum for any FNAC meeting is a simple majority of currently appointed FNAC members. No FNAC function may be exercised unless a quorum is present.

33A.6 The FNAC shall report annually to Members. FNAC members have the right to include statements reflecting their individual views, even if those views differ from the Board's or other FNAC members' positions.

33A.7 If the FNAC falls below three members due to vacancies, it shall be inquorate for the purposes of providing endorsements required under entrenched provisions until the vacancy is filled. FNAC vacancies must be filled within 60 days after they arise. If a vacancy is not filled within that 60-day period, the Caretaker Trustee or the Board must promptly apply to the Supreme Court of South Australia for directions. The Foundation shall not proceed with any action requiring FNAC endorsement while the FNAC is inquorate, except to the extent necessary to comply with any such court directions.

33B. Seat of Country

33B.1 The Foundation shall hold a parcel of land in Australia (the Seat of Country) in perpetual stewardship as a foundational expression of the Foundation's mission and its relationship to the land.

33B.2 The Seat of Country shall not be sold, mortgaged, or otherwise dealt with inconsistently with this Part. This is an entrenched provision under clause 35(h).

33B.3 The FNAC shall be engaged at the earliest stage of identifying candidate land for the Seat of Country. The Foundation acknowledges that it operates from Drake Village Resource Centre on Wahlubal Country, and that the Jubullum Local Aboriginal Land Council successfully reclaimed land near Drake in 2023. Any candidate land in the Drake or Clarence River region must be approached with particular sensitivity to this context.

33B.4 Before acquiring any land as Seat of Country, the Foundation shall: (a) receive the FNAC's co-designed shortlist of candidate sites; (b) obtain independent legal advice on the appropriate land holding mechanism; (c) commission a Native Title search from a qualified practitioner; and (d) initiate FPIC engagement with relevant Traditional Owners. No land shall be acquired unless the FNAC has endorsed the acquisition.

33B.5 The Seat of Country shall be managed for environmental, cultural, and community benefit in accordance with the Foundation's objects and the direction of the FNAC.

33C. Free, Prior and Informed Consent (FPIC)

The Foundation adopts FPIC as a binding operational and legal standard. FPIC is a right of Traditional Owners and not merely a procedural step. Withholding consent is as legally valid as giving it and carries no adverse consequence for the relevant Traditional Owner group.

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33C.1 Before taking any of the following actions, the Foundation shall seek and obtain FPIC from the relevant Traditional Owners: (a) acquiring a significant shareholding in an ASX resource company whose tenements materially overlap with identified Traditional Owner Country; (b) voting on resolutions that would approve new resource extraction, exploration, or expansion on Country; (c) acquiring the Seat of Country; (d) publishing communications that reference the Cultural Heritage or traditional knowledge of any Traditional Owner group; and (e) naming any specific Country, site, or cultural place in Foundation materials.

33C.2 The FPIC process shall: be initiated before decisions are made; provide complete, accurate, and accessible information; allow sufficient time for Traditional Owner decision-making processes; be conducted without coercion, inducement, or pressure; and be documented in writing.

33C.3 Where Traditional Owners withhold consent, the Foundation shall not proceed with the proposed action. The Board shall record the withholding of consent and notify Members in writing. This is an entrenched provision under clause 35(m).

33C.4 The Foundation shall publish and maintain a public FPIC Protocol, developed in consultation with the FNAC, reviewed at least every three years.

33D. Cultural Heritage Protection

33D.1 The Foundation shall comply with all applicable Cultural Heritage legislation, including the Aboriginal and Torres Strait Islander Heritage Protection Act 1984 (Cth), the Aboriginal Heritage Act 1988 (SA) (or its successor), and applicable state and territory heritage Acts.

33D.2 When exercising its voting rights as a registered CHESS holder of portfolio company shares, the Foundation shall advocate for resolutions requiring resource companies to conduct Cultural Heritage surveys before commencing any ground disturbance activities on or near Traditional Owner Country.

33D.3 The Foundation shall not reproduce, reference, appropriate, or profit from the Cultural Heritage, sacred knowledge, or ICIP of any Aboriginal or Torres Strait Islander peoples without: (a) FPIC of the relevant Traditional Owners; (b) a written agreement on attribution, use, and benefit sharing; and (c) written approval of the FNAC. This is an entrenched provision under clause 35(n).

33D.4 The Foundation shall include Cultural Heritage impact as a mandatory consideration in its ESG assessment of any proposed acquisition for the Members Asset Pool.

33E. First Nations Member Participation

33E.1 First Nations Members hold all the same rights as other Members under this Declaration, and no additional barriers shall be imposed on their participation.

33E.2 The Foundation shall take positive steps to ensure First Nations peoples can participate fully in the Foundation's membership and governance structures, including through the Pay it Forward mechanism and alternative identity verification under clause 26.5.

33E.3 Sub-Trust C distributions shall designate Indigenous land custodianship, cultural heritage protection, and First Nations community wellbeing programs as a standing priority class of beneficiaries receiving not less than 30% of all Sub-Trust C distributions each financial year.

33E.4 The Foundation shall observe NAIDOC Week annually and publish a public statement of its progress in delivering First Nations partnership commitments.

33E.5 The Board shall develop, in consultation with the FNAC and AUSTRAC, an alternative identity verification pathway for First Nations prospective Members and Pay it Forward recipients that complies with AML/CTF obligations while removing unnecessary documentary barriers to participation.

33F. Digital Self-Determination and Infrastructure — Declaration Obligations

33F.1 The Members' right to develop, own, and operate their own Member-controlled infrastructure is an entrenched founding principle under clause 1.5(p) of the Joint Venture Participation Agreement. The operational requirements of that infrastructure, including the Approved Ledger Infrastructure, the Members Consensus Network, and the [Gundoo Ngiri] Proprietary Node, are set out in Part 2 of that Agreement and are incorporated into this Declaration by reference. This Part 33F sets out only the Trustee-specific obligations of this Declaration in connection with that infrastructure.

33F.2 Where the Members direct the Trustee to host Members Consensus Network infrastructure on Traditional Owner Country, on land held by a Local Aboriginal Land Council, or on land under the stewardship of a Prescribed Body Corporate, the Trustee must: (a) give effect to that direction in accordance with clause 5.1 of the Joint Venture Participation Agreement (Trustee Functions); (b) ensure that FNAC endorsement has been obtained in accordance with clause 33A of this Declaration before the hosting arrangement is given effect; (c) document each such hosting arrangement in the Foundation's annual report; and (d) give effect to any change in the hosting arrangements in accordance with the same procedures.

33F.3 Joint Venture data held on the Approved Ledger Infrastructure — including Member data, governance records, token registries, and attestations — are assets of the Joint Venture. The Trustee must: (a) not migrate such data to infrastructure outside the Trustee's control or outside Australia without a Special Resolution of the Members and prior FNAC endorsement; (b) maintain data residency within Australia unless otherwise required by applicable law or approved by the Members by Special Resolution, consistently with any cross-border data arrangement under Part 12 of the Joint Venture Participation Agreement; and (c) ensure that any infrastructure provider contracted to host such data is contractually bound to treat the data as Joint Venture property not subject to unilateral access, seizure, or transfer.

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PART 9 — PROTECTIONS AND ENTRENCHMENT

34. Foundation-Wide Structural Protections

34.1 The Foundation cannot be privately owned, sold, captured, or dissolved for private benefit. This protection is entrenched and incorporated by reference from clause 1.5(t) of the Joint Venture Participation Agreement.

34.2 No person, corporation, or government shall acquire disproportionate control over the Foundation's governance or assets. The anti-capture cap of 1,000,000 Units across all classes combined (excluding Class Lr) is entrenched and incorporated by reference from clause 1.5(e) of the Joint Venture Participation Agreement.

34.3 The one-Member-one-vote principle for Foundation-wide decisions is entrenched and incorporated by reference from clause 1.5(d) of the Joint Venture Participation Agreement.

34.4 The protections in clauses 34.1 to 34.3 are not altered by any resolution of the Board, the Members, or any court of competent jurisdiction except through the entrenched-amendment procedure in clause 35A.

34A. Anti-Greenwashing and Non-Endorsement Protections

34A.1 The Foundation's holding of shares in any ASX-listed resource company does not, and shall not be construed as, an endorsement of that company's conduct, ESG record, or governance practices.

34A.2 No ASX-listed company may use the Foundation's name, logo, or membership in any external communication without the prior written consent of the Foundation Board.

34A.3 Where a portfolio company publicly represents its ESG credentials in a way the Board or FNAC considers materially misleading, the Foundation shall: (a) publish a public statement correcting the misrepresentation; (b) raise the misrepresentation at the next available general meeting through the Aggregate Unitholder Direction mechanism under clause 13A; and (c) escalate unitholder-directed voting against the relevant board resolution or directors responsible.

34A.4 Where the Foundation acquires shares in a company specifically because of that company's poor ESG record, the Foundation shall disclose to Members the basis for the acquisition, its engagement objectives, and annual progress against those objectives.

34A.5 The FNAC shall have standing to review and comment on every ESG performance assessment published by the Foundation, and to publish its own assessment alongside the Board's assessment.

35. Entrenched Provisions

35.1 The entrenched founding principles of the Joint Venture are set out in clause 1.5 of the Joint Venture Participation Agreement and are incorporated into this Declaration by reference. This Declaration may not be administered in any way inconsistent with those entrenched principles, and any purported amendment of this Declaration or any instrument subordinate to it that would contravene an entrenched principle is void and of no legal effect. The procedure for amendment of an entrenched principle is set out exclusively in clause 1.6 of the Joint Venture Participation Agreement and in clause 35A of this Declaration. Reader's guide: references elsewhere in this Declaration in the form "clause 35(a)", "clause 35(b)", and so on up to "clause 35(ae)" are cross-references to the correspondingly identified entrenched principle in clause 1.5 of the Joint Venture Participation Agreement. The letter orderings in the two instruments are not identical. Each entrenched principle in clause 1.5 of that Agreement contains a parenthetical stating its Declaration clause 35 letter (for example, clause 1.5(e) of that Agreement concludes "(Declaration clause 35(f))", confirming the anti-capture cap). To resolve any reference in the form "clause 35(X)" the reader should consult clause 1.5 of that Agreement and identify the paragraph whose parenthetical names clause 35(X). A copy of clause 1.5 of the Joint Venture Participation Agreement, or an extract of its letter-keyed entrenched principles, must be included as an annex to the electronically executed instrument of this Declaration stored under clause 1.5A, and must be included in any certified copy produced under that clause,

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so that any person accessing this Declaration can resolve any reference of the form "clause 35(X)" without recourse to a separate document.

35A. Procedure for Amending Entrenched Provisions

35A.1 For the avoidance of doubt, no entrenched founding principle incorporated by reference into this Declaration under clause 35 (being the principles set out in clause 1.5 of the Joint Venture Participation Agreement) may be amended, removed, or overridden by any internal act or instrument, including: a special resolution of Beneficiary Holders; a resolution of the Board; a Members Poll; or any supplementary deed, side agreement, or contractual arrangement purporting to override this Declaration. Any purported amendment or override in contravention of this clause is void and of no legal effect. Nothing in this clause limits the jurisdiction of a court of competent jurisdiction under the Corporations Act, the Trustee Act 1936 (SA), or the general law. The Members acknowledge that a court of competent jurisdiction may, upon application, vary an entrenched principle where the Members unanimously consent and the court is satisfied that the variation is appropriate in all the circumstances, including under section 59C of the Trustee Act 1936 (SA) or the rule in Saunders v Vautier (1841) 4 Beav 115.

35A.2 Any amendment to a non-entrenched provision that has the practical effect of undermining, reducing, or circumventing an entrenched founding principle shall be treated as an amendment to that principle and is void and of no legal effect.

35A.3 Where there is any doubt as to whether an amendment affects an entrenched provision, the Board shall obtain independent legal advice and publish that advice to Members before putting the amendment to a vote.

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PART 10 — MEETINGS OF SNFT HOLDER BENEFICIARIES

36. General Meetings

36.1 The Trustee shall hold an annual general meeting of Members within six (6) months of the end of each financial year (30 June). Meetings shall be conducted in accordance with Part 6 of the Joint Venture Participation Agreement and, to the extent applicable law requires, any applicable Corporations Act provisions.

36.2 Quorum for ordinary Member meetings: 20 Members present in person, by proxy, or by electronic participation; or 1% of all Members (whichever is the greater). Only those classes with voting rights on the relevant matter may vote.

36.3 Ordinary resolutions pass by simple majority. Special resolutions — including Deed amendments, dissolution, removal of Directors, and reserved matters — require a 75% majority of votes cast. Where a special resolution receives between 50% and 74% of votes cast, it is returned for redrafting and consultation, subject to the following procedural requirements: (a) the Board must publish, within 10 business days of the vote result, a written statement of the principal concerns and objections raised by Members who voted against; (b) a redrawn resolution must address those stated concerns in a material and identifiable way before it may be resubmitted; (c) no redrawn resolution may be put to a vote less than 30 days after the prior vote on the same subject matter; and (d) a resolution on the same subject matter may be redrawn and resubmitted a maximum of three times. A resolution is finally rejected when it either receives less than 50% on any vote, or has been returned for redrafting and failed three times without achieving 75%. A finally rejected resolution may not be resubmitted on the same or substantially similar subject matter for a period of 24 months from the date of final rejection, unless a material change in circumstances justifies early resubmission as determined by the Board with the prior written endorsement of the FNAC where the subject matter relates to First Nations matters.

36.4 Electronic voting via approved digital governance infrastructure: All governance votes shall be conducted electronically through the Foundation's approved digital voting mechanism using each SNFT Holder Beneficiary's Independence Vault Wallet. The digital governance record maintained through the Approved Ledger Infrastructure is the authoritative and final source of entitlement for every vote.

36.5 Notice of meetings: Notice of any general meeting shall be given to all SNFT Holder Beneficiaries not less than 21 days before the meeting (or 28 days for meetings at which special resolutions are to be considered). Notice shall be given by email and by publication on the Foundation's website.

36.6 The FNAC Chair shall be entitled to attend and speak at all general meetings of SNFT Holder Beneficiaries as an observer.

36A. Virtual and Electronic Meetings

36A.1 All general meetings of Members may be held entirely by virtual means — including by video conference, telephone conference, or other electronic communication technology — without any requirement for a physical meeting place. A meeting held entirely by virtual means is as valid as a meeting held in person.

36A.2 The Trustee may, in its discretion, hold a meeting partly by virtual means and partly in person (a hybrid meeting), or may allow Members to participate and vote by electronic means from a location other than the principal meeting place.

36A.3 The Foundation's approved digital voting mechanism satisfies the requirement for voting at meetings. Members may cast votes on any resolution electronically through their Independence Vault Wallet at any time during the designated voting period without attending the meeting.

36A.4 The Trustee may designate a voting period of not less than 5 business days and not more than 30 days for any resolution, during which Members may cast votes electronically. The result is determined at the close of the voting period.

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36A.5 Notice of a virtual or hybrid meeting must state the technology platform or access method to be used, and the Trustee must take reasonable steps to ensure all Members can access and participate in the meeting using that technology.

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PART 11 — FINANCIAL AND REPORTING OBLIGATIONS

37. Financial Records and Reporting

37.1 The Trustee shall maintain financial records for the trust and each sub-trust in accordance with Australian Accounting Standards (AASB) and applicable law.

37.2 Annual financial statements for the trustee structure then in office and each sub-trust shall be audited by a registered Australian auditor (RCA) and presented to SNFT Holder Beneficiaries at each AGM. Where a CLG or corporate trustee has been appointed under clause 1.8, the financial statements of that entity shall also be audited.

37.3 The Foundation shall publish on its website: annual audited financial statements; CHESS Register holdings (updated quarterly); all ASIC and ATO regulatory correspondence and rulings; Sub-Trust B distribution records; the Sub-Trust C grants report; the Donation Ledger and its audited outcomes; all declared Affected Zone maps; the ESG Engagement Policy and annual ESG performance assessments; the annual Pay it Forward report; and a plain-English annual report to Beneficiary Holders.

37.4 Trust property shall be kept strictly separate from the Trustee's own personal or corporate property. Separate accounts shall be maintained for each sub-trust and, where a CLG or corporate trustee has been appointed under clause 1.8, for that entity's own corporate account.

37.5 The Trustee shall maintain a Sub-Trust B distribution register recording all distributions made to Beneficiary Holders, the date of each distribution, and the amount per income unit.

37.6 The Foundation's financial year is 1 July to 30 June of each year.

37A. Electronic Register of Beneficiary Holders

37A.1 The Trustee shall maintain a Register of Beneficiary Holders in accordance with applicable law and this Declaration. The Register may be maintained entirely in digital form through the Approved Ledger Infrastructure, provided that the digital governance record is kept consistent with any off-ledger register and any superior governing legal record. In the event of any discrepancy, the superior governing legal record prevails, including the CHESS Register in relation to Shares relevant to Class A Units.

37A.2 The Register must record for each Beneficiary Holder: (a) full legal name; (b) address; (c) Unit class and quantity held and the corresponding Token class and quantity recorded; (d) number of Sub-Trust B income units held; (e) date of admission; and (f) any transfer, conversion, or cessation of holding.

37A.3 A Beneficiary Holder may inspect their own record in the Register at any time through their Independence Vault Wallet. The Trustee must provide a copy of a Beneficiary Holder's record within 5 business days of a written request.

37A.4 The Trustee must update the Register within 2 business days of any Unit issuance, corresponding Token minting or recording, transfer, conversion, or cancellation. The digital governance record maintained through the Approved Ledger Infrastructure constitutes the authoritative operational record of each update, subject to clause 10.4 and any superior governing legal record.

37B. Valuation Disclosure

37B.1 The Trustee must publish the Unit Value (as calculated under clause 17.3) on the Foundation's website within 5 business days of each quarterly valuation. The published valuation must state the valuation date, the methodology used, the total value of Sub-Trust A, the total number of income units on issue, and the resulting Unit Value per income unit.

37B.2 The Trustee must disclose in the annual report: (a) all valuations conducted during the financial year; (b) any change in valuation methodology; (c) any independent valuations obtained under clause 17.5; and (d) any significant change in the value of trust property and the reasons for it.

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PART 12A — GOVERNANCE FOUNDATION DAY: TIER 1 PRE-CONDITIONS

Governance Foundation Day and Expansion Day are distinct and independent milestones. Governance Foundation Day is the Foundation's first online cryptographic Members Poll. Expansion Day is the date on which the Members activate the [Gundoo Ngiri] Proprietary Node and the full Member-operated JV system goes live. Neither milestone is dependent on any external approval or regulatory pre-condition. Whether any particular Tier 1 Unit Class may be lawfully issued at or after Governance Foundation Day is governed exclusively by Schedule 9, Part A, together with any applicable class-specific conditions and all applicable legal requirements. Expansion Day shall not occur, and no Tier 2 Unit Class shall be issued to Members, until all of the following pre-conditions are satisfied.

The pre-conditions for Expansion Day are set out above and in the Tier 2 conditions below. All Expansion Day conditions — including the operational, regulatory, and structural requirements — must be satisfied before any Tier 2 Unit Class is issued and before Expansion Day can occur. Governance Foundation Day is a separate milestone and may occur independently. Class-by-class lawful issue conditions and corresponding COG$ Token-recording conditions are set out exclusively in Schedule 9, Part A.

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PART 12B — EXPANSION DAY: PROPRIETARY NODE ACTIVATION AND TIER 2 EXPANSION

12B.1 Expansion Day occurs on the date on which the [Gundoo Ngiri] Proprietary Node processes its first live cryptographic operation.

12B.2 Expansion Day requires nothing beyond the will of the Members and the operational readiness of the [Gundoo Ngiri] Proprietary Node. No external approval, regulatory confirmation, or institutional permission is required.

12B.3 The following steps must be completed before Expansion Day: (a) the Inaugural Meeting has been held and the Board has been constituted with not fewer than three Directors capable of satisfying the 3-of-Board cryptographic authorisation requirement; (b) the Key Management Policy has been adopted and Board Director signing keys have been generated in accordance with that Policy; (c) the [Gundoo Ngiri] Proprietary Node has been built, tested, and is technically capable of processing live Members Vault operations; (d) the FNAC has endorsed the name, hosting location, and governance arrangements of the [Gundoo Ngiri] Proprietary Node in accordance with clause 33A and the ICIP obligations of this Declaration; and (e) the smart contracts implementing the Tier 2 rules of this Declaration have been independently audited in accordance with JVPA clause 3.3 and confirmed to faithfully implement the Declaration.

12B.4 From Expansion Day, all Tier 2 Unit Classes are available for issuance in accordance with Schedule 9, Part A and the universal issue conditions in Schedule 9, Part B.

12B.5 From Expansion Day, the Members and the Trustee comply with all applicable legislation and regulations in respect of all activities of the CJVM Hybrid Trust. Compliance is an ongoing operational obligation, not a gate.

12B.6 No resolution of the Board or the Members may waive or bring forward the steps in clause 12B.3. No Tier 2 Unit Class may issue before Expansion Day.

38. Regulatory Engagement and Beneficiary Holder Rights

38.1 The CJVM Hybrid Trust is not a managed investment scheme within the meaning of section 9 of the Corporations Act 2001 (Cth). The limb-by-limb analysis under section 9, and the Joint Venture's self-assessed position, are set out in clause 4.12 of the Joint Venture Participation Agreement and are incorporated into this Declaration by reference.

38.1A The Foundation shall maintain active engagement with the ASIC Innovation Hub to: (a) inform ASIC of the Foundation's self-assessed regulatory position as stated in clause 38.1; (b) provide ASIC with copies of the Joint Venture Participation Agreement, this Declaration, and the Sub-Trust Deeds as supporting material; (c) inform ASIC that COG$ Tokens of all classes are governance, membership, and Joint Venture participation instruments within the Joint Venture and are not intended to be financial products; (d) seek guidance, without conceding that any authorisation is required, on whether ASIC considers any aspect of the CJVM's operations to require any regulatory authorisation; and (e) cooperate with any ASIC inquiry, while maintaining the Foundation's self-assessed position.

38.1B Nothing in this clause constitutes an acknowledgement that the CJVM Hybrid Trust is or may be a managed investment scheme, that COG$ Tokens are financial products, or that the Trustee requires an AFSL. The Foundation engages with ASIC as a matter of good governance and transparency, not because the Foundation accepts that any licensing or scheme-registration chapter of the Corporations Act applies to the CJVM. The Foundation draws a clear distinction between two separate regulatory inquiries: (a) whether any individual COG$ Token constitutes a financial product within the meaning of Chapter 7 of the Corporations Act — a product characterisation question that may be relevant from Expansion Day for Tier 2 tokens; and (b) whether the CJVM Hybrid Trust is a managed investment scheme within the meaning of section 9 — a scheme characterisation question that depends on the structure and operation of the Joint Venture as a whole. The Foundation's

acknowledgment that Tier 2 tokens may constitute financial products under INFO 225 does not constitute or imply any acknowledgment that the CJVM Hybrid Trust is a managed investment scheme. These are legally independent questions. A multi-party association operating through a trust structure may use financial products as internal instruments without the Joint Venture itself becoming an MIS.

38.1C Token Characterisation. The Foundation acknowledges that fungible digital COG$ Tokens of Tier 2 investment classes (including ASX COG$, Landholder COG$, Business Property COG$, and RWA COG$) may constitute financial products within the meaning of ASIC Information Sheet 225. These Tier 2 classes are not issued, sold, or exchanged for goods or services until after Expansion Day. All applicable disclosure obligations must be satisfied before any Tier 2 token issuance from Expansion Day. Community COG$ (Class C) are issued from Governance Foundation Day as an immutable record of barter transactions for goods and services between Members and as a means of recognising contributed efforts, stewardship activities, and other Member-benefit contributions. The issuance and operation of Class C from Governance Foundation Day also serves to validate the operational function of the Members Vault and the Members' cryptographic governance infrastructure before Expansion Day. Because the CJVM Hybrid Trust operates as a Joint Venture, is not a managed investment scheme, and no COG$ Token of any class may leave the Joint Venture by secondary sale, fiat redemption, exchange listing, or any other means (entrenched cl.35(w)), the classification of tokens as financial products under INFO 225 has no bearing on the use of tokens internally by the Joint Venture. The tokens function as internal governance, participation, and record-keeping instruments within a closed joint venture system.

38.2 Members' rights over the trustee structure and any trustee — including the rights of removal, successor appointment, veto over reserved matters, and enforcement in the Supreme Court of South Australia for breach of trust — are set out in clause 5.4 of the Joint Venture Participation Agreement (removal and replacement by Special Resolution), clause 6.5A of that Agreement (voting thresholds), and clause 9 of that Agreement (dispute resolution and equitable relief). These rights are incorporated into this Declaration by reference, are entrenched under clause 1.5(y) of that Agreement, and are exercisable through the governance mechanisms of the Joint Venture.

38.3 Non-liquid scheme: No Beneficiary Holder has any right to require the Trustee to redeem, repurchase, or pay out any COG$ Token or corresponding Unit for fiat currency. This prohibition is absolute and entrenched under clause 35(v).

38.4 Regulatory compliance within Trustee Functions. The Trustee must at all times comply with all applicable law governing its operation of the CJVM Hybrid Trust within Trustee Functions. Loss of any required authorisation must be notified to the Members through the System, to the FNAC, and to ASIC immediately. The power to appoint, remove, or replace the Trustee or any trustee structure (the Appointer power) is vested in the Members, exercised by Special Resolution under clause 5.3 and clause 6.5A of the Joint Venture Participation Agreement. During the pre-Governance-Foundation-Day period — being the period from execution of this Declaration until the first Members Poll is conducted under Part 6 of the Joint Venture Participation Agreement — Thomas Boyd Cunliffe acts as Caretaker Appointer and may exercise the Appointer power only to the extent necessary to constitute the Board and to give effect to clause 1.7.5 (Inaugural Meeting). The Caretaker Appointer role ends automatically on Governance Foundation Day and is not transferable. Business B-NFT Unit holders may participate in Members Polls only as provided by clause 6.5A of the Joint Venture Participation Agreement (limited vote on trustee appointment, removal, and replacement only). The Board must take all steps necessary to remedy any deficiency or to facilitate the appointment of any additional trustee, successor trustee, or corporate trustee required by law or by Members Poll.

38.5 AML/CTF Compliance: The Foundation shall comply with all obligations under the Anti-Money Laundering and Counter-Terrorism Financing Act 2006 (Cth), including KYC verification of all Members and transaction monitoring for the Members Vault.

38.6 Privacy: The Foundation shall comply with the Privacy Act 1988 (Cth) and the Australian Privacy Principles (APPs) in respect of all personal information held about Members and Beneficiary Holders. A Privacy Policy shall be published and maintained on the Foundation's website.

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38.7 Disclosure obligations. The Foundation's self-assessed position is that no Product Disclosure Statement is required because the CJVM Hybrid Trust is not a managed investment scheme. The Trustee remains responsible for compliance with all applicable disclosure, reporting, and notification obligations that apply to the Trustee under applicable law, including under the Income Tax Assessment Act 1997 (Cth), the Privacy Act 1988 (Cth), the AML/CTF Act 2006 (Cth), and, from Expansion Day, any disclosure obligations that may attach to Tier 2 Unit classes as financial products under Chapter 7 of the Corporations Act 2001 (Cth). This clause does not constitute an acknowledgement that Chapter 7 applies to any Tier 1 class or to the CJVM Hybrid Trust as a whole.

38B Regulatory compliance obligations. If applicable law is determined by a court or regulator to require any regulatory filing, registration, plan, committee, or audit obligation in connection with the operation of the CJVM Hybrid Trust, the Trustee must comply promptly and notify Members in writing within 5 business days of becoming aware of that determination.

38A Non-redeemability. No Member has any right to require the Trustee to redeem, repurchase, or pay out any COG$ Token, corresponding Unit, or Sub-Trust B income unit for fiat currency at any time. This prohibition is absolute and entrenched under clause 35(v). A Member's interest in the Joint Venture is realised through Sub-Trust B distributions under clause 31, not through redemption or withdrawal.

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PART 13 — AMENDMENT OF DECLARATION

40.1 This Declaration may only be amended by special resolution (75% majority) of SNFT Holder Beneficiaries at a general meeting or through a Members Poll conducted under the Joint Venture Participation Agreement. Proposed amendments must be: (a) provided to SNFT Holder Beneficiaries in writing at least 30 days before the meeting or Members Poll; (b) accompanied by written legal advice from qualified counsel; and (c) published on the Foundation's website. A Members Poll conducted through the Members' proprietary cryptographic governance system under Part 6 of the Joint Venture Participation Agreement has the same legal effect as a special resolution at a general meeting only where each of the following procedural safeguards has been complied with: (i) written notice of the proposal has been given to all Members entitled to vote on the proposal not fewer than 21 days before the opening of the voting period (or 28 days in the case of a Declaration amendment); (ii) the notice specifies the proposal with sufficient particularity to enable an informed vote; (iii) a quorum is met (being 20 Members or 1% of all Members whichever is greater, consistently with clause 36.2); (iv) the voting period is not less than 7 days (or 48 hours in an urgency case validly declared under Part 6 of the Joint Venture Participation Agreement); (v) the result, including the number of votes cast in favour, against, and abstaining, is recorded in a minute that is kept with the trust records and published on the Foundation's website within 5 business days of the close of voting; and (vi) any Member entitled to vote has access through their Independence Vault Wallet to verify the recording of their own vote. A Members Poll that does not comply with these safeguards is of no effect as a special resolution and, if it purports to amend this Declaration, the purported amendment is void. Where a Members Poll directs an amendment to this Declaration, the Trustee must execute the amendment within 30 days. The amendment is operative from the date of the Members Poll result, not from the date the Trustee executes the formal amendment. The Trustee's execution is a recording function, not an approval function.

40.2 No amendment may be made to any entrenched provision listed in clause 35. Any purported amendment to an entrenched provision is void and of no legal effect.

40.3 Any amendment that would affect the Foundation's obligations under FPIC, FNAC governance, or Indigenous custodianship requires the prior written endorsement of the FNAC before being put to a vote of the Members.

40.4 An amendment to a non-entrenched provision takes effect from: (a) the date specified in the special resolution; or (b) if no date is specified, 14 days after the resolution is passed.

40.5 All amendments shall be recorded by way of a consolidated amending deed executed by the Board and published to all Members.

40.5A The Trustee's obligation to update this Declaration following a valid Members Poll direction under the Joint Venture Participation Agreement is a recording function, not an approval function. The Declaration records the Members' agreed rules; it is not an independent source of authority over the Members. The Trustee must execute the required amendment within 30 days of the direction, or such other period as the resolution specifies. Failure to execute a required amendment within 30 days constitutes a breach of Trustee Functions, enforceable by any Member in the Supreme Court of South Australia.

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PART 14 — DISSOLUTION AND WINDING UP

41.1 The CJVM Hybrid Trust shall not be wound up except: (a) by Special Resolution of the Members under clause 6.5(f) of the Joint Venture Participation Agreement, which requires satisfaction of the Special Resolution quorum in clause 6.5(b) of that Agreement (the greater of 10 S-NFT holder Members or 75% of S-NFT holder Members, excluding Dormant Members under clause 4.11 of that Agreement) and the Special Resolution voting threshold of not less than 75% of valid votes cast under clause 6.5A of that Agreement; (b) by order of the Supreme Court of South Australia; or (c) by order of a court of competent jurisdiction.

41.1A Before moving to wind up the CJVM Hybrid Trust, the Trustee must: (a) notify all Members in writing at least 30 days before the winding up resolution meeting; (b) notify any regulator to the extent required by applicable law; and (c) appoint an independent auditor to verify the final accounts of the trust.

41.2 On dissolution, the Trust's property shall be applied as follows — this clause is an entrenched provision under clause 35(p): (a) Sub-Trust B: all undistributed income shall be distributed proportionally to eligible Beneficiary Holders before dissolution is completed; (b) Sub-Trust C: all assets shall be transferred to ACNC-registered charitable organisations with similar objects — the FNAC shall advise on distribution and First Nations organisations shall be prioritised; (c) Sub-Trust A: the Members Asset Pool shall not be liquidated for distribution to Members. Sub-Trust A assets shall be transferred, in order of preference, to: (i) an ACNC-registered community organisation with substantially similar objects approved by 75% special resolution; or (ii) if none, to Sub-Trust C's designated recipients. No Sub-Trust A assets shall be distributed as cash or in-kind to individual Members or for-profit entities.

41.3 The Trustee shall cooperate fully with any court-appointed liquidator or trustee in the winding up of the CJVM Hybrid Trust and shall take all steps necessary to give effect to the dissolution in accordance with this clause.

41.4 The dissolution of the CJVM Hybrid Trust does not of itself constitute or require the dissolution or winding up of the trustee or any corporate trustee then in office. Where the trustee structure includes a CLG or other corporate trustee, that company may continue as a legal entity following dissolution of the Trust. Where the trustee structure consists of individual trustees, those trustees are discharged from the trust upon completion of the winding up.

41.5 Survival of the Joint Venture Participation Agreement. The dissolution or winding up of the CJVM Hybrid Trust under this Part does not of itself terminate the Joint Venture Participation Agreement. The Joint Venture Participation Agreement continues to operate as between the Members in accordance with its own terms, subject to its own amendment and termination procedures. Where dissolution of the Trust precedes amendment of the Joint Venture Participation Agreement, the Members may by Special Resolution under that Agreement resolve to constitute a successor trust, reconstitute the Joint Venture under a replacement legal trust administration instrument, or terminate the Joint Venture Participation Agreement itself. Nothing in this Part abrogates the entrenched founding principles of the Joint Venture as set out in clause 1.5 of the Joint Venture Participation Agreement.

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PART 15 — MISCELLANEOUS

42.1 Governing law and jurisdiction: This Declaration is governed by the laws of South Australia, Australia. The courts of South Australia have non-exclusive jurisdiction to resolve any dispute under this Declaration.

42.2 Notices to Members shall be given by email to the address in the Register of Beneficiary Holders, or by publication on the Foundation's website. Notices take effect: (a) if by email, on the next business day after sending; and (b) if by website publication, 2 business days after publication.

42.3 Severability: If any provision of this Declaration is or becomes invalid or unenforceable, the remaining provisions continue in full force and effect. The invalid provision shall be severed and, where possible, replaced by a valid provision that most closely reflects the original intent.

42.4 Waiver: A waiver by the Trustee of any right under this Declaration does not constitute a waiver of any other right or a continuing waiver.

42.5 Entire Agreement: This Declaration, together with the Schedules and any supplementary instruments that do not modify entrenched provisions, constitutes the entire governance framework of the CJVM Hybrid Trust. Any CLG constitution adopted for a CLG that is appointed as corporate trustee operates only for the corporate affairs of that entity and does not displace this Declaration.

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SCHEDULE 1 — INITIAL TRUST PROPERTY AND SETTLEMENT

The CJVM Hybrid Trust is constituted by the declaration and Caretaker Trustee, Thomas Boyd Cunliffe, that holds the Initial Trust Property on the trusts of the Declaration. Sub-Trust C does not receive a separate settled sum. Any property later credited to Sub-Trust C constitutes the Trust Fund of Sub-Trust C in accordance with this Deed.

Field	Detail
ASX listing	ASX:LGM (LEGACY MINERALS HOLDINGS LIMITED)
Number of shares	1,545 shares
Account	CRVGS (IG brokerage account)
Book cost	$239.48 AUD
Evidence	IG account statement for account CRVGS
Held for	COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust

Trust name	COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust
Principal governing instrument	COGS of Australia Foundation Community Joint Venture Mainspring CJVM Hybrid Trust Declaration
Declarant and Initial Trustee	Thomas Boyd Cunliffe
Address of Initial Trustee	780 Sugarbag Road West, DRAKE NSW 2469
Governing law	South Australia — Trustee Act 1936 (SA); Law of Property Act 1936 (SA)
Initial Trust Property — description	1,545 ordinary shares in Legacy Minerals Holdings Limited (ASX: LGM) held in IG brokerage account CRVGS to be transferred into the trust's required compliant holding structure as soon as operationally practicable.
Initial Trust Property — book cost	$239.48 AUD
ASX:LGM price on execution date	*$0.17 per share* *Source / time: ASX market close, 21 April 2026, 6:00 pm AEST*
Market value of Initial Trust Property	*1,545 × $0.17 = $262.65 AUD*
Date of execution	*21 April 2026*
Approximate time of execution	*6:00 pm AEST*
Place of execution	C/- Drake Village Resource Centre, Drake Village NSW 2469
Witness — full legal name	Alexander Stefan Gorshenin
Witness — address	1/118 Ridgeway Ave, Southport QLD 4215
Witness — occupation	*Independent witness, DOB 16 May 1979*

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Witness — Method	*Witnessed via audio-visual link, section 14G Electronic Transactions Act 2000 (NSW), 21 April 2026, 6:00 pm AEST*

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SCHEDULE 2 — STATEMENT OF COMMUNITY PURPOSE

This Statement forms part of this Declaration and provides context for the objects in Part 2. It may be referred to in construing the operative provisions of this Declaration.

For generations, the natural wealth of Australia has flowed primarily to corporations and governments. The people whose communities sit above these resources — whose land carries the weight of extraction, whose waterways bear the risk — rarely hold direct ownership and have little to no say in whether those resources are extracted at all. COGS of Australia Foundation exists to structurally correct this imbalance.

Minerals and natural resources that remain in the ground are not idle assets. They are real, measurable wealth — JORC-valued, recognised on company balance sheets, and priced into equity markets every day. Community consent creates quantifiable commercial value. BCG research documents that mining companies in the highest ESG performance quintile carry average valuations approximately 20% greater than the lowest quintile. EY ranks social licence to operate as the number one business risk in the global mining sector.

Indigenous custodianship is the deepest form of community consent. 57.8% of Australia's critical mineral projects lie within formally recognised Indigenous lands (Burton, Kemp et al., University of Queensland, 2024). Aboriginal and Torres Strait Islander peoples' custodial knowledge of their Country has been accumulated over tens of thousands of years. That knowledge is inseparable from the commercial and governance value of the resources beneath that Country.

COGS of Australia Foundation is the first community Joint Venture vehicle in Australian history designed to give Australians a permanent, legally enforceable, financially structured stake in the governance and outcomes of their nation's resource sector. The minerals beneath the ground belong, in a meaningful sense, to all of us. But they belong first, and most profoundly, to those who have cared for the Country above them since the beginning of time.

What belongs to the life of the nation should carry the voice of the nation.

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SCHEDULE 4 — DIVIDEND DISTRIBUTION RULES (SUB-TRUST B)

Note: The distribution formula in this Schedule reflects the Foundation's position as submitted to the ATO for Class Ruling. Final distribution terms remain subject to ATO confirmation.

S4.1 The Sub-Trust A dividend stream comprises two distinct components, accounted for separately by reference to the class registry and Donation Ledger: (a) Beneficiary Distribution Stream — dividends and income attributable to shares or other approved acquisitions associated with S, kS, B, Lh, BP, A, R, C, and any other expressly participating beneficial classes; and (b) Donation Dividend Stream — dividends and income attributable to the invested component of Donation COG$ proceeds.

S4.2 Dividend eligibility — Sub-Trust B income units: The following Unit classes each carry one (1) Sub-Trust B income unit per validly issued unit: Personal S-NFT COG$ / Class S (1 unit); Kids S-NFT COG$ / Class kS (1 unit — held in trust until age 18); Business B-NFT COG$ / Class B (1 unit); Landholder COG$ / Class Lh (1 unit); Business Property COG$ / Class BP (1 unit); ASX Class A (1 unit, represented by the ASX COG$ Token); RWA COG$ / Class R (1 unit); and Donation COG$ / Class D (1 unit, held by Sub-Trust C as D Class Beneficial Unit Holder rather than by the donor).

S4.2A Members bonus election: Each Member entitled to a Sub-Trust B distribution may elect to receive that entitlement as: (a) a members bonus paid in AUD to their nominated bank account - the default where no election is made; or (b) new ASX COG$ Tokens together with the corresponding newly issued Class A Units at the then-current Class A Unit consideration, subject to the 1,000,000-token anti-capture cap across all classes. For the avoidance of doubt, a members bonus is not a fiat sale, redemption, or conversion of any Token.

S4.3 The Donation Dividend Stream passes through Sub-Trust B. Of the dividends and income attributable to the invested Donation component, 50% is transferred to Sub-Trust B for proportional distribution to all Sub-Trust B income unit holders, including Sub-Trust C in its capacity as D Class Beneficial Unit Holder; 25% is retained in Sub-Trust A for reinvestment; and 25% is applied to Trustee administration costs.

S4.4 Sub-Trust B distributions are mandatory trust obligations under this Declaration and the Trustee Act 1936 (SA). Failure to distribute within 60 days constitutes a breach of trust enforceable in the Supreme Court of South Australia.

Dividend Flow Summary:

	Sub-Trust A	**Sub-Trust B**	**Sub-Trust C**
Name	Members Asset Pool Unit Trust	Dividend Distribution Trust	Community Projects Fund
Trust type	Fixed class unit trust — Members Asset Pool and distribution architecture	Downstream distribution trust only	Discretionary/charitable
Funded by	Class Unit consideration allocated under the Declaration, including S, kS, B, Lh, BP, A, R, C, P pending allocation, and the invested component of D	50% of the Beneficiary Distribution Stream from Sub-Trust A and 50% of the Donation Dividend Stream from Sub-Trust A	Direct $2.00 Donation component on issue per Class D Unit, plus proportional Sub-Trust B income distributions received as D Class Beneficial Unit Holder
Purpose	Hold Members Asset Pool; issue and maintain class units; reinvest	Distribute Beneficiary Distribution Stream proportionally to all	Grants for community/environmental/First Nations programs

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	applicable streams under the Declaration	eligible beneficial classes within 60 days	
Income unit holders / beneficiaries	All beneficial class units issued by Sub-Trust A except Lr and unallocated P; D beneficial destination is Sub-Trust C	S, kS, B, Lh, BP, A, R, C, and D class income unit holders, with D held by Sub-Trust C as Beneficial Unit Holder; excludes unallocated P and Lr	Charitable beneficiaries and Sub-Trust C purposes; Sub-Trust C participates in Sub-Trust B as D Class Beneficial Unit Holder
DGR/ACNC?	No	No	DGR / ACNC pathway sought
Entrenched?	Yes — CHESS direct; no intermediaries; RWA record through Approved Ledger Infrastructure	Yes — mandatory fiat distribution; 60-day deadline	Yes — no private benefit on dissolution; 30% min to First Nations

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SCHEDULE 5 — HYBRID TRUST LEGAL STRUCTURE SUMMARY

Note: This Schedule summarises the governance structure of the Foundation. If a CLG or other body corporate is appointed as corporate trustee and, where applicable, as trustee, its constituent documents govern that entity's corporate affairs. This Declaration governs the CJVM Hybrid Trust and all Beneficiary Holder rights.

Layer	Entity	Governing Instrument	Primary Function	Key Legislation
1 — Trustee Structure	Thomas Boyd Cunliffe as Caretaker Trustee, expanding to a Board of individual trustees; CLG/corporate trustee only if Members resolve or law requires	This Declaration; any deed of accession, retirement, or corporate trustee appointment; and any corporate constitution consistent with this Declaration	Holds office as trustee from execution; may be joined by additional trustees; may later be complemented or replaced by a compliant corporate trustee if and when required	Corporations Act 2001 (Cth); Trustee Act 1936 (SA)
2 — Trust	COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust	This Declaration	Members Asset Pool (CHESS + RWA); Members Dividend Structure; FNAC; FPIC; Unit classes and token representation	Trustee Act 1936 (SA); Charities Act 2013 (Cth)
2A — Sub-Trust A	ASX Shareholding & Reinvestment Trust	Clause 8.1 of this Declaration	Holds CHESS shares and RWAs; receives/splits dividends; permanent home of Donation COG$-funded shares	CHESS Operating Rules
2B — Sub-Trust B	Dividend Distribution Trust	Clause 8.2 of this Declaration	Distributes Beneficiary stream to all Beneficiary Holders (incl. BNFT) within 60 days	ITAA 1997 (Cth); Trustee Act 1936 (SA)
2C — Sub-Trust C	Community Projects Fund (Discretionary Charitable)	Clause 8.3 of this Declaration	Grants from perpetual Donation dividend stream; First Nations ≥ 30% priority	Charities Act 2013; ACNC Act 2012; ITAA Div 30
3 — On-Chain	Members Vault (Approved Ledger / RWA Layer)	Clauses 15.1(i), 22.0.2, 35(t), 35(w)	3-of-Board multisig; token minting and registry; RWA provenance; digitally recorded governance votes	AML/CTF Act 2006; Privacy Act 1988

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SCHEDULE 6 — FIRST NATIONS ADVISORY COUNCIL CHARTER

S6.1 FNAC Composition and Governance

Composition	**3 or more members nominated by Traditional Owner groups whose Country overlaps with Members Asset Pool tenements. Initial focus: Clarence River and Timbara River region, Drake NSW, and Legacy Minerals LGM tenements in northern NSW.**
Term	3 years, renewable. Members serve at the pleasure of their nominating group, which may withdraw a nomination at any time.
Meetings	Minimum 4 per year. The FNAC may request attendance of any Board member at any FNAC meeting. The FNAC Chair may attend all Board meetings as observer.
Board access	Full access to Board papers relevant to FNAC functions. The FNAC Chair has the right to speak on any item affecting Traditional Owner Country or FNAC functions.
Remuneration	Reasonable meeting fees, travel, and expenses. Annual budget determined in consultation with FNAC. Remuneration must be adequate to ensure genuine participation.
Board nomination	FNAC nominates the First Nations Director (clause 33A.4 — entrenched). Board appoints within 30 days. Deemed appointed if Board fails to act within 30 days.
Annual report	FNAC publishes annual statement to Members. Individual FNAC members may include dissenting views.
Quorum	Simple majority of currently appointed FNAC members. No FNAC function may be exercised without a quorum.

S6.1A FNAC Digital Infrastructure Advisory Function

In addition to the functions described in Declaration clause 33A.3, the FNAC has the following advisory and endorsement functions in respect of digital infrastructure: (a) reviewing and endorsing proposed Proprietary Node hosting arrangements on Traditional Owner Country, LALC land, or Native Title land; (b) advising on the cultural, governance, and self-determination implications of Members Consensus Network architecture and hosting decisions; (c) nominating preferred locations for Proprietary Node infrastructure that align with Traditional Owner governance priorities; (d) endorsing or withholding endorsement of any Key Management Policy that involves key material hosted on Traditional Owner Country; and (e) publishing an annual statement in the Foundation's annual report on digital self-determination and the state of Member-controlled infrastructure. The FNAC's endorsement under this clause follows the same binding procedure as other FNAC endorsements under clause 33A — withholding endorsement is as legally valid as giving it and carries no adverse consequence for the relevant Traditional Owner group.

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S6.2 FPIC Protocol — Key Principles

Free	**Consent given voluntarily — no coercion, pressure, or inducement. Withholding consent carries no penalty or adverse consequence.**
Prior	Engagement begins before decisions are made. Sufficient time must be allowed for Traditional Owners' own decision-making processes, including community meetings, cultural protocols, and consultation within the group.
Informed	Complete, accurate, and accessible information provided in plain language and, where appropriate, relevant Aboriginal languages or via culturally appropriate communication methods.
Consent	Genuine agreement — not the absence of formal objection. Consent may be conditional, time-limited, or subject to periodic review.
Ongoing	FPIC is not a one-time event. Consent must be maintained and updated as circumstances change or as the scope of activities expands.
Documented	All FPIC processes and outcomes documented in writing with copies provided to the relevant Traditional Owner group and summarised in the Foundation's annual report.

S6.3 ICIP Guidelines

Attribution	**All Foundation materials referencing Traditional Owner cultural knowledge or Country shall acknowledge the relevant Traditional Owners by name where consent is given.**
No appropriation	The Foundation shall not use, reproduce, adapt, or commercialise any sacred knowledge, ceremony, song, story, artwork, or cultural expression without FPIC and a written benefit-sharing agreement.
Benefit sharing	Where Foundation activities generate benefit from Traditional Owner cultural knowledge, the Foundation commits to negotiating a fair benefit-sharing arrangement with the relevant Traditional Owner group.
Digital content	NFT tokens, digital assets, and online publications must not incorporate or reference ICIP without FNAC and Traditional Owner community approval. Smart contract metadata must be cleared for ICIP compliance.
Review	ICIP Policy shall be reviewed annually with FNAC input. Breaches shall be reported to the FNAC promptly and remediated in accordance with the FNAC's directions.

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SCHEDULE 7 — RELEVANT LEGISLATION REFERENCE TABLE

Legislation	Relevance to Foundation
Corporations Act 2001 (Cth) — applicable provisions	
Corporations Act 2001 (Cth) — s253Q	Virtual and electronic meetings. Clause 36A of this Declaration implements electronic meeting compliance.
Trustee Act 1936 (SA)	Trustee duties and powers; trust administration; breach of trust remedies for Beneficiary Holders. Governs the Foundation's mandatory 60-day distribution obligation.
Charities Act 2013 (Cth)	Defines 'charitable purpose' for Sub-Trust C; ACNC registration requirements.
ACNC Act 2012 (Cth)	ACNC registration and governance standards for Sub-Trust C as a charitable trust.
Native Title Act 1993 (Cth)	Governs Native Title rights relevant to Sub-Trust A acquisitions and Seat of Country acquisition.
Aboriginal and Torres Strait Islander Heritage Protection Act 1984 (Cth)	Protects areas and objects of cultural significance from threat or injury. Relevant to portfolio company engagement and advocacy and Cultural Heritage assessments.
Aboriginal Heritage Act 1988 (SA) (under review)	Protects Aboriginal objects and places in South Australia. Monitor for successor legislation — amendments expected.
Anti-Money Laundering and Counter-Terrorism Financing Act 2006 (Cth)	KYC, AML/CTF obligations for all Unit issuance and corresponding Token minting including BNFT; alternative verification pathways for First Nations members; Members Vault transaction monitoring.
Privacy Act 1988 (Cth) — Australian Privacy Principles	Governs collection, use, and disclosure of Members' personal information, including on-chain data.
Income Tax Assessment Act 1997 (Cth) — Divisions 30, 6C	DGR endorsement for Sub-Trust C; tax treatment of Sub-Trust B distributions; trust taxation; MIS income treatment.
Blockchain/Digital Assets — Emerging Regulatory Framework	Emerging regulations governing distributed ledger technology, tokenisation, and cryptographic governance systems. The COG$ token classes are governance, membership, and Joint Venture participation instruments within the Joint Venture and are not financial products. The Foundation monitors relevant regulatory and legislative developments and notifies Members of any change that affects the Joint Venture.
CHESS Operating Rules (ASX)	Govern direct CHESS registration of Sub-Trust A shareholdings. No nominee or custodial intermediary

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	may be interposed (entrenched provision, clause 35(d)).
UNDRIP (2007)	Not directly binding in Australian domestic law but informs FPIC standards and the Foundation's First Nations framework. Australia endorsed 2009.
National Agreement on Closing the Gap (2020)	Foundation's Sub-Trust C grants and First Nations partnership commitments contribute to Closing the Gap targets.
Copyright Act 1968 (Cth)	Aboriginal cultural expressions may be protected by copyright. Moral rights also apply. ICIP extends beyond copyright — see ICIP Guidelines at Schedule 6.3.

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SCHEDULE 9 — ISSUE-AND-RECORD MATRIX

Unit Issue and Corresponding Token Recording Conditions — Controlling Matrix for All Classes

This Schedule 9 (the **Issue-and-Record Matrix**) forms part of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust **Declaration**. It is the single, controlling statement of: (a) which Unit classes may be issued; (b) when each class may be issued; (c) what conditions must be satisfied for issue; and (d) when the corresponding COG$ Token may be minted or recorded. Where any other clause of the Declaration or the Deed restates or summarises these matters, that clause is descriptive only and this Schedule prevails in any inconsistency as to those matters.

Declaration Schedule 9, Part A (the Issue-and-Record Matrix) is the controlling matrix for all matters concerning lawful Unit issuance, applicable issue conditions, Beneficial Unit recognition linked to lawful issue, and corresponding COG$ Token minting or recording. In the event of any inconsistency between Deeds, this Schedule 9 and Declaration prevails.

This Schedule is an entrenched structural instrument. Any amendment requires compliance with Declaration clause 35A.

Part A — Issue-and-Record Matrix (All 11 Classes)

Column 7 (Universal Issue Conditions) applies to every class without exception and is set out in full in Part B. Column 8 (Class-Specific Conditions) is additional to, and does not displace, the universal conditions.

Code	Unit Class /Token Name	Tier	When the Unit May Issue	Conditions for Unit Issue	When the Corresponding Token May Be Recorded	Universal IssueConditions	Class-Specific Additional Conditions	GoverningProvisions
TIER 1 — Governance and Administration Unit Classes | Issuance gates: Execution of Declaration (Classes S and B only) | Governance Foundation Day (all other Tier 1 classes)								
S	**Personal S-NFT COG$**	1	From execution of the Declaration. No Foundation Day required.	Universal conditions (Part B) satisfied. Fee of $4.00 AUD received and cleared. Natural person aged 18+; one per person.	After lawful Unit issue AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter. Token may not precede or be simultaneous with Unit issue.	See Part B	One per natural person; limit enforced before issue. Soulbound — non-transferable during lifetime (entrenched cl 35(i)). No PDS required.	Decl cls 1.7.3(a),(d); 21.1; 35(x),(i),(q) Deed cls 4.8; 6.2; 7.1 Sch 9 (this matrix)
kS	**Kids S-NFT COG$**	1	From Governance Foundation Day. Must be acquired by an existing Class S holder on behalf of a child or grandchild.	Universal conditions (Part B) satisfied. Fee of $1.00 AUD received and cleared. Acquiring party is a verified existing Class S Holder.	After lawful Unit issue AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter. On child's 18th birthday: Token record updated to Class S at earliest practicable time after auto-conversion.	See Part B	Soulbound — non-transferable in all circumstances. Auto-converts to Class S on 18th birthday; irrevocable; no further consideration payable. Proxy governance vote via parent/guardian until age 18. No PDS required.	Decl cls 1.7.3(b),(d); 25.1; 25.3; 25.4; 35(x),(q) Deed cls 4.8; 6.3; 7.1 Sch 9 (this matrix)
B	**Business B-NFT COG$ (BNFT)**	1	From execution of the Declaration. No Foundation Day required.	Universal conditions (Part B) satisfied. Fee of $40.00 AUD received and cleared. BNFT Compliance Stack completed. ABN/ACN confirmed active. Named KYC-verified authorised representative nominated.	After lawful Unit issue AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter.	See Part B	One per legal entity with active ABN. Entity-bound — non-transferable; cancelled on entity dissolution. BNFT fee ≥ $4.00 AUD at all times; may never be reduced below Class S fee (entrenched cl 35(y)). No PDS required.	Decl cls 1.7.3(a),(d); 26A.1; 26A.3; 35(y),(v) Deed cls 4.8; 6.4; 7.1; 7.3 Sch 9 (this matrix)

Code	Unit Class /Token Name	Tier	When the Unit May Issue	Conditions for Unit Issue	When the Corresponding Token May Be Recorded	Universal IssueConditions	Class-Specific Additional Conditions	GoverningProvisions
P	**Pay It Forward COG$**	1	From Governance Foundation Day.	Universal conditions (Part B) satisfied. Fee of $4.00 AUD (or whole multiple) received and cleared. The acquiring party is an existing verified Member or the Trustee. Annual donor cap of $40,000 AUD not exceeded.	After lawful Unit issue AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter. On allocation: funded Class S or kS Unit and Token minted/recorded per that class's conditions. Class P entry cancelled/exhausted simultaneously. Surplus not allocated within 24 months transferred to Sub-Trust C.	See Part B	No Beneficial Unit; no governance right before allocation. Excluded from Beneficial Class Unit count and anti-capture cap until allocation. Exhausted on allocation; non-transferable. No PDS required.	Decl cls 1.7.3(b),(d); 26.1; 26.1A; 26.6 Deed cls 4.8; 6.5; 7.1 Sch 9 (this matrix)
D	**Donation COG$**	1	From Governance Foundation Day.	Universal conditions (Part B) satisfied. Fee of $4.00 AUD received and cleared. $2.00 transferred to Sub-Trust C within 2 business days of issue. $2.00 applied through Sub-Trust A to approved Members Asset Pool assets; Donation Ledger entry created. Sub-Trust C registered as D Class Beneficial Unit Holder in Members Vault.	After lawful Unit issue AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter.	See Part B	No personal Beneficial Unit on donor. Sub-Trust C = D Class Beneficial Unit Holder (1 unit per validly issued Class D token). Non-transferable. Not a managed investment scheme interest. Failure to transfer $2.00 to Sub-Trust C within 2 business days is a breach of trust enforceable in the Supreme Court of South Australia.	Decl cls 1.7.3(b),(d); 24.1; 24.2; 24.3; 8.1B; 8.1E(b); 35(g) Deed cls 4.8; 6.7; 7.1; 7.4 Sch 9 (this matrix)

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Code	Unit Class /Token Name	Tier	When the Unit May Issue	Conditions for Unit Issue	When the Corresponding Token May Be Recorded	Universal IssueConditions	Class-Specific Additional Conditions	GoverningProvisions
Lr	**Resident COG$**	1	From Governance Foundation Day. Auto-allocated — no purchase. Triggered automatically by Members Vault once Affected Zone declared and member residency verified.	Universal conditions (Part B) satisfied (monetary fee condition not applicable). Affected Zone formally declared by the Board. Member's residential address verified and registered with the Foundation for ≥ 12 months before the relevant Local Decision Vote snapshot (waived in Foundation's first 12 months of operation). Geofencing/location eligibility specification conditions met.	After lawful Unit allocation AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter. Lapses automatically on Affected Zone expiry/revocation or on cessation of verified residential eligibility.	See Part B	No Beneficial Unit; no yield; no national governance vote. Confers 1,000 weighted Class Lr Units per declared Affected Zone overlay (effective 1,001:1 in Local Decision Vote); weighting does not aggregate across overlays unless expressly provided. Non-transferable. Excluded from Beneficial Class Unit count and anti-capture cap. Entrenched: cl 35(s).	Decl cls 1.7.3(b),(d); 12A; 23B; 35(s) Deed cls 4.8; 6.6; 7.1 Sch 9 (this matrix)
TIER 2 — Members Asset Pool Unit Classes | Issuance gate: Expansion Day only | All Expansion Day steps in clause 12B.3 mandatory — no waiver permissible								
A	**ASX COG$**	2	From Expansion Day only. All Expansion Day steps in clause 12B.3 satisfied. Cannot issue before Expansion Day under any circumstances (entrenched cl 35(ac)).	Universal conditions (Part B) satisfied. All Expansion Day steps in clause 12B.3 met. The Members are responsible for compliance with all applicable disclosure obligations for this class. Fee of $4.00 AUD (SNFT pathway) or $40.00 AUD (BNFT pathway) received and cleared. Applicant is a verified existing Class S or active Class B holder.	After lawful Unit issue AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter. 12-month Stewardship Season lock from Expansion Day applies from moment of Token recording (entrenched cl 35(j)).	See Part B	The Members are responsible for compliance with all applicable law in respect of issuance of this class. Issuance proceeds from Expansion Day. Full proceeds to Sub-Trust A. 12-month Lock Period from Expansion Day (entrenched cl 35(j)); no transfer before lock expiry. Post-lock: P2P transfer only to KYC-verified Members via Members Vault with 3-of-Board multisig; no fiat sale (entrenched cl 35(w)). Anti-capture cap: 1,000,000 Units across all classes combined (excluding Lr; entrenched cl 35(f)). NAV deviation review (>10%) suspends further issuance until review completed.	Decl cls 1.7.3(c),(d); 12B; 22; 22.1; 22.3; 35(j),(w),(ac) Deed cls 4.8; 6.8; 7.1; 7.2 Sch 9 (this matrix)

Code	Unit Class /Token Name	Tier	When the Unit May Issue	Conditions for Unit Issue	When the Corresponding Token May Be Recorded	Universal IssueConditions	Class-Specific Additional Conditions	GoverningProvisions
Lh	**Landholder COG$**	2	From Expansion Day only. All Expansion Day steps in clause 12B.3 satisfied.	Universal conditions (Part B) satisfied. All Expansion Day steps in clause 12B.3 met. The Members are responsible for compliance with all applicable disclosure obligations for this class. Fee of $4.00 AUD per token received and cleared (zero cost for eligible LALC/PBC per cl 23.4 and entrenched cl 35(ab)). Eligible landholder confirmed: freehold title; or LALC under ALR Act 1983 (NSW); or PBC under Native Title Act 1993 (Cth). Land verification documented. Max 1,000 tokens/ha enforced before issue. For LALC/PBC: FNAC written endorsement obtained; entity KYC-verified with named authorised representative.	After lawful Unit issue AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter.	See Part B	Members Asset Pool participation unit. Full proceeds to Sub-Trust A. LALC/PBC: automatic zero-cost issuance; max 1,000/ha; FNAC endorsement required (entrenched cl 35(ab)). Transferable with land title by election, or P2P to eligible landholder via Members Vault; no fiat sale (entrenched cl 35(w)). LALC/PBC transfers subject to applicable statutory restrictions.	Decl cls 1.7.3(c),(d); 12B; 23; 23.2; 23.4; 35(ab),(w),(ac) Deed cls 4.8; 6.8; 7.1; 7.2 Sch 9 (this matrix)
BP	**Business Property COG$**	2	From Expansion Day only. All Expansion Day steps in clause 12B.3 satisfied.	Universal conditions (Part B) satisfied. All Expansion Day steps in clause 12B.3 met. The Members are responsible for compliance with all applicable disclosure obligations for this class. Fee of $40.00 AUD per token received and cleared.	After lawful Unit issue AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter.	See Part B	Members Asset Pool participation unit. Full proceeds to Sub-Trust A. Weighted affected-zone governance rights only; no national governance vote. Transferable with property title or P2P to eligible commercial property holder via Members Vault; no fiat sale (entrenched cl 35(w)).	Decl cls 1.7.3(c),(d); 12B; 23C; 35(w),(ac) Deed cls 4.8; 6.8; 7.1; 7.2 Sch 9 (this matrix)

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Code	Unit Class /Token Name	Tier	When the Unit May Issue	Conditions for Unit Issue	When the Corresponding Token May Be Recorded	Universal IssueConditions	Class-Specific Additional Conditions	GoverningProvisions
				Eligible commercial property holder confirmed. Max 1,000 tokens/ha enforced before issue.				
R	**RWA COG$**	2	From Expansion Day only. All Expansion Day steps in clause 12B.3 satisfied. Board approval of the specific RWA acquisition required additionally.	Universal conditions (Part B) satisfied. All Expansion Day steps in clause 12B.3 met. The Members are responsible for compliance with all applicable disclosure obligations for this class. Fee of $4.00 AUD (SNFT pathway) or $40.00 AUD (BNFT pathway) received and cleared. Board resolution approving the specific RWA acquisition obtained and recorded before issue.	After lawful Unit issue AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter. RWA blockchain record created on Members Vault as supplementary transparency layer concurrently with Token recording. CHESS Register remains primary legal record for any ASX share component; any discrepancy resolved in favour of CHESS Register.	See Part B	Members Asset Pool participation unit. Full proceeds to Sub-Trust A for approved RWA acquisition. No national governance vote; no local weighted vote by Class R alone. P2P transfer only where class-specific dealing rules expressly adopted by the Board; non-transferable until then. No fiat sale (entrenched cl 35(w)).	Decl cls 1.7.3(c),(d); 12B; 23A; 35(w),(ac) Deed cls 4.8; 6.8; 7.1; 7.2 Sch 9 (this matrix)
C	**Community COG$**	1	Initial allocation (1,000 per Individual Member; 10,000 per Business Member) from Governance Foundation Day by standing Members Poll direction (cl. 23D.3). Additional issuance by Members Poll, from Governance Foundation Day, by further Members Poll direction. Board-approved contributed effort, service, or stewardship activity required.	Universal conditions (Part B) satisfied (monetary fee condition not applicable; contributed effort consideration applies). Board resolution approving specific allocation and documenting contributed effort obtained before allocation. Class-specific dealing rules, if any, adopted before allocation.	After lawful Unit allocation AND completion of admin verification/approval process. Minted/recorded at earliest practicable time thereafter.	See Part B	Tier 1 participation unit. No monetary purchase fee unless Declaration later amended. No national governance vote by Class C alone. P2P transfer only where class rules expressly permit; no fiat sale (entrenched cl 35(w)). Tax characterisation of allocation for contributed efforts subject to ATO class ruling (Q18).	Decl cls 1.7.3(c),(d); 12B; 23D; 35(w),(ac) Deed cls 4.8; 6.8; 7.1; 7.2 Sch 9 (this matrix)

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PART B — Universal Issue Conditions

The following seven conditions apply to the issue of every Unit class and to the minting or recording of every corresponding COG$ Token, without exception, unless this Schedule expressly modifies a condition for a named class (as stated in Part A, column 8).

#	Universal Issue Condition — applies to every Unit class and every corresponding Token recording
1	**KYC/AML-CTF —** The applicant (or recipient, for allocation-based classes) has completed KYC and AML/CTF verification and clearance has been recorded before any Unit is issued or any Token is minted or recorded.
2	**Consideration received —** The applicable membership fee or unit consideration has been received and cleared in the Foundation's relevant trust bank account. For Class Lr (no fee) and Class C (contributed effort consideration), this condition is modified as stated in the class row of Part A. For Class Lh LALC/PBC issues (zero cost), this condition is satisfied without monetary payment pursuant to the entrenched zero-cost right in Declaration cl 35(ab).
3	**Anti-capture cap —** The anti-capture cap of 1,000,000 Units across all classes combined, together with their representative COG$ Tokens (excluding Class Lr Units and their corresponding Tokens, which are auto-allocated governance instruments excluded from the cap), has not been reached for the applicant or recipient. This cap is a quantity cap, not a financial value cap, and is entrenched under Declaration cl 35(f).
4	**3-of-Board multisig —** Not fewer than three Board Directors have applied cryptographic authorisation through the Members Vault for the Token minting or recording step. This authorisation must occur after lawful Unit issue and may not precede it. This requirement is entrenched under Declaration cl 35(t) and applies regardless of the Approved Ledger Infrastructure in use at the relevant time.
5	**Applicable issuance gate reached —** The applicable issuance gate for the class has been reached: (a) execution of the Declaration — for Classes S and B only; (b) Governance Foundation Day — for Classes kS, P, D, Lr, and C; (c) Expansion Day — for Classes A, Lh, BP, and R. No class may be issued before its applicable gate. The Tier 2 gate is entrenched under Declaration cl 35(ac) and admits no waiver by any resolution of the Board or Members.
6	**Applicable law compliance (Tier 2 only) — The Members are responsible for compliance with all applicable disclosure and regulatory obligations under law in respect of the issue of Tier 2 Unit classes. The Foundation's self-assessed position is that no Product Disclosure Statement or equivalent regulatory approval is required because the CJVM Hybrid Trust is not a managed investment scheme. This condition does not apply to Tier 1 Unit classes.**
7	**Token recording sequencing —** A corresponding COG$ Token may be minted or recorded only after the relevant Unit has been lawfully issued and the required administrative verification and approval process has been completed. Tokens may not be minted or recorded simultaneously with, or in advance of, Unit issue. Once the Unit has been lawfully issued and the process completed, the corresponding Token must be minted or recorded at the earliest practicable time thereafter. No corresponding Token of any class may be minted or recorded by any means other than through the Members Vault operating on the Approved Ledger Infrastructure.

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Part B — Universal Issue Conditions

This Part B sets out, in full, the Universal Issue Conditions referenced in Part A, column 7. These conditions apply to every Unit class and every corresponding COG$ Token recording, in addition to any class-specific conditions set out in Part A, column 8. No Unit may be lawfully issued, and no corresponding COG$ Token may be minted or recorded, unless the applicable Universal Issue Conditions have been satisfied.

Condition 1 — KYC and AML/CTF verification. The applicant, or in the case of an allocation-based class the recipient, has completed all KYC and AML/CTF verification required under the Anti-Money Laundering and Counter-Terrorism Financing Act 2006 (Cth), and clearance has been recorded in the Foundation's records before any Unit is issued or any corresponding Token is minted or recorded.

Condition 2 — Consideration received. The applicable unit consideration or membership fee has been received and cleared in the Foundation's relevant trust bank account. For Class Lr (no fee) and Class C (contributed-effort consideration), this condition is modified as stated in the Part A row for that class. For Class Lh LALC and PBC issues (zero-cost), this condition is satisfied without monetary payment pursuant to the entrenched zero-cost right under clause 1.5(q) of the Joint Venture Participation Agreement.

Condition 3 — Anti-capture cap. The entrenched anti-capture cap of 1,000,000 Units across all classes combined (together with their corresponding COG$ Tokens, and excluding Class Lr Units and their corresponding Tokens, which are auto-allocated governance instruments and are excluded from the cap) has not been reached for the applicant or recipient. This cap is a quantity cap, not a financial value cap, and is entrenched under clause 1.5(e) of the Joint Venture Participation Agreement.

Condition 4 — 3-of-Board cryptographic authorisation. Not fewer than three (3) Board Directors have applied cryptographic authorisation through the Members Vault for the Token minting or recording step. Authorisation must occur after lawful Unit issue and may not precede it. This requirement is entrenched under clause 1.5(j) of the Joint Venture Participation Agreement and applies regardless of the Approved Ledger Infrastructure in use at the relevant time.

Condition 5 — Applicable issuance gate reached. The applicable issuance gate for the class has been reached: (a) execution of this Declaration — for Classes S and B only; (b) Governance Foundation Day — for Classes kS, P, D, Lr, and C; (c) Expansion Day — for Classes A, Lh, BP, and R. No class may be issued before its applicable gate. The Tier 2 gate is entrenched under clause 1.5(aa) of the Joint Venture Participation Agreement and admits no waiver by any resolution of the Board or the Members.

Condition 6 — Applicable law compliance (Tier 2 only). Before any Tier 2 Unit class is issued from Expansion Day, the Trustee must confirm that all applicable disclosure, reporting, and notification obligations under Chapter 7 of the Corporations Act 2001 (Cth) and other applicable law have been satisfied in respect of the relevant Tier 2 class. The Foundation's self-assessed position is that the CJVM Hybrid Trust is not a managed investment scheme and accordingly no Product Disclosure Statement is required under Chapter 5C. This Condition 6 does not apply to Tier 1 Unit classes.

Condition 7 — Token recording sequencing. A corresponding COG$ Token may be minted or recorded only after the relevant Unit has been lawfully issued and any required administrative verification and approval process has been completed. Tokens may not be minted or recorded simultaneously with, or in advance of, Unit issue. Once the Unit has been lawfully issued and the process completed, the corresponding Token must be minted or recorded at the earliest practicable time thereafter. No corresponding Token of any class may be minted or recorded by any means other than through the Members Vault operating on the Approved Ledger Infrastructure. The sequencing rule in this Condition 7 is fundamental to the integrity of the Foundation's governance records and is not severable from this Schedule.

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Part C — Issuance Gate Quick Reference

This table is a quick reference only. The complete conditions for each class are set out in Part A (columns 4–8) read with Part B.

Gate	Classes	Key Pre-Conditions
Gate 1Execution of Declaration	S — Personal S-NFT COG$ B — Business B-NFT COG$ (BNFT)	Declaration executed and in force. Universal Conditions 1–4 and 7 (Part B) satisfied. Fee received and cleared: $4.00 (Class S); $40.00 (Class B). For Class B: BNFT Compliance Stack completed; ABN confirmed active; authorised representative KYC-verified. No Foundation Day required. No PDS required.
Gate 2Governance Foundation Day	kS — Kids S-NFT COG$ P — Pay It Forward COG$ D — Donation COG$ Lr — Resident COG$C — Community COG$ (initial allocation — 1,000 per Individual Member; 10,000 per Business Member)	Members Vault operational with 3-of-Board cryptographic authorisation (Universal Condition 4). Foundation's first online cryptographic Members Poll conducted. Part 12A operational pre-conditions satisfied. Universal Conditions 1–5 and 7 (Part B) satisfied for each class. Class-specific conditions for each class met (see Part A). No PDS required for any Tier 1 class. Tier 2 classes remain unavailable until Expansion Day.
Gate 3Expansion Day — [Gundoo Ngiri] Proprietary Node Live	A — ASX COG$ Lh — Landholder COG$ BP — Business Property COG$ R — RWA COG$	ALL of the following mandatory pre-conditions (Declaration cl 12B) must be met — no waiver permissible by any resolution: (a) Inaugural Meeting held; trustee structure elected or approved per cl 1.8. (b) Relevant Deed of Appointment executed; any required deed of retirement or accession completed. (c) If corporate trustee required by law: validly incorporated and appointed. (d) The Members and Trustee are in compliance with all applicable law in respect of Tier 2 Unit class issuance. (e) AML/CTF systems operational and AUSTRAC VASP registration in place before any token is issued. PLUS: Universal Conditions 1–7 (Part B) and class-specific conditions in Part A, column 8 satisfied for each individual class.

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Part D — Amendment and Proprietary Control

The following provisions govern the amendment of this Schedule and the maintenance of proprietary control over its contents.

(a) Operative instrument. This Schedule 9 is an operative part of the Declaration and has the same legal force as the operative clauses of the Declaration. It is not merely a summary or administrative guide.

(b) Entrenched status. This Schedule is an entrenched structural instrument of this Declaration and of the Joint Venture Participation Agreement. Amendment requires compliance with clause 35A of this Declaration and clause 1.6 of the Joint Venture Participation Agreement, being the entrenched-amendment procedure. For the avoidance of doubt, no Board resolution, Members Poll, or Special Resolution of Beneficiary Holders alone is sufficient to amend this Schedule: amendment of an entrenched instrument requires the procedure applicable to amendment of an entrenched principle, as set out in clause 35A.1.

(c) No indirect circumvention. No supplementary deed, board policy, compliance plan provision, smart-contract parameter, technical specification, administrative practice, or side arrangement may alter, narrow, expand, or circumvent the issuance gates, universal conditions, or token-recording sequencing set out in this Schedule. Any purported alteration without compliance with clause 35A is void by operation of Declaration clause 35A.1.

(d) 3-of-Board multisig. The requirement that not fewer than three Board Directors apply cryptographic authorisation through the Members Vault for every Token minting or recording operation is entrenched under Declaration clause 35(t) and applies independently of this Schedule. This Schedule does not modify and cannot displace that requirement.

(e) No simultaneous issue. Nothing in this Schedule, and nothing in any amendment to this Schedule, may authorise the minting or recording of a COG$ Token simultaneously with, or in advance of, the lawful issue of the corresponding Unit. The sequencing rule in Part B, Condition 7 is fundamental to the integrity of the Foundation's governance records and is not severable from this Schedule.

(f) Caretaker custody. The electronically executed Declaration (including this Schedule) is preserved in the Foundation's secure systems in accordance with Declaration clause 1.5A. The protocol for access to and production of certified copies of the Declaration is set out in that clause.

(g) Precedence rule. In any conflict between this Schedule and the operative clauses of the Declaration or Sub-Trust A Deed (other than the descriptive clauses that this Schedule explicitly replaces by cross-reference), the operative clauses of the Declaration prevail in accordance with Declaration clause 3.6. This Schedule prevails over any descriptive restatement of issuance conditions in any Schedule, Annex, or class provision of the Declaration or any supplementary instrument.

(h) Amendment notation. All amendments to this Schedule must be recorded by way of a consolidated amending deed executed by the Board and published to all Members in accordance with Declaration clause 40.5.

End of Schedule 9 — Issue-and-Record Matrix

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EXECUTION

This instrument is executed as a deed by Thomas Boyd Cunliffe as Declarant and Caretaker Trustee by electronic means. By executing it electronically, he declares that the Initial Trust Property described in Schedule 1 is held on the trusts of this Declaration under the law of South Australia.

DECLARANT

Signed by	Thomas Boyd Cunliffe
Signature	Signed electronically — Thomas Boyd Cunliffe, 21 April 2026, 6:00 pm AEST
Name	Thomas Boyd Cunliffe
Capacity	as Declarant
Date	21 April 2026
Witness	Electronic witness — section 14G Electronic Transactions Act 2000 (NSW) Electronic witness attestation: Alexander Stefan Gorshenin attests that he observed Thomas Boyd Cunliffe execute this Declaration electronically via audio-visual link on 21 April 2026 at 6:00 pm AEST and is satisfied this is the same document signed Full name: Alexander Stefan Gorshenin Address: 1/118 Ridgeway Ave, Southport QLD 4215 Occupation: Independent witness, DOB 16 May 1979 Date: 21 April 2026

CARETAKER TRUSTEE

Signed by	Thomas Boyd Cunliffe
Signature	Signed electronically — Thomas Boyd Cunliffe, 21 April 2026, 6:00 pm AEST
Name	Thomas Boyd Cunliffe
Capacity	as Caretaker Trustee of Sub-Trust A of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust
Date	21 April 2026
Witness	Electronic witness — section 14G Electronic Transactions Act 2000 (NSW) Electronic witness attestation: Alexander Stefan Gorshenin attests that he observed Thomas Boyd Cunliffe execute this Declaration electronically via audio-visual link on 21 April 2026 at 6:00 pm AEST and is satisfied this is the same document signed Full name: Alexander Stefan Gorshenin Address: 1/118 Ridgeway Ave, Southport QLD 4215 Occupation: Independent witness, DOB 16 May 1979 Date: 21 April 2026

I, Thomas Boyd Cunliffe, as Declarant and Caretaker Trustee, confirm that on the date and at the place shown above I executed the four (4) deed instruments — this Declaration and the three Sub-Trust Deeds (A, B and C) — in the presence of the electronic witness named in the Declaration Execution Record, Alexander Stefan Gorshenin, via audio-visual link in accordance with section 14G of the Electronic Transactions Act 2000 (NSW), and that I appropriated and earmarked the specifically identified parcel of 1,545 ASX:LGM shares in account CRVGS as the Initial Trust Property of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust, held on the trusts of that trust from the time of execution. The Joint Venture Participation Agreement is a separate non-deed instrument that enters into force upon generation of the first cryptographic acceptance record under clause 8.1A of that Agreement by whoever becomes the founding Member, together with the Trustee Counterpart Record given by me in my Caretaker Trustee capacity under clause 10.10A of that Agreement; it is not part of this execution session.

This Declaration is executed electronically. The Declaration Execution Record — comprising the Declarant Execution Record and the Caretaker Trustee Execution Record, each embedding the electronic witness attestation of Alexander Stefan Gorshenin under section 14G of the Electronic Transactions Act 2000 (NSW) — is stored in the Foundation's secure systems with a SHA-256 hash committed to the System's public ledger. The electronically executed instrument is the original Declaration. No physical original or paper certified copies are produced or required. An electronically authenticated PDF produced from the Foundation's secure systems bearing the SHA-256 hash of the Declaration Execution Record is a legal copy of this instrument for all purposes. For the protocol governing access to and production of certified copies, see clause 1.5A.

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Settlement evidence note: IG account CRVGS — 1,545 ASX:LGM shares — book cost $239.48 AUD. The initial parcel is appropriated now, and must be transferred into the trust's required compliant holding structure as soon as operationally practicable.

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